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**ALLIANCE FOR COLLECTIVE EMPOWERMENT AND DEVELOPMENT**

**THE FOUNDING VOLUME**

# **ALLIANCE FOR COLLECTIVE EMPOWERMENT AND DEVELOPMENT FOUNDING DOCUMENTS**

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*The Executive Summary, the ACE Community and Development Act, the Unanimous Declaration, and the Founding Position, compiled as a single volume*

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Prepared by

**Léandre Poplus, Founder**

Alliance for Collective Empowerment and Development

V3.1 — September 2026



## ABOUT THIS VOLUME

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This volume brings together the founding documents of the Alliance for Collective Empowerment and Development. It opens with the Executive Summary and the ACE Community and Development Act, the case for ACE and the legal instrument that establishes it, so a reader can move directly to the substance. The Unanimous Declaration and the Founding Position follow as additional reading: the fuller philosophical and historical case behind the Act's provisions, for readers who want the complete argument.

*Each document is complete on its own and circulates independently elsewhere; here they are bound together for a reader who wants the whole case in a single sitting.*

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## KEY TERMS

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*The terms below recur across all four documents in this volume. They are introduced here in plain language so a first-time reader is not left to infer them from context. Full legal definitions for terms used in the Act govern that document and appear at Sec. 103.*

**ACE Territory.** The self-governing land base ACE establishes. See the Act's Title I and Sec. 103 for its governing legal definition.

**BATEI (Black American Tax Equity Initiative).** ACE's demand for federal and state tax relief, framed as restitution for two hundred fifty years of unpaid labor rather than as an extension of tribal tax law. Its federal and state tracks are independent of each other. See the Act's Title XV and Sec. 103.

**The Continuity Doctrine.** A second, independent legal ground for ACE's sovereign recognition, argued in full in the Jurisdictional Sovereignty Brief, that does not depend on a tribal land lease and stands on its own historical and constitutional footing. See the Act's Title XXI Section 2103 and Sec. 103.



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# Executive Summary

Alliance for Collective Empowerment and Development

v2.2 - September 2026

Léandre Poplus, Founder

ALLIANCE FOR COLLECTIVE EMPOWERMENT

# ACE

## EXECUTIVE SUMMARY

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*“We are not asking for a seat at the table. We are building our own.”*

### WHAT ACE SOLVES

Two communities in this country have spent four hundred years holding opposite halves of the same answer, without a mechanism to bring them together.

ACE exists because that mechanism did not exist until someone built it. Not a new argument. Not a new appeal to a system that has had four centuries to respond to the old ones. A structure, deliberately engineered to join what history kept apart.

Native American nations hold sovereign land, territory protected by federal law, outside state taxation, outside municipal zoning, outside many of the legal mechanisms that have historically been used to destroy Black and Native institutions the moment they became powerful enough to matter. What they have lacked is the capital, the population density, and the financial infrastructure to convert that land into a self-sustaining economy.

Black Americans hold \$1.6 trillion in annual spending power, a growing professional and entrepreneurial class, and generations of scholarship, institution-building, and cultural production forged under conditions designed to make all of it impossible. What they have lacked is land, sovereign, protected, unchallengeable ground on which to build without asking permission and without fear of what has always come next.

This is not about one community being superior to the other. That framing would simply replicate the logic both communities are trying to escape. This is about two communities honestly naming their own gaps and recognizing that the right partner does not fill your weakness with their strength, they bring a weakness of a different kind, and together you eliminate both.

What follows is the honest structural analysis of why ACE is not only necessary but achievable. The conditions that made ACE necessary are the same conditions that make it possible. The weakness, the strength, the opportunity, and the threat are not abstract categories. They are the specific gaps, assets, and forces that exist in the world right now, that shape every design decision in the ACE Act, and that ACE was built to navigate without flinching.

## **Weakness**

Each community lacks what the other holds. Land without capital cannot develop. Capital without land cannot root. This is the gap ACE is built to close.

## **Strength**

The combination is not additive. It is exponential. Sovereign land plus community capital plus population equals the legal, territorial, and economic foundation for an independent, self-governing civilization. No external institution needs to grant it. No political climate can revoke it.

## **Opportunity**

The joining of these two communities creates something the United States has never seen and has never had to contend with: a legally protected, economically self-sustaining, culturally sovereign civilization built by the two peoples this country has spent the most effort trying to erase. The opportunity is not just survival. It is the construction of something permanent.

## **Threat**

The threat is twofold and must be named plainly. The first threat is inaction. For over 400 years, Black Americans have faced a sustained and documented campaign of extermination, not metaphorical, but literal: the destruction of Reconstruction, the massacre of Greenwood, the dismantling of every Black institution that grew powerful enough to threaten the status quo. Native Americans have faced the same campaign across 250 years: genocide, forced removal, the criminalization of language, the systematic theft of land. The threat of doing nothing is not stagnation. It is continuation of what has already been done. The second threat is attempting this and failing, which is why ACE has been designed with its predecessors specifically in mind, and why every legal protection, every sovereignty clause, and every gap-proofing provision in this framework exists.

ACE is the answer to both threats: the threat of inaction, and the threat of attempting this without the legal and sovereign architecture to make it permanent. Not a movement. Not a petition. A civilization, built by the people it is built for, on ground no one can take. The first place in American history where true freedom, liberty, and justice for Black Americans is not a demand directed at a system built to deny it, but the founding condition of the ground beneath their feet.

*Léandre Poplus, Founder*

## THE VISION

**The Alliance for Collective Empowerment (ACE)** is a 25-year initiative to establish a network of self-governing, self-sustaining cities for Black and Native American communities on tribal land across the United States protected by tribal sovereignty law, funded by community capital, and governed by a constitutional framework designed to last generations.

ACE is not a program. It is not a nonprofit initiative. It is not a political campaign. It is the architectural blueprint for an independent civilization with its own cities, schools, hospitals, economy, and governing constitution built by two of the most historically dispossessed peoples in American history, for themselves, on their own terms.

**ACE has been designed with its predecessors in mind.** The destruction of the Freedmen's Bureau, the 1921 Tulsa Race Massacre of the Greenwood District, the dismantling of Five Civilized Tribes' pre-statehood governments, and the FBI's COINTELPRO program all form a documented pattern of resistance to Black and Native self-governance at its moment of greatest success. Every legal protection, constitutional provision, and sovereignty clause in this Act exists because ACE has studied that history and built accordingly.

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## THE STRATEGIC LOGIC

Native Americans hold tribal sovereign land territory not subject to standard U.S. municipal law, state taxation, or federal zoning. This is the legal and territorial foundation no other community in America can offer.

Black Americans hold \$1.6 trillion in annual spending power the investment capital, consumer base, and labor force that turns sovereign land into a functioning economy.

**Together: sovereign land + capital + population = an independent, self-governing civilization.**

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## THE SCALE

Target population

**32 million**

Black Americans (planning figure)

Pioneer population target

**300,000**

Phase 3 milestone - proof of concept

Phase 1 land commitment

**150,000 acres**

Released in 25,000-acre milestone increments

Long-range land footprint

**24M acres**

National network @ 0.75 acres/resident

Development horizon

**25 years**

Four phases

City network target

**10+ cities**

Across 5 regions, multiple tribal partners

## THE TRIBAL PARTNERSHIP

ACE's legal foundation is tribal sovereignty the most durable legal protection available on American soil, having survived 200 years of federal attempts to dismantle it. ACE enters 70-to-99-year land leases with federally recognized tribal nations under the HEARTH Act of 2012, operating as a Tribally Chartered Entity that extends sovereign immunity to all ACE community operations.

**Priority tribal targets:** The Navajo Nation (17.5M acres across Arizona, New Mexico, and Utah) is the primary scale partner. Secondary targets include the Cheyenne River, Pine Ridge, Standing Rock, and Wind River reservations for their land scale and sovereignty strength; and the Cherokee, Seminole, Muscogee, and Lumbee nations for their documented historical relationships with Black Americans.

**The Tribal Partnership Agreement includes a political transition protection clause:** ACE agreements survive changes in tribal leadership and bind all successor governments, with a mandatory 60-day consultation period before any amendment proceedings may begin. ACE retains tribal sovereignty counsel on 24-hour retainer for this specific contingency.

**Native agricultural sovereignty:** The ACE Agricultural Cooperative assigns not less than 51% equity to the Tribal Partner, recognizing tribal nations as the senior agricultural partners whose generational land knowledge is the foundation of ACE food production. The ACE Farming Academy trains Black farmers under tribal agricultural faculty.

## THE CONTINGENCY LAND CLAIM

ACE pursues tribal partnership as its primary and preferred path to land and territory. ACE also pursues, simultaneously and without dependency on any single party, a second and parallel path: a claim to 33.15 million acres of land already held by the United States as public land under the Bureau of Land Management, distributed across ten states. This figure is derived from a precise calculation: the current Black American population of approximately 47 million people, at 0.705 acres per person, equals 33.135 million acres, rounded to 33.15 million.

That per-person figure represents less than two percent of the 40-acre promise made per formerly enslaved person in 1865, applied to a population now more than ten times larger. This is land the federal government already holds and administers, not land that must be purchased, condemned, or taken from any private party, state, or tribal nation.

The claim is grounded in Special Field Order No. 15, the January 1865 promise of land to formerly enslaved Black Americans, revoked by President Andrew Johnson within the same year. 33.15 million acres represents less than eighteen and a half percent of that original promise, and less than two percent of 40 acres per person applied to the current Black American population. It is not the full restatement of what was promised. It is the minimum of what is owed. The legal theory rests on a continuity doctrine drawn from the Supreme Court's own language in *Dred Scott v. Sandford*, which recognized Native American tribes as a free and independent people governed by their own laws even while displacing them by force, while denying Black Americans any such standing at all. ACE does not claim present eligibility under existing federal tribal recognition law.

ACE instead calls on Congress to enact new, standalone legislation, modeled on the strength of the existing tribal trust framework but created through Congress's own independent authority, exactly as Congress has created new statutory remedies for other dispossessed peoples in the past.

This path runs alongside the tribal partnership track, never against it and never in place of it. ACE pursues both so that its mission never depends on the consent of any single party, and so that its pursuit of tribal partnership proceeds from dignity rather than necessity.

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#### **PHASE 1 Years 0-2 The Movement**

Form ACE legal entities. Recruit Native American Co-Chair the most urgent pre-institutional act. Forge tribal partnerships. Build national grassroots awareness. Secure founding capital.

#### **PHASE 3 Years 7-15 The City**

Scale to 300,000 pioneer residents. All municipal systems operational, governance, courts, hospital, university, media, economy.

#### **PHASE 2 Years 2-7 Territory**

Execute first Tribal Partnership Agreement. Break ground. Build water, energy, roads, homes. Launch clinic, school, ACE Credit Union, agricultural cooperative.

#### **PHASE 4 Years 15-25 Civilization**

10+ ACE cities nationally. ACE University system. \$50B+ annual economy. International trade with Africa and Caribbean. 32M served.

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## WHAT ACE BUILDS - THE FULL SYSTEM

### Housing

Lease-to-own on tribal land. ACE-CPF Housing Account builds equity automatically. Zero Homelessness Mandate.

### Education

K–12 through ACE University. BIE-approved. Pan-African and Indigenous studies at every grade. Tuition-free for ACE residents.

### Healthcare

Community clinic to full hospital. MediSave-funded no medical debt. Modern medicine co-equal with Indigenous and African traditional healing. Black maternal mortality eliminated by design.

### Governance

Three-branch government. ACE Community Assembly, Executive Council, Community Court. Co-equal tribal co-governance. ACE Governing Charter as supremelaw.

### Public Safety

Tiered peacekeeping. 60% of calls handled by unarmed community care responders. Restorative justice replaces incarceration as default.

### Food & Energy

80% halal food establishments. Swine prohibition on all ACE land and no swine as domestic pets. 51% tribal-majority agricultural cooperative. Full energy independence.

### Economy

ACE owns infrastructure layer. Free enterprise above it. Majority Lending Institution network. ACE Economic Solidarity Culture builds internal dollar circulation.

### Media & Culture

ACE Media Network: TV, podcast, print, streaming. ACE Culinary Archive preserves and evolves Black and Native food traditions. Community-owned narrative.

## THE ACE SOCIAL CONTRACT

**Every ACE resident who works and contributes is guaranteed four things by retirement age:**

- A home they own, free and clear, within ACE Territory funded through the ACE Community Provident Fund Housing Account
- A retirement income sufficient to live with dignity funded through the ACE-CPF Retirement Account
- Comprehensive healthcare for themselves and their dependents, without debt funded through the ACE MediSave Program and ACE Community Shield catastrophic pool
- Free education for their children, from early childhood through university within the ACE school system

***This is the promise ACE makes. Not as aspiration. As architecture.***

## COMMUNITY HEALTH POLICY

**ACE's food standards are grounded in public health evidence, not governance control or religious doctrine.**

Black Americans experience cardiovascular disease at 60% higher rates, diabetes at 77% higher rates, and hypertension at the highest rates of any demographic group all directly linked in peer-reviewed literature to diets high in processed pork and saturated fat. Native Americans experience type 2 diabetes at more than twice the national average. ACE corrects these outcomes by design on its own land.

**The Nation of Islam has made this precise health argument for over 80 years.** Elijah Muhammad's foundational work identified pork consumption as a primary driver of the chronic disease burden in Black communities' decades before the epidemiological literature confirmed it. ACE's food policy vindicates that long-standing position and welcomes the Nation of Islam as a founding partner in the ACE Food Health Initiative.

**The ACE Food Standards:** 80% of food establishments halal-certified. No swine of any kind raised, kept, or produced on ACE land. No swine kept as domestic pets. Pork available only in the 20% non-halal commercial tier, sourced exclusively from tribal farmers. All ACE institutions, schools, hospital, government buildings are pork-free without exception.

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## FUNDING PHILOSOPHY

**The U.S. government is responsible for the conditions ACE corrects.** Federal grants are a supplementary instrument never the foundation. ACE is funded by its community:

- Major donor investment from high-net-worth Black and Native American individuals structured as named infrastructure commitments, not charity. Tier 0 outreach: President Barack Obama, approached as Counselor before any other contact.
- Community Investment Bonds from \$500 entry point turning every community member into a co-owner
- ACE infrastructure enterprise revenue from energy, agriculture, broadband, and land leases the two-stream funding model that sustains community services without resident taxation
- ACE Economic Solidarity Culture: dollar circulation rate tracked and published quarterly; ACE Loyalty Network makes choosing ACE businesses economically advantageous in the immediate term

## THE POLITICAL DEMAND

**The Black American Tax Equity Initiative (BATEI)** demands two independent forms of federal tax relief, grounded in restitution rather than in tribal law. The federal track asks relief equal to one third of the two hundred fifty years of unpaid labor for which Black Americans were never compensated, real precedent for time-bound federal relief tied to a specific historical harm, as in the Civil Liberties Act of 1988 and the Katrina Emergency Tax Relief Act of 2005. This track stands on its own, independent of any tribal partnership.

A second, state-level track applies once ACE Territory is established, paralleling the protection tribal members already have under federal law for income earned on their own land. The two tracks are independent of each other: if one is challenged or delayed, the other still stands.

**The ACE Congressional Caucus** is ACE's independent political accountability network not a caucus within Congress but an external endorsement body that holds elected officials accountable to ACE communities and supports primary challenges when endorsed members drift. ACE forms all its own institutions. It does not partner with or channel its agenda through existing political caucuses whose institutional entrenchment has compromised their independence.

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## THE HUMAN RIGHTS DOCTRINE

The leaders who came before ACE had good intentions and extraordinary courage. ACE honors every one of them, but ACE disagrees with the foundation of their argument. They argued for civil rights. Civil rights are what a government extends to those it recognizes as fully human. Before you can demand equal rights under the law, you first have to be recognized as a person under the law. Black Americans were not. The Supreme Court said so explicitly in 1857, in *Dred Scott v. Sandford*, which held that Black Americans, free or enslaved, were not citizens and possessed no rights that the United States was bound to respect. That was not a civil rights violation. That was a human rights violation, the denial of personhood itself, and it happened before any civil rights framework existed to address it.

Human rights are not something a government grants. They are inherent. They exist under international law independently of what any single country's domestic system says. A government that violates them is accountable not only to its own courts but to the international community. ACE pursues its claim in both arenas simultaneously: through domestic legislation like BATEI and the ACE Sovereign Territory Act, and through the international human rights system, specifically the Committee on the Elimination of Racial Discrimination, which is currently drafting a General Recommendation on reparations for the historical injustices of chattel enslavement. These are not two separate strategies. They are two expressions of the same claim, pursued together because the harm was both domestic and international, and neither remedy alone is sufficient.

## THE FUTURE IS OURS. LET'S BUILD IT.

Léandre Poplus, Founder  
Alliance for Collective Empowerment



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# The ACE Act

Alliance for Collective Empowerment and Development

V4.0 - September 2026

Léandre Poplus, Founder

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## ALLIANCE FOR COLLECTIVE EMPOWERMENT ACT

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Twenty-Two Titles - 800+ Paragraphs - Complete Framework for Congressional Introduction, Coalition Review, and Tribal Endorsement

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**Title III Land, Territory, and Tribal Partnership** - 150,000-acre floor, milestone land release, tribal agreement requirements, priority engagement targets

**Title IV Funding and Economic Sovereignty** - Funding philosophy, community donors as primary, federal grants as supplementary, ACE Insurance and Risk Pool (Sec. 405)

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### COMMUNITY SYSTEMS

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**Title VIII Healthcare and Wellness** - MediSave Program, community clinic, hospital, maternal health, traditional healing, Phase 1 healthcare bridge, pharmacogenomics standard

**Title IX Governance and Legal Sovereignty** - Governing Charter cross-reference (full Charter in Title XX), four-track political strategy (BATEI, Contingency Land Claim, Congressional Caucus, Human Rights Doctrine)

**Title X Food Sovereignty, Agriculture, and Environmental Stewardship** - Agricultural cooperative, energy independence, seed banks

**Title XI Media, Culture, and Narrative Sovereignty** - ACE Media Network, cultural preservation mandate

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**Title XV The Black American Tax Equity Initiative** - BATEI - federal tax exemption for Black Americans in ACE zones, three pursuit tracks, political argument to Congress

#### **GOVERNANCE, POLITICS, AND OUTREACH**

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**Title XIX ACE Legislative and Governing Body** - Three-branch government, Tribal Co-Governance Council, contemporary governance with cultural integrity, five gap-proofing provisions

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**Title XXI The Tribal Partnership Contingency Framework** - 33.15-million-acre BLM land claim across ten states, the continuity doctrine, new ACE-specific sovereignty statute, parallel to Title III

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Preamble - Nine "WHEREAS" clauses including the Maryland Doctrine of Exclusion (1638)  
Closing Provisions - Sec. CP-1 Severability, Sec. CP-2 Ratification, Sec. CP-3 Call to Action

## STATEMENT OF PURPOSE

The founding documents of the United States did not accidentally exclude Black and Native people. They excluded us by design, with specificity, and in writing. We do not dispute that. What ACE disputes is the conclusion that the remedy lives inside the same architecture that produced the exclusion. The Constitution is not failing its purpose. It is fulfilling it. We are not surprised, and we are not waiting for it to change. Nor are we asking to change it. Every activist, every movement, every piece of legislation that came before ACE was built on the belief that the system could be made to serve the people it was designed to exclude, operating under the ideal that if enough laws changed, hearts would follow. Many of those efforts produced real and hard-won gains, yet no act of Congress, no Supreme Court ruling, no constitutional amendment has ever been able to legislate what lives in the hearts of the people responsible for enforcing it. The law can change. The man holding the law does not have to. Four hundred years of evidence has made that clear. It is not out of spite, and it is not out of hatred, that ACE builds outside the jurisdiction of a document that was never written with as much as a suggestion of serving our communities. It is out of the only honest conclusion the evidence permits: that the freedom, sovereignty, and dignity Black and Native people deserve cannot be granted by a system designed to deny it. Any system built to truly serve our communities must be built by those communities, on their own ground, under their own authority.

ACE was not conceived because someone had an idea. It was built because the evidence is now conclusive. In 1638, the Maryland Colony issued a public edict stating that “neither the existing Black population, their descendants, nor any other Blacks shall be permitted to enjoy the fruits of White society.” That edict was never repealed. ACE is the first organized answer to that document that does not ask the system’s permission to exist.

ACE is built on a precise observation: two communities, dispossessed by the same government, each hold exactly what the other lacks. Native American nations hold sovereign land, territory protected by federal law, outside state taxation, outside municipal zoning, outside many of the legal mechanisms that have historically been used to destroy Black and Native institutions the moment they became powerful enough to matter. What they have lacked is the capital, the population density, and the financial infrastructure to convert that land into a self-sustaining economy.

Black Americans hold \$1.6 trillion in annual spending power, a growing professional and entrepreneurial class, and generations of scholarship, institution-building, and cultural production forged under conditions designed to make all of it impossible. What they have lacked is land: sovereign, protected, unchallengeable ground on which to build without asking permission and without fear of what has always come next.

This is not about one community being superior to the other. That framing would simply replicate the logic both communities are trying to escape. This is about two communities honestly naming their own gaps and recognizing that the right partner does not fill your weakness with their strength. They bring a weakness of a different kind, and together you eliminate both.

A box of nails and a stack of timber. Each one formidable on its own terms. Neither one a building. Together, something neither could become alone.

**What follows is the structural analysis underlying this Act:** why it is not only necessary but achievable. The conditions that made this Act necessary are the same conditions that make it possible. The weakness, the strength, the opportunity, and the threat that follow are not abstract categories. They are the specific gaps, assets, and forces that exist in the world right now, and that this Act was built to navigate without flinching.

## **Weakness**

Absent this Act, each community's position remains structurally incomplete. Land without capital cannot be developed. Capital without land cannot be secured. Neither Native American sovereignty nor Black American economic capacity, standing alone, is sufficient to establish the self-governing civilization this Act creates. This Act exists to close that gap by statute, not by appeal.

## **Strength**

The union this Act establishes is not merely additive. Sovereign land, community capital, and population combine to form the legal, territorial, and economic foundation of an independent, self-governing civilization, a foundation that depends on no external institution for its grant and is subject to no political climate for its revocation. This Act codifies that foundation and the mechanisms that sustain it.

## **Opportunity**

This Act creates a structure the United States has never enacted and has never had to reckon with in law: a legally protected, economically self-sustaining, culturally sovereign civilization, established by statute and governed by the two peoples this country's legal history has most consistently sought to exclude. The opportunity this Act secures is not survival alone. It is permanence, made enforceable.

## **Threat**

Two threats inform every provision of this Act. The first is inaction. The documented historical record, Reconstruction's dismantlement, the destruction of Greenwood, two hundred fifty years of forced removal and land seizure against Native nations, establishes that the absence of legal and sovereign architecture has never meant safety. It has meant continuation. The second threat is attempting this construction without that architecture and failing for want of it. Every title, every sovereignty clause, and every gap-proofing provision in this Act exists because of that second threat.

This Act answers both. It is not a petition, and it does not request what it establishes. It is the legal instrument by which a civilization, built by the people it is built for, is secured on ground no external authority can revoke.

*Léandre Poplus, Founder*

## PREAMBLE

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WHEREAS, the history of the United States is inseparable from the systematic dispossession, subjugation, and marginalization of Black Americans and Native American peoples, two of the oldest and most foundational communities on this continent;

WHEREAS, Black Americans were forcibly brought to this land, subjected to centuries of chattel slavery, and thereafter subjected to legal apartheid, economic exclusion, mass incarceration, and the sustained denial of the generational wealth-building opportunities extended to other Americans;

WHEREAS, Native American peoples were subjected to genocide, forced removal, the destruction of sovereign governance, the criminalization of language and cultural practice, and the systematic theft of tens of millions of acres of ancestral land, land that remains, to this day, the legal and spiritual inheritance of tribal nations;

WHEREAS, both communities share a common inheritance of resilience, cultural depth, and collective wisdom that has survived every attempt at erasure, and that constitutes the spiritual and intellectual foundation upon which this Alliance is built;

WHEREAS, the complementary strengths of these two communities, tribal sovereignty as the legal and territorial foundation, and Black American population, spending power, and labor as the economic engine, create a unique and historic opportunity to establish self-sufficient, self-governing communities of unprecedented scale and purpose;

WHEREAS, the United States Government, through its legislative, executive, and judicial institutions, bears direct responsibility for the conditions from which the Alliance for Collective Empowerment seeks to provide remedy;

WHEREAS, this Act is not a petition. It is a declaration of organized, lawful, and sovereign intent grounded in existing federal law, tribal sovereignty doctrine, and the inalienable right of peoples to determine the conditions of their own lives;

WHEREAS, the history of the United States contains a documented and consistent pattern of organized resistance, legal, political, extrajudicial, and violent to Black and Native American self-governance, economic independence, and institutional power at the precise moment of their greatest success.

The destruction of the Freedmen's Bureau's nascent city-building projects, the 1921 Tulsa Race Massacre and destruction of the Greenwood District, the federal dismantling of Five Civilized Tribes' pre-statehood governments upon Oklahoma's admission to the Union, the FBI's COINTELPRO program targeting Black and Indigenous leadership organizations, and the federal termination policies that dismantled tribal sovereignty in the 1950s and 1960s constitute a pattern, not a series of coincidences. ACE is built with this pattern specifically in mind. Every legal protection, every constitutional provision, every sovereignty clause, and every gap-proofing measure in this Act exists because ACE has studied what happened to its predecessors and chosen to build accordingly;

WHEREAS, the exclusion of Black Americans from full participation in the economic, civic, and political life of this nation was not a byproduct of other policies or an inadvertent consequence of historical circumstance, but was the explicit, written, and deliberately enforced policy of the American colonial project from its earliest formation. In 1638, the Maryland Colony issued a public edict stating that neither the existing Black population, their descendants, nor any other Black people would be permitted to enjoy the fruits of White society. That edict, known as the Maryland Doctrine of Exclusion, was adopted by other colonies and extended by the Slave Codes of 1705, which required every institution, church, school, business, and level of government to enforce the economic and political subordination of Black people as mandatory public policy. That edict has never been formally repealed. No legislature has overturned it. No court has named it and declared it void. The conditions that Black Americans face in 2026, the wealth gap, the maternal mortality disparity, the mass incarceration, the political exclusion, are not evidence of a failure to progress. They are the documented, intended, and continuously enforced output of a system designed from its founding to produce exactly this result. ACE is the first organized, legal, civilization-scale answer to that document;

***NOW, THEREFORE, be it enacted:***

IN THE CONGRESS OF THE PEOPLE

# A BILL

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## TO ESTABLISH THE ALLIANCE FOR COLLECTIVE EMPOWERMENT AS A SOVEREIGN COMMUNITY DEVELOPMENT AND SELF- GOVERNANCE FRAMEWORK UNITING BLACK AND NATIVE AMERICAN COMMUNITIES

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### SHORT TITLE: THE ACE ACT

Submitted by the Founding Council of the Alliance for Collective Empowerment

*Complete Framework for Congressional Introduction, Coalition Review, and Tribal Endorsement*

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Submitted by

**Léandre Poplus**

**Founder - Alliance for Collective Empowerment**

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*“We are not asking for a seat at the table. We are building our own.”*

## TITLE I

### GENERAL PROVISIONS

#### Sec. 101. Short Title

This Act shall be known and may be cited as the “Alliance for Collective Empowerment Act” or the “ACE Act.”

#### Sec. 102. Purpose

The purposes of this Act are to:

1. Establish the Alliance for Collective Empowerment (ACE) as a structured, long-term framework for the development of self-governing, self-sustaining communities on tribal lands in partnership with federally recognized Native American tribes;
2. Create a legal and operational foundation that leverages tribal sovereignty as a shield against external governmental interference while channeling Black American economic power as the engine of community development;
3. Build a civilization-scale network of ACE communities serving Black and Native American populations across the United States, with a long-term population goal commensurate with the full Black American population of approximately 51 million persons;
4. Affirm the right of both communities to cultural integrity, economic sovereignty, civic self-determination, and freedom from the extractive systems that have historically governed their lives;
5. Establish permanent, replicable, and legally defensible structures for housing, education, healthcare, public safety, governance, food sovereignty, economic development, and cultural preservation within ACE territory.

#### Sec. 103. Definitions

As used in this Act:

**"ACE"** means the Alliance for Collective Empowerment, the organizing entity established under this framework.

**"ACE Territory"** means any parcel of tribal land leased to or co-developed with ACE under a long-term tribal land lease agreement executed pursuant to Title III of this Act.

**"ACE Community"** means any established residential, commercial, and civic settlement operating under the ACE Governing Charter within ACE Territory.

**"ACE Governing Charter"** means the foundational constitutional document ratified by the ACE Founding Board and the Tribal Co-Governance Council establishing the rights, responsibilities, and governance structures of ACE Communities.

**"Founding Board"** means the initial governing body of ACE, composed of Black American and Native American co-leaders, and comprising experts in law, medicine, engineering, finance, education, city planning, and community safety, as described in Title II.

**"Tribal Partner"** means any federally recognized Native American tribe that has entered into a formal Tribal Partnership Agreement with ACE for the co-development of ACE Territory.

**"Tribal Partnership Agreement"** means a legally binding agreement between ACE and a Tribal Partner establishing the terms of land use, co-governance, revenue sharing, and mutual benefit, executed pursuant to the HEARTH Act of 2012.

**"Majority Lending Institution (MLI)"** means a community-owned financial institution established under ACE governance to provide lending, investment, and financial services to ACE community members and enterprises. The designation "Majority" reflects the collective economic and demographic majority status of Black and Native American communities when considered together.

**"Majority Lending Program (MLP)"** means the structured community finance program administered through ACE's network of MLIs, providing home loans, business capital, cooperative investment, and emergency financial services to ACE residents and partners.

**"ACE Development Entity"** means the commercial development arm of ACE, organized as a limited liability company or tribal enterprise, responsible for land acquisition agreements, construction contracts, and economic development projects within ACE Territory.

**"ACE Sovereign Territory Act"** means the proposed standalone federal legislation described in Title XXI Section 2105 of this Act, to be introduced in the Congress of the United States through the ACE Congressional Caucus, establishing a sovereignty and trust-land equivalent framework for ACE Territory secured through the contingency land claim, modeled on the substance and permanence of the existing tribal trust framework but created through Congress's independent legislative authority outside the administrative acknowledgment process of 25 C.F.R. Part 83.

**"ACE Human Rights Commission"** means the institutional body established under Title XXII Section 2206 of this Act, accountable to the ACE Co-Governance Council and operating alongside the ACE Justice League, responsible for advancing ACE's collective human rights claim before international bodies, maintaining the ACE Human Rights Documentation Record, preparing submissions to international human rights mechanisms, and producing ACE's annual Human Rights Assessment.

**"Community Investment Bond"** means a financial instrument issued by ACE to community members and aligned investors, providing a structured pathway for individuals to invest in ACE infrastructure development at accessible entry points.

**"Co-Governance Council"** means the joint governing body comprising both ACE leadership and Tribal Partner representatives, responsible for all major decisions affecting ACE Territory.

**"Black American"** means any person of African descent whose ancestors were forcibly brought to the territory now comprising the United States as enslaved persons, or who descends from such persons, and who identifies as a member of the Black American community. For purposes of this Act, Black American is a political and civic designation, not solely a racial or ethnic one, reflecting a shared historical experience of legal subjugation, economic exclusion, and cultural dispossession under United States law.

**“Black American Tax Equity Initiative” or “BATEI”** means the two-track federal and state tax relief initiative established in Title XV of this Act. The federal track demands that Congress grant Black Americans a defined period of federal tax relief on income earned through ACE-chartered entities—a remedy for two hundred fifty years of unpaid labor, grounded in the same legislative tools Congress has already used to grant tax relief for documented harm: the Civil Liberties Act of 1988 and the Katrina Emergency Tax Relief Act of 2005. The state track demands that, once ACE Territory is secured, income earned by ACE members within ACE Territory receive the same state tax treatment tribal members already receive for income earned on their own reservation under *McClanahan v. Arizona State Tax Commission*, 411 U.S. 164 (1973). The two tracks are independent and severable: neither is contingent on the other, and the failure or delay of one does not affect the other. The full BATEI framework, including its legal strategy, political argument, and implementing regulations, is established in Title XV Sections 1501 through 1505.

**“Continuity Doctrine”** means the legal theory established in Title XXI Section 2103 of this Act, grounded in the Supreme Court’s own language in *Dred Scott v. Sandford*, 60 U.S. 393 (1857), that Black Americans are the continuation of a sovereign people whose political continuity was affirmatively and legally extinguished by deliberate acts of the United States Government, distinguishing their situation from that of tribal nations whose political continuity was disrupted but never formally extinguished, and providing the legal foundation for ACE’s claim to a new, ACE-specific congressional remedy.

## TITLE II

# FOUNDING STRUCTURE AND LEADERSHIP

### Sec. 201. Establishment of ACE

The Alliance for Collective Empowerment is hereby established as a dual-entity structure consisting of:

- ACE Inc., a 501(c)(3) nonprofit corporation organized to receive tax-exempt donations, apply for foundation and government grants, conduct public education and outreach, and coordinate the movement-building activities of ACE; and
- ACE Development LLC (or Tribal Enterprise equivalent), the commercial and development arm of ACE, which shall hold land lease agreements, manage construction projects, operate cooperative enterprises, and generate revenue in support of ACE community operations.

### Sec. 202. Founding Board Composition

The Founding Board of ACE shall consist of no fewer than twelve (12) members, structured as follows:

- Two (2) Co-Chairs, one Black American and one Native American, who shall serve as the joint executive leadership of ACE and co-preside over all Founding Board meetings and public representations;
- One (1) Chief Legal Officer, holding expertise in tribal sovereignty law and civil rights law;
- One (1) Chief Financial Officer, with demonstrated experience in community banking, impact investment, or cooperative finance;
- One (1) Chief Infrastructure Officer, a licensed civil or structural engineer with community development experience;
- One (1) Chief Health Officer, a licensed physician or public health professional with experience serving underserved communities;
- One (1) Chief Education Officer, an experienced educator with background in HBCU, tribal college, or culturally responsive education systems;
- One (1) City Planner, licensed in urban or regional planning;
- One (1) Community Safety Director, with expertise in restorative justice, law enforcement reform, or public safety administration;
- One (1) Director of External Affairs, with experience in political strategy, federal advocacy, or international relations;
- Two (2) At-Large Community Representatives, elected by ACE community members once the first ACE community is established.

### Sec. 203. Dual Leadership Principle

All co-chair and co-leadership positions within ACE governance shall be held jointly by one Black

American and one Native American representative. This principle shall be embedded in the ACE Governing Charter and shall not be waived, suspended, or amended except by unanimous vote of the Founding Board and ratification by the Tribal Co-Governance Council.

**Sec. 204. Founding Board Authority**

The Founding Board shall have authority to:

6. Ratify the ACE Governing Charter;
7. Approve Tribal Partnership Agreements;
8. Authorize the issuance of Community Investment Bonds;
9. Approve the ACE master development plan and all major amendments hereto;
10. Hire and terminate the leadership of each ACE department;
11. Establish and oversee all ACE subsidiary entities.

## TITLE III

# LAND, TERRITORY, AND TRIBAL PARTNERSHIP

### Sec. 301. Land Strategy

ACE shall pursue land access exclusively through long-term tribal land lease agreements with federally recognized Tribal Partners, executed pursuant to the authority granted to tribes under the HEARTH Act of 2012 (25 U.S.C. § 415(h)). ACE shall not seek to purchase tribal land in fee simple. The objective of this strategy is to utilize existing tribal sovereignty as the legal and territorial foundation of ACE communities without diminishing or compromising that sovereignty.

### Sec. 302. Site Selection Criteria

In evaluating potential Tribal Partnership sites, ACE shall consider the following factors:

- A minimum of one hundred fifty thousand (150,000) acres of tribal land committed to the ACE partnership at execution of the Tribal Partnership Agreement, released to active development in increments of twenty-five thousand (25,000) acres upon achievement of the milestone schedule established in Section 303(a). This acreage floor reflects ACE's long-range planning requirement: a civilization-scale community designed to accommodate up to thirty-two million (32,000,000) Black American residents across a national network of ACE cities requires a total national land footprint of approximately twenty-four million (24,000,000) acres, planned at a density of 0.75 acres per resident to avoid the concentrated urban density that replicates the conditions ACE is designed to escape. No single tribal partner is expected to provide this full footprint. The 150,000-acre Phase 1 commitment establishes the foundation upon which ACE's national replication strategy is built, with subsequent ACE city partnerships adding to the total footprint over the 25-year development horizon;
- Connectivity to regional supply chains, transportation corridors, and communications infrastructure, not proximity to a specific metropolitan area. Most tribal lands on ACE's priority target list are genuinely rural and remote, which is consistent with the civilization-scale development ACE envisions. What matters is not distance from a city but access: an ACE site 200 miles from a major city with highway access, broadband infrastructure, and viable freight logistics is more suitable than a site 40 miles from a city with no road or communications infrastructure. ACE shall commission a site connectivity assessment for each candidate location evaluating road access to regional freight networks, broadband availability or feasibility, nearest commercial airport, and supply chain access for construction materials and food distribution;
- Water access and climatic suitability for agricultural production and permanent residential habitation;
- Tribal council stability and formal ratification of the Tribal Partnership Agreement at the government level, not solely at the level of individual tribal leadership;

- Documented historical relationship or geographic proximity between the candidate tribe and Black American communities, with priority given to tribes with historical Freedmen or Afro-Indigenous populations.

### **Sec. 303. Tribal Partnership Agreement Requirements**

Every Tribal Partnership Agreement shall include, at minimum:

12. A milestone-based land release schedule pursuant to Section 303(a), under which the full 150,000-acre commitment is released to active development in six increments of twenty-five thousand (25,000) acres each, with each increment unlocked upon verified achievement of defined community development milestones, ensuring that land conveyance is commensurate with demonstrated progress and protecting the tribal partner from overcommitment before ACE has proven its capacity to develop responsibly;
13. A lease term of not less than seventy (70) years, with renewal options extending to ninety-nine (99) years, structured to exceed the maximum term of any mortgage, infrastructure bond, or development financing instrument by a minimum of thirty (30) years, ensuring that all ACE community financing is fully bankable and that no lender or bondholder faces lease expiration risk within the term of their instrument;
14. A revenue-sharing schedule by which the Tribal Partner receives a negotiated percentage of ACE enterprise revenue generated within ACE Territory;
15. A Co-Governance Council structure ensuring tribal representation in all major decisions affecting ACE Territory;
16. Provisions affirming that tribal sovereignty is not diminished, transferred, or waived by the Agreement;
17. An infrastructure investment commitment by ACE specifying minimum development milestones and timelines;
18. A cultural respect and integration protocol requiring ACE to formally incorporate the Tribal Partner's cultural practices, language preservation efforts, and land stewardship traditions into ACE community design;

Section 303(a) - Milestone-Based Land Release Schedule. The Tribal Partnership Agreement shall include the following milestone schedule governing the phased release of the 150,000-acre land commitment:

- **Milestone 1 - 25,000 acres:** Released upon execution of the Tribal Partnership Agreement and establishment of ACE's legal entities (501(c)(3) and ACE Development LLC).
- **Milestone 2 - 50,000 acres:** Released upon completion of Phase 2 core infrastructure serving a minimum of 5,000 residents: water system, energy grid, road network, and first residential phase operational.
- **Milestone 3 - 75,000 acres:** Released upon verified ACE community population reaching 10,000 residents in permanent residence within ACE Territory.

- **Milestone 4 - 100,000 acres:** Released upon ACE achieving operating revenue covering not less than eighty percent (80%) of the community services budget from internal sources, demonstrating economic self-sufficiency.
  - **Milestone 5 - 125,000 acres:** Released upon ratification of the ACE Governing Charter by the Constitutional Convention established under Title XX.
  - **Milestone 6 - 150,000 acres:** Released upon completion of Phase 2 in full, with infrastructure and community services supporting a resident population of not less than 25,000 persons.
19. A dispute resolution mechanism providing for binding tribal arbitration as the first resort for any conflict between the parties.
  20. A political transition protection clause specifying that the Tribal Partnership Agreement survives changes in tribal leadership and remains binding on all successor tribal governments. A mandatory sixty (60) day good-faith consultation period is required before any successor government may initiate formal amendment or termination proceedings.

During this period all ACE development activity continues uninterrupted, all ACE-CPF accounts and resident housing agreements remain in full effect, and any attempt to terminate or modify the Agreement outside the prescribed process triggers ACE's legal rapid-response protocol. ACE retains tribal sovereignty legal counsel on permanent retainer with a 24-hour response commitment for this specific contingency.

#### **Sec. 304. Priority Tribal Engagement Targets**

ACE shall prioritize initial tribal engagement with nations holding documented historical relationships with Black Americans, including but not limited to:

ACE shall prioritize initial tribal engagement with the following nations, selected on the basis of land holdings sufficient to support civilization-scale development, geographic distribution across the United States, and documented or potential alignment with ACE's mission. The target list reflects the reality that ACE's 24-million-acre long-range land requirement can only be met through multiple tribal partnerships across multiple regions over the full 25-year development horizon. No single tribe is expected or asked to provide the full footprint:

#### **Primary Tier - Scale Partners - Nations with land holdings sufficient for multi-city development**

- The Navajo Nation (Arizona, New Mexico, Utah): Approximately 17.5 million acres, the largest tribal land holding in the United States and the most consequential potential partnership available to ACE. The Navajo Nation's sophisticated tribal government, three-state footprint, and documented historical relationships with Black Americans make it the highest-priority engagement target. ACE recognizes that the Navajo Nation will require the most deliberate, patient, and culturally respectful engagement of any target on this list;
- Cheyenne River Reservation (South Dakota): Approximately 2.8 million acres of Lakota Sioux territory with strong sovereignty tradition and significant demonstrated capacity for independent economic development. The Cheyenne River Sioux Tribe's governance structure and political sophistication make it a viable early partnership candidate;

- Pine Ridge Reservation (South Dakota / Nebraska): Approximately 2.8 million acres, home of the Oglala Sioux Tribe. Pine Ridge carries deep historical significance in the American Indigenous sovereignty movement and represents a partnership with both symbolic power and substantial land capacity;
- Standing Rock Reservation (North Dakota / South Dakota): Approximately 2.3 million acres, home of the Standing Rock Sioux Tribe.

Standing Rock's demonstrated ability to mobilize national coalitions around sovereignty protection, evidenced by the 2016 Dakota Access Pipeline resistance, makes it among the most politically aligned potential partners for ACE's sovereignty-first strategy;

- Wind River Reservation (Wyoming): Approximately 2.3 million acres, shared by the Eastern Shoshone and Northern Arapaho Nations. Wind River's geographic position in the Mountain West and its significant underdeveloped land capacity make it a viable mid-phase partnership target;

### **Secondary Tier - Historical Alignment Partners - Nations with documented historical relationships with Black Americans**

- The Cherokee Nation (Oklahoma): The Cherokee Nation holds the largest tribal enrollment in the United States and a significant land base in northeastern Oklahoma. The Cherokee Freedmen issue, the unresolved question of citizenship rights for Black descendants of people enslaved by the Cherokee, represents both a historical complexity and a potential opening for a partnership grounded in shared acknowledgment of that history. ACE's approach to the Cherokee Freedmen community, handled with care and legal precision, could become the foundation of the most historically resonant partnership available;
- The Seminole Nation of Oklahoma and the Seminole Tribe of Florida: The Seminoles have the longest and most documented history of alliance with Black Americans of any tribal nation, having incorporated Black Seminoles, freedom-seekers and their descendants as full community members across generations. This history is the most direct precedent for what ACE proposes;
- The Muscogee (Creek) Nation (Oklahoma): Another of the Five Civilized Tribes with documented Freedmen history and a sophisticated governance structure capable of managing a complex long-term partnership;
- The Lumbee Tribe of North Carolina: While currently without federal recognition, a status ACE's legal team and political infrastructure shall actively support changing, the Lumbee hold a significant presence in eastern North Carolina and a long history of community solidarity with Black Americans in the South.

Nothing in this section shall preclude ACE from pursuing Tribal Partnership Agreements with any other federally recognized tribe that meets the criteria of Section 302 and expresses willingness to enter such an agreement.

## TITLE IV

### FUNDING AND ECONOMIC SOVEREIGNTY

#### Sec. 401. Funding Philosophy

The United States Government, through its legislative, executive, and judicial branches, bears direct and documented responsibility for the economic conditions that this Act seeks to remedy including but not limited to slavery, the Black Codes, convict leasing, redlining, urban renewal displacement, mass incarceration, and the termination and allotment policies imposed upon Native nations. Accordingly, while federal grant resources shall be utilized where available and strategically advantageous, they shall not constitute the primary funding foundation of ACE.

The primary funding of ACE shall derive from the community itself, from Black and Native American individuals of means who understand the historic nature of this project and choose to invest in it as an act of cultural, economic, and civilizational responsibility.

#### Sec. 402. Primary Funding Sources

ACE shall pursue the following primary funding sources, in order of priority:

21. Major donor investment from high-net-worth Black and Native American individuals and families, solicited through a direct engagement campaign targeting philanthropists, entertainers, athletes, executives, and entrepreneurs whose wealth derives from or is connected to Black and Native American communities;
22. Community Investment Bonds issued to ACE community members and allied investors at entry points accessible to a broad range of income levels, with minimum investment of five hundred dollars (\$500) and structured returns tied to ACE development milestones;
23. Cooperative enterprise revenue generated by ACE-owned agricultural operations, energy production, manufacturing cooperatives, and commercial enterprises within ACE Territory from the earliest possible phase of development;
24. Mission-aligned philanthropic foundations and impact investors whose funding criteria align with Indigenous sovereignty, Black economic empowerment, and community-controlled development.

#### Sec. 403. Supplementary Federal Funding

Federal grant and loan programs shall be treated as supplementary instruments that accelerate ACE development but do not define its pace or direction. ACE shall pursue the following federal programs as strategic supplements:

- U.S. Department of Housing and Urban Development: Indian Housing Block Grant (IHBG), IHBG-Competitive, and Indian Community Development Block Grant (ICDBG) programs;
- U.S. Economic Development Administration: Public Works and Economic Adjustment Assistance grants, Indigenous Communities Program, and Planning and Technical Assistance grants;
- U.S. Department of the Treasury CDFI Fund: Native American CDFI Assistance (NACA)

Program and Majority Lending Institution designation under the Majority Lending Program;

- U.S. Department of Energy: Tribal Energy grants and Justice40 Initiative eligible programs;
- U.S. Department of Agriculture: Rural Business Development Grants and Rural Development programs applicable to tribal land development.

ACE's acceptance of federal funding for any project shall not grant the federal government any governance authority, approval rights, or oversight control over ACE community operations beyond that which is required by the specific funding program's terms.

#### **Sec. 404. ACE Majority Lending Institution Network (Preview)**

ACE shall establish a network of community-owned financial institutions, known as ACE Majority Lending Institutions (MLIs), to serve as the primary banking and lending infrastructure for ACE communities. The MLI network provides home loans, business capital, cooperative investment financing, and personal financial services to ACE residents and enterprises at cooperative rates, keeping capital circulating within the community economy. The full MLI structure, governance, services, and the Phase 1 MLI Bridge mechanism for pioneer communities are established in Title XIV Sections 1405 and 1409 of this Act. The designation Majority reflects the collective economic and demographic majority status of Black and Native American communities when considered together.

#### **Sec. 405. ACE Insurance and Risk Pool**

ACE shall establish the ACE Insurance and Risk Pool, a wholly ACE-owned insurance mechanism serving every ACE member and ACE-affiliated enterprise, on ACE Territory and beyond it, structured as follows.

##### **PART I. PURPOSE AND RATIONALE**

Every ACE resident, enterprise, and cooperative carries risk: property risk, life risk, vehicle risk, and enterprise risk tied to agricultural, energy, and manufacturing operations. In the absence of an ACE-owned mechanism, that risk is carried by outside insurers, and the premiums ACE residents pay leave ACE Territory permanently. This is capital extraction by another name. It repeats, in miniature, the pattern this Act exists to end: money generated inside the community flowing out and never returning.

An ACE-owned insurance mechanism keeps that premium income inside ACE's own economy. It does not merely insure ACE, it capitalizes ACE. Held in reserve against future claims, premium income becomes investable capital long before it is ever paid out, the same principle that has allowed conventional insurers to become among the largest institutional investors in the world. ACE cannot allow that mechanism to exist only outside its own community.

##### **PART II. LEGAL FOUNDATION**

The ACE Insurance and Risk Pool is modeled on the precedent established by AMERIND Risk, a tribally owned, federally chartered insurance pool operating on a sovereign to sovereign basis across more than 400 federally recognized tribes.

AMERIND demonstrates that a tribally owned risk pool can operate lawfully outside state insurance regulation when it is formed by and for sovereign tribal entities, insuring tribal property and tribal members on tribal land.

This precedent defines both the opportunity and its limit. Sovereign immunity of this kind is territorial. It attaches to the land base and the governmental entity that holds it, not to individual members regardless of where they live. It shields the Pool from being compelled into state court or state regulatory jurisdiction without ACE's consent. It is not a blanket exemption from financial responsibility, and it carries no external regulator standing behind it the way state guaranty funds stand behind conventional insurers. What replaces external regulation is self-imposed discipline, addressed in Part V of this Section.

### **PART III. ONE POOL, ONE BOOK OF BUSINESS, DIVERGENT REGULATION**

The Pool is not limited to members who live on ACE Territory. ACE membership itself, wherever a member lives, works, or holds property, is what the Pool exists to protect. An ACE member who has not yet relocated to ACE Territory, or who maintains property, family, or enterprise interests outside it even after relocating, carries exactly the same risk this Section opens by naming, and is left exactly as exposed to outside extraction if the Pool does not reach them. Structuring the Pool as though only sovereign-land risk qualifies would abandon the majority of ACE's own membership to the outside insurers this Section exists to move away from, at the exact moment in ACE's history, the early Movement and Territory phases, when membership off ACE Territory will be largest.

The Pool underwrites one book of business: every ACE member and ACE-affiliated enterprise, wherever located. Coverage lines, reserve standards, and the reserve itself are not divided by location. What divides by location is regulatory authority, and only once sovereignty exists somewhere for that authority to attach to.

Until ACE holds sovereign standing recognized for insurance purposes on any parcel of ACE Territory, the entire Pool operates as a state-licensed carrier or domiciled captive, as described in Part II above but under conventional regulatory authority throughout. There is no sovereign track to diverge into yet, because sovereignty has not yet been extended anywhere for the Pool to operate under.

Once a Tribal Partnership Agreement extends sovereign insurance authority to the Pool over a given parcel, or ACE secures its own recognized sovereign status under Title XXI, regulation of the Pool's business on that parcel transfers to the sovereign authority established in Part II. Regulation of the Pool's business everywhere else, including on a Tribal Partner's land where sovereign authority has not been extended, and everywhere an ACE member lives or works off ACE Territory entirely, remains with the licensing state. This is not two insurance companies. It is one Pool, one reserve, and one float, answering to different regulators depending on where a given policy sits, exactly as a single company operating across state lines already answers to multiple state insurance departments without being multiple companies.

A member's coverage does not lapse or require replacement when sovereign status is extended over the parcel where they live, or when they relocate between a licensed-only parcel and a sovereign one.

The regulatory authority over that policy changes. The policy, the insurer, and the reserve behind it do not.

#### **PART IV. PHASED SCOPE**

The Pool is built in step with the four phases of development established in Title V of this Act, not launched all at once.

Phase 1, The Movement: ACE Development LLC and legal counsel design the Pool's charter, reserve requirements, and actuarial framework, and secure the state licensing or captive domicile needed to begin underwriting under Part III above. Because no ACE Territory yet exists at this phase, all underwriting in Phase 1 is licensed-carrier business, insuring ACE members wherever they currently live and work, the first premium stream into the Pool's reserve and float.

Phase 2, Territory: The Pool begins underwriting property and casualty coverage for ACE- owned infrastructure and pioneer housing built under the first Tribal Partnership Agreement, alongside continued licensed-carrier coverage for members not yet relocated. Coverage on newly established ACE Territory is limited to lines the Pool can responsibly reserve against at this scale, principally property, not yet life, auto, or enterprise coverage.

Phase 3, The City: As population scales toward the 300,000 pioneer target, the Pool expands into auto, expanded property and casualty, and cooperative enterprise coverage for ACE's agricultural, energy, and manufacturing operations, across both licensed and, where extended, sovereign authority. Reserve requirements scale with underwriting volume, reviewed at each expansion.

Phase 4, Civilization: Operating across a national network of ACE Communities, the Pool reaches the scale at which its reserve, actuarially sound and diversified across geography, regulatory authority, and risk type, becomes a material source of internally generated investment capital, addressed in Part VI below.

#### **PART V. RESERVE AND SOLVENCY STANDARDS**

Because no external regulator stands behind the Pool on sovereign business, the Pool imposes on itself standards at least as strict as those a state regulator would impose on a conventional insurer, and does not relax them merely because no regulator is present to enforce them. On licensed-carrier business, the Pool meets or exceeds the licensing state's own requirements as a floor, not a ceiling.

The Pool maintains actuarially determined reserves for every line of coverage it underwrites, calculated by independent, credentialed actuarial review, not by internal projection alone. The Pool maintains a solvency margin above minimum reserve requirements, reviewed annually and adjusted upward as underwriting volume grows. The Pool publishes an annual solvency report to the ACE Governing Charter's financial oversight body once that body is seated under Title XX, and to the Founding Board before it. No coverage line is offered until its reserve and solvency requirements are independently certified as adequate for the volume underwritten.

#### **PART VI. CONNECTION TO TITLE IV: THE FLOAT'S INVESTMENT CAPACITY**

This Part is the foundational economic purpose of the Pool, and the reason it belongs

beside, not apart from, this Title's other funding mechanisms. An insurer collects premiums before it pays claims. The interval between collection and payout, industry-wide, is called the float. A conventional insurer invests its float in outside markets, and the returns on that float, not underwriting profit alone, are what has built some of the largest pools of investable capital in the world. ACE's float, held instead inside ACE's own economy, becomes a second, internally generated source of Title IV development capital, standing alongside major donor investment, Community Investment Bonds, and cooperative enterprise revenue, without asking any donor, bondholder, or member for a dollar more than they already pay for coverage they need regardless. Because the Pool underwrites one book of business across both regulatory tracks established in Part III above, this float begins compounding in Phase 1, from the Pool's first licensed-carrier premiums, long before any sovereign land base exists to generate it.

The float's investment capacity is governed by three principles.

First, the float is invested inside ACE before it is invested outside it. Reserve funds not immediately required to meet claims are directed first toward ACE Majority Lending Institution capital, ACE Community Investment Bond purchases, and ACE cooperative enterprise financing, before any allocation to outside markets. This keeps every dollar of float compounding inside the same economy that generated it, reinforcing the MLI network under Section 404 and the Bond program under Section 402 rather than competing with them for capital.

Second, the float is invested only to the degree that solvency is never put at risk. The reserve and solvency standards of Part V above take precedence over the float's investment use in every circumstance. A claims-paying obligation is never subordinated to an investment return. The portion of the float available for investment is the portion in excess of certified reserve and solvency requirements, recalculated at each actuarial review, never a fixed or assumed percentage.

Third, the float's investment capacity grows with the Pool's underwriting base and is planned accordingly. As the Pool expands from Phase 1's licensed-carrier foundation through Phase 4's full national scope across both regulatory tracks, its float grows from a modest reserve into a material capital source in its own right. By Phase 4, at the underwriting scale implied by ten or more ACE Communities and their associated property, casualty, auto, and enterprise coverage, together with continued licensed-carrier coverage for members living and working beyond ACE Territory, the float becomes a standing, recurring source of development capital that requires no new fundraising, no new donor cultivation, and no new debt, capital generated by the simple fact of ACE members and enterprises insuring themselves through their own institution instead of someone else's.

This is the deeper argument for the Pool. It is not only a way to stop premium income from leaving ACE Territory. It is a mechanism by which the ordinary act of a pioneer family, or a member who has not yet relocated, insuring what they own becomes, at scale, a source of the very capital that builds the next home, the next school, and the next ACE Community.

## TITLE V

### COMMUNITY DEVELOPMENT - THE FOUR PHASES

#### Sec. 501. Overview of Phased Development

ACE community development shall proceed through four sequential and overlapping phases, each building upon the institutional, financial, and physical infrastructure established in the preceding phase:

##### PHASE 1 - THE MOVEMENT (YEARS 0–2)

- Establish ACE Inc. (501(c)(3)) and ACE Development LLC, the legal formation that converts ACE from a vision held by one person into a governed institution. Until these entities are formed, ACE exists only as an idea. Legal formation is the act that makes ACE real and survivable beyond any individual;
- Recruit and seat the Native American Co-Chair as the single most urgent pre-institutional act of Phase 1. This is the most consequential early hire in ACE history: the right Co-Chair opens every tribal council door and converts ACE from a Black American initiative seeking tribal partnership into a genuine Black-Native coalition from its founding moment. No tribal outreach shall be initiated until the Native American Co-Chair is in place. Following this appointment, retain tribal law counsel and complete the Founding Board;
- Initiate tribal engagement with priority nations identified in Section 304;
- Launch grassroots awareness campaign through town halls, HBCU partnerships, and community networks;
- Secure initial major donor commitments and begin Community Investment Bond program;
- Complete site selection and execute first Tribal Partnership Agreement.

##### PHASE 2 - TERRITORY (YEARS 2–7)

- Break ground on first ACE Community under the executed Tribal Partnership Agreement;
- Build foundational infrastructure in sequence: water systems, energy grid, roads, residential lots, first homes, core community services;
- Launch ACE agricultural cooperative, first MLI branch, and pilot commercial enterprises;
- Open Phase 1 ACE Freedom School (K–8) and vocational training program;
- Establish ACE Peacekeeping Corps, fire and EMS, and dispatch systems;
- Achieve community operational self-sufficiency by end of Phase 2.

##### PHASE 3 - THE CITY (YEARS 7–15)

- Scale first ACE Community toward a pioneer population target of not less than three hundred thousand (300,000) residents by the end of Phase 3. This figure reflects realistic migration modeling: mass voluntary relocation follows demonstrated success, not vision alone. Early adopters and ideological pioneers constitute the first cohort; the pragmatic majority relocates only after ACE has proven sustained operational performance.

ACE does not measure itself against the full 32 million addressable population in Year 15, it measures itself against 300,000 committed, housed, and economically integrated residents who constitute the proof of concept that drives national Phase 4 replication;

- Establish full municipal services including city governance, ACE Community Court, comprehensive healthcare system, and K–12 through university education;
- Launch ACE Media Network and cultural institutions;
- Diversify economic base across agriculture, technology, manufacturing, renewable energy, and cultural tourism;
- Begin development of second ACE Community under a new Tribal Partnership Agreement.

#### **PHASE 4 - CIVILIZATION (YEARS 15–25)**

- Operate a national network of not fewer than ten (10) ACE Communities across five (5) geographic regions;
- Establish the ACE University System with not fewer than three (3) accredited campuses;
- Develop international trade relationships with African, Caribbean, and Indigenous nations;
- Operate ACE as a recognized economic and political bloc with an annual economic output exceeding fifty billion dollars (\$50,000,000,000);
- Pursue formal recognition by the United Nations Permanent Forum on Indigenous Issues and aligned international bodies.

#### **Sec. 502. The Eight Systems: Organization of Titles VI Through XIII**

ACE's civilization-scale mission is organized around eight interconnected systems, each of which is given its own Title in this Act. Titles VI through XIII establish these systems in sequence. They are not independent programs. They are interdependent components of a single architecture, each designed to reinforce and sustain the others. The Eight Systems are:

Title VI: Education (K-12 through ACE University, accreditation, cultural integration). Title VII: Public Safety and Restorative Justice (Peacekeeping Corps, Community Court, jurisdictional sovereignty). Title VIII: Healthcare and Wellness (community clinic, hospital, maternal health, MediSave financing, Phase 1 bridge infrastructure). Title IX: Governance and Legal Sovereignty (external political strategy, four-track domestic and international framework). Title X: Food Sovereignty, Agriculture, and Environmental Stewardship (agricultural cooperative, energy independence, seed banks, food standards). Title XI: Media, Culture, and Narrative Sovereignty (ACE Media Network, cultural preservation). Title XII: Global Alliances and Expansion (African Union trade, Caribbean and Indigenous alliances, national replication). Title XIII: Community Wealth and Health Security (ACE Community Provident Fund, Zero Homelessness Mandate, ACE Social Contract).

The phase timeline established in Section 501 governs the sequence in which these systems are built. Not all eight systems are fully operational in Phase 1. The phased development schedule in Section 501 specifies which components of each system are activated at each phase milestone.

The full Eight Systems architecture reaches complete operation at Phase 4 civilization scale. Each system's Title describes both the full Phase 4 vision and the Phase 1 through Phase 3 steps required to reach it.

### **Sec. 503. The Principle of Service Permanence in Transitional Infrastructure**

ACE is built on sovereign ground that does not yet exist, for a population that has not yet arrived, through infrastructure that will be constructed over a twenty-five year development horizon. The gap between the day the first pioneer arrives and the day the last permanent building opens is not a period of partial commitment. It is a period of full commitment delivered through transitional means. This Section establishes the design principle that governs all three Phase 1 bridge systems, healthcare, banking, and education, across every ACE city launch.

The Principle of Service Permanence holds that the permanence of an ACE service commitment is measured by the quality and consistency of the service delivered, not by the permanence of the structure in which it is delivered. A child receiving instruction in an ACE modular classroom is receiving the full ACE education commitment. A pioneer receiving care in a mobile clinical unit is receiving the full ACE healthcare commitment. A resident opening an account at a modular MLI branch is a full member of the ACE financial system. The modular unit is not a lesser version of what ACE promises. It is the full promise, housed temporarily while the permanent structure is built on the same land where the unit stands.

This principle has three operational implications that govern every bridge section in this Act. First, every modular and mobile unit is deployed on the parcel designated in the ACE master development plan as the permanent location of the facility it anticipates. The modular classroom is placed on the future school site.

The mobile clinical unit is placed on the future clinic and hospital campus. The modular banking unit is placed on the future MLI branch site. The physical footprint of the permanent institution begins on the day the transitional unit arrives, not on the day the permanent building opens.

Second, the standards that govern the permanent service govern the transitional service equally. The same curriculum that will be taught in the permanent ACE school is taught in the modular classroom from the first day of instruction. The same healthcare protocols that will govern the permanent ACE clinic govern the mobile clinical unit. The same financial products and cooperative principles that will define the permanent MLI govern the modular banking unit. There is no reduced standard, no provisional curriculum, and no interim-grade service delivery in ACE Territory at any phase.

Third, the transitional infrastructure is designed for the network, not for the individual city. Modular classrooms, mobile clinical units, and modular banking units rotate through the ACE national network as each city's permanent facilities come online. The fleet is purchased once, at the network level, and redeployed continuously as the replication cycle advances. This means the capital cost of transitional infrastructure is not a per-city expense. It is a one-time network investment that serves every city ACE launches, from the first to the last. The Principle of Service Permanence and the rotational fleet model together ensure that no ACE pioneer, in any city, at any phase of development, ever goes without healthcare, banking, or education from the day they arrive.

## TITLE VI

### EDUCATION SYSTEM

#### **Sec. 601. ACE Education Framework**

ACE shall establish a comprehensive, sovereign education system spanning early childhood through doctoral study, governed by the ACE Chief Education Officer and the Education Committee of the Founding Board. All ACE educational institutions shall be grounded in three co-equal philosophical pillars: cultural identity, economic empowerment, and civic leadership.

#### **Sec. 602. Cultural Integration Mandate**

Pan-African and Indigenous history, language, art, and governance traditions shall not be taught as elective or supplementary subjects. They shall be integrated as foundational lenses through which all academic subjects are taught, from kindergarten through doctoral study. This mandate shall be embedded in the ACE Governing Charter and protected from any accreditation condition that would require its removal or marginalization.

#### **Sec. 603. Education Tiers**

The ACE education system shall comprise the following tiers:

25. Early Childhood (Kindergarten through Grade 3): Identity formation, oral tradition, land-based learning, numeracy through community context, and introduction to Native language and African diaspora languages;
26. Elementary (Grades 4–6): Deepened academic rigor with economic and civic framing; project-based learning connected to ACE community operations; cultural history from primary sources;
27. Middle School (Grades 7–9): Track introduction across STEM and environment, business and finance, arts and media, civic and law, and health and wellness; mandatory Grade 8 community apprenticeship;
28. High School (Grades 10–12): Advanced coursework aligned with national accreditation standards and ACE cultural curriculum; dual enrollment with ACE University; senior capstone community project; 200-hour community service requirement;
29. ACE Vocational and Trade Institute: Two-year post-secondary programs in solar and energy systems, construction, agriculture, cybersecurity, community health, media production, culinary enterprise, and other trades essential to ACE infrastructure;
30. ACE University System: Accredited undergraduate and graduate programs in law, medicine, business, engineering, education, African and Indigenous studies, media and arts, and environmental science.

#### **Sec. 604. Accreditation Strategy**

ACE shall pursue educational accreditation through the following phased approach:

- K–12 institutions shall seek Bureau of Indian Education (BIE) approval as tribally chartered schools, which provides federal recognition and curriculum flexibility without subjecting ACE schools to state department of education oversight;
- K–12 institutions shall simultaneously pursue regional accreditation through AdvancED/Cognia to ensure national diploma recognition;
- ACE University shall operate initially under a formal degree-granting partnership with an established Historically Black College or University (HBCU), pursuant to which the HBCU grants degrees while ACE delivers instruction on ACE Territory;
- ACE University shall pursue independent regional accreditation through the Higher Learning Commission (HLC) or SACSCOC within seven (7) years of first enrollment;
- Individual professional schools within ACE University shall pursue relevant body accreditation (ABA, LCME, AACSB, ABET) as institutions mature.

### **Sec. 605. Phase 1 Education Bridge: Pioneer Learning Infrastructure**

The ACE education system established in Sections 601 through 604 of this Title describes the full, permanent education architecture ACE builds across the twenty-five year development horizon, from early childhood through doctoral study. That architecture requires permanent buildings, accredited institutions, full faculty, and an established student body. None of those conditions exist on the day the first pioneer family arrives. In accordance with the Principle of Service Permanence established in Title V Section 503, ACE operates a Phase 1 Education Bridge that ensures every pioneer child has access to a full ACE education from the day their family arrives, in transitional infrastructure deployed on the sites that will become ACE's permanent schools.

**A. Modular Classroom Fleet.** ACE shall deploy a fleet of modular classroom units to ACE Territory prior to the arrival of the first pioneer families. Each modular classroom unit is a fully equipped, climate-controlled prefabricated learning space capable of supporting instruction from early childhood through Grade 6 with appropriate furnishings, technology, library resources, and outdoor learning areas adjacent to each unit. A cluster of four to six modular classroom units constitutes a functional ACE elementary campus, capable of serving 80 to 150 students per grade cohort depending on cluster size and instructional model.

Modular classroom units shall be stationed on the parcels designated in the ACE master development plan as the permanent locations of ACE's future school campuses. As construction of permanent school buildings proceeds and instruction moves into permanent facilities, the modular units are redeployed to the next ACE city being launched. The capital cost of the modular classroom fleet is a one-time network investment that rotates through the replication cycle rather than a per-city expense, consistent with the rotational fleet model established in Title V Section 503.

Capital cost per modular classroom unit including structure, furnishings, technology, and connectivity integration: \$80,000 to \$150,000. A four-unit elementary campus cluster: \$320,000 to \$600,000 capital cost. Annual operating cost per four-unit campus including staffing, materials, maintenance, and technology licensing: \$800,000 to \$1.2 million.

These costs are included within the \$20 million per-city Pioneer Healthcare Endowment established in Title VIII Section 808, as named line items in that endowment's budget alongside the healthcare and banking bridge costs.

**B. Hybrid Delivery Model.** The modular classroom fleet delivers full in-person instruction for early childhood through Grade 6 from Phase 1 launch. For Grades 7 through 12 and vocational instruction, ACE operates a hybrid delivery model during the period before full secondary faculty and facilities are in place:

1. Grades 7 through 12: Core instruction delivered through the ACE Media Network distance learning platform, established in Title XI, supplemented by in-person sessions in the modular classroom units for laboratory work, project-based learning, and community apprenticeship hours. The ACE Media Network infrastructure required for community broadcasting doubles as the distance learning delivery system, eliminating duplicate infrastructure costs.
2. Vocational and Trade Institute: Hands-on vocational training delivered partially on-site in the existing construction, agriculture, and energy infrastructure of the ACE pioneer community itself. Pioneer construction workers, farmers, solar technicians, and healthcare workers are simultaneously the workforce building ACE and the faculty demonstrating the trades ACE is teaching. The community under construction is the vocational campus.
3. University-level instruction: Delivered remotely through the formal HBCU partnership established in Section 604 of this Title, using the ACE Media Network platform, until ACE University is established and accredited. Pioneer community members seeking university-level education are enrolled as students of the partner HBCU, receiving accredited degrees while physically residing in ACE Territory.

**C. Regulatory Path for Both Tracks.** ACE's education bridge must be legally operational and issuing recognized credentials from the first day of instruction. The regulatory path differs between the two territorial tracks:

4. Tribal Partnership Track: ACE schools operate as BIE tribally chartered schools under the authority established in Section 604 of this Title, providing federal recognition, curriculum flexibility, and diploma recognition from day one without subjecting ACE schools to state department of education oversight. This is the primary regulatory path and is initiated during the tribal engagement and cultivation phase established in Title XVII, before the first pioneer arrives.
5. Bureau of Land Management Contingency Track: On land secured through Title XXI where no tribal charter authority is available, ACE shall obtain either a state charter school authorization from the relevant state education authority, or a correspondence school and distance learning registration that permits ACE to operate legally, issue recognized diplomas, and enroll students from the first day of instruction.

ACE legal counsel shall identify and secure the appropriate regulatory authorization in each BLM-path state during the site preparation phase, before pioneer arrival.

No ACE city launches on the BLM path without a confirmed, legally operative education registration in place.

**D. Pioneer Faculty.** Phase 1 ACE schools require teachers from the first day. ACE shall recruit licensed educators as part of the pioneer cohort, offering housing, salary, and community equity participation equivalent to all other pioneer professionals. Priority recruitment targets teachers with experience in culturally responsive pedagogy, HBCU-trained educators, and educators from tribal school systems who bring existing knowledge of sovereignty-based education models. ACE shall establish a Pioneer Educator Fellowship through its HBCU partner, funded through the Pioneer Healthcare Endowment education line item, providing stipends for educators who commit to Phase 1 pioneer community service for a minimum of three years.

**E. The Replication Model.** The modular classroom fleet rotates through the ACE national network on the same cycle as the mobile clinical and modular banking units. Units deployed in City 1 during Phase 1 are redeployed to City 2 when City 1's permanent school buildings open, and to City 3 when City 2's permanent buildings open. The capital cost of the modular classroom fleet is therefore a single network-level investment. As each ACE city's permanent school facilities come online, the modular units are transferred and the Education Bridge for that city is formally closed. This transition is written into each city's master development plan as a milestone, not left to discretion.

**F. The Three Systems Together.** On the day the first ACE pioneer family arrives, four services are operational without exception: healthcare through the mobile clinical fleet established in Title VIII Sections 808 and 809; banking through the modular MLI units established in Title XIV Section 1409; education through the modular classroom fleet and hybrid delivery model established in this Section; and public safety through the Pioneer Peacekeeping Unit and modular safety station established in Title VII Section 706. All four deliver the permanent ACE service commitment in transitional infrastructure that will become permanent facilities on the same land. All four are funded within the \$20 million per-city Pioneer Healthcare Endowment. All four rotate through the national network as reusable fleet assets. All four are governed by the Principle of Service Permanence established in Title V Section 503: the permanence is in the service, not the structure.

## TITLE VII

### PUBLIC SAFETY AND RESTORATIVE JUSTICE

#### **Sec. 701. Public Safety Philosophy**

ACE public safety systems shall be grounded in the principle that safety is an act of community care, not an instrument of control. All ACE safety structures shall be designed to protect the community from harm, including the harm historically inflicted by conventional law enforcement systems upon Black and Native American communities. The ACE public safety model shall be characterized by tiered response, restorative justice, community accountability, and the full exercise of tribal jurisdiction to limit outside law enforcement access to ACE Territory.

#### **Sec. 702. ACE Peacekeeping Corps**

ACE shall establish a community-based Peacekeeping Corps comprising three response tiers:

31. Tier 1 - Community Care Responders (unarmed): Trained social workers, mental health professionals, and community mediators who shall handle the majority of all calls for service, including wellness checks, neighbor disputes, mental health crises, and non-violent community conflict;
32. Tier 2 - Peace Officers (armed, investigative): Trained officers who handle crimes in progress, serious threats, and situations escalated from Tier 1, with de-escalation as the primary tool and use of force as the last resort;
33. Tier 3 - Rapid Response Unit: Activated only for active threat situations, external interference, or sovereign protection incidents, requiring authorization from the ACE Safety Director or Tribal Co-Governance Council.

#### **Sec. 703. Restorative Justice System**

ACE shall establish a Restorative Justice Office administering three tracks of community accountability:

34. Community Circle: For interpersonal conflict and minor harm, facilitated by trained peacemakers using Indigenous circle practices;
35. ACE Community Court: For serious harm, heard by a panel of three ACE judges with outcomes including restitution, community service, counseling, and structured community separation, but not referral to the state carceral system as a first resort;
36. Federal Interface: For federal crimes subject to the Major Crimes Act, with ACE legal counsel managing all interaction with federal authorities and ensuring ACE community members receive full legal representation.

#### **Sec. 704. Community Safety Board**

An elected Community Safety Board of seven (7) members, four (4) Black American and three (3) Native American, shall hold full oversight authority over the ACE Peacekeeping Corps, including

the power to review all use-of-force incidents, approve the safety budget, hire and terminate the Safety Director, and initiate independent investigations. No active safety employee shall serve on the Community Safety Board.

### **Sec. 705. Jurisdictional Sovereignty**

ACE shall fully exercise the tribal jurisdiction available under federal law to limit the access of outside law enforcement agencies to ACE Territory. ACE shall maintain legal counsel on permanent retainer with a two-hour response commitment for any jurisdictional challenge. All interactions between outside government agencies and ACE personnel on ACE Territory shall be documented and reviewed by ACE legal counsel within 24 hours.

### **Sec. 706. Phase 1 Public Safety Bridge: Pioneer Safety Infrastructure**

The ACE Peacekeeping Corps, Restorative Justice System, and Community Safety Board established in Sections 701 through 705 of this Title describe the full, permanent public safety architecture ACE builds as the pioneer population grows and the institutional capacity to staff, train, and oversee a complete three-tier corps is established. In accordance with the Principle of Service Permanence established in Title V Section 503, ACE operates a Phase 1 Public Safety Bridge that ensures every pioneer community has trained safety personnel, communications infrastructure, and accountability structures operational from the day the first resident arrives. Public safety is not a service ACE builds toward. It is a commitment ACE keeps from day one.

**A. Pioneer Peacekeeping Unit.** ACE shall recruit, train, and deploy a founding Pioneer Peacekeeping Unit prior to the arrival of the first pioneer residents. The Pioneer Peacekeeping Unit is the operational precursor to the full three-tier Peacekeeping Corps and operates under the same philosophy, standards, and accountability principles established in Sections 701 through 704, applied to the scale and conditions of a Phase 1 pioneer community.

Minimum staffing at launch for a pioneer population of up to 5,000 residents: one Safety Director, four Tier 1 Community Care Responders, four Tier 2 Peace Officers, and two Tier 3 Rapid Response personnel available on call. As the pioneer population grows, staffing scales at a minimum ratio of one Tier 1 responder per 500 residents, one Tier 2 officer per 750 residents, and one Tier 3 responder per 2,500 residents, until the full Peacekeeping Corps structure is operational.

The Pioneer Peacekeeping Unit is recruited from the pioneer cohort itself wherever possible, prioritizing individuals with backgrounds in social work, mental health, community mediation, military service, or law enforcement who have demonstrated alignment with ACE's community care philosophy. ACE shall partner with tribal law enforcement training programs and existing restorative justice organizations to provide Phase 1 training before the first unit is deployed.

**B. Pioneer Safety Station.** ACE shall deploy a modular safety station to ACE Territory prior to pioneer arrival, sited on the parcel designated in the ACE master development plan as the permanent location of the ACE Public Safety headquarters. The modular safety station serves as the operational base for the Pioneer Peacekeeping Unit, housing the dispatch function, interview and mediation rooms, secure evidence storage, personnel facilities, and communications infrastructure.

It is the first structure on the land that will become the permanent ACE Public Safety campus. As the permanent campus is constructed, the modular station is decommissioned and its reusable components redeployed to the next ACE city launch.

Capital cost of the modular safety station including structure, communications equipment, vehicles, and equipment: \$300,000 to \$500,000. Annual operating cost including personnel, vehicles, maintenance, and training: \$1.5 million to \$2.5 million for a pioneer community of up to 5,000 residents. These costs are included within the \$20 million per-city Pioneer Healthcare Endowment as named line items.

**C. Communications and Dispatch Infrastructure.** ACE shall establish a community-wide communications and emergency dispatch system as Phase 1 infrastructure, integrated with the broadband network required for all Eight Systems operations. The dispatch system connects directly to the Pioneer Peacekeeping Unit, the mobile clinical units established in Title VIII Section 809, and the emergency transport fleet. A single emergency contact point for all safety, medical, and fire response is operational before the first pioneer arrives. Communications infrastructure capital cost: \$100,000 to \$200,000 at Phase 1 scale.

**D. Interim Community Safety Oversight.** The full elected Community Safety Board established in Section 704 requires a resident population sufficient to conduct community elections. Before that threshold is reached, interim oversight of the Pioneer Peacekeeping Unit is exercised by a three-person Interim Safety Council appointed by the ACE Founding Board, comprising one Black American representative, one Native American representative from the Tribal Partner where applicable, and one independent restorative justice practitioner. The Interim Safety Council holds the same oversight authorities as the permanent Community Safety Board: review of all use-of-force incidents, approval of the safety budget, and the power to place any Pioneer Peacekeeping Unit member on administrative leave pending investigation. The Interim Safety Council is dissolved and replaced by the elected Community Safety Board when the pioneer population reaches 2,500 registered ACE Community Members.

**E. Jurisdictional Sovereignty from Day One.** The jurisdictional sovereignty established in Section 705 of this Title applies from the first day of pioneer arrival, not from the date the permanent Peacekeeping Corps is fully staffed. ACE legal counsel retained under Section 705 is on engagement before pioneer arrival and is briefed on the specific jurisdictional framework applicable to ACE Territory under both the tribal partnership track and the BLM contingency track. On the tribal partnership track, the tribal jurisdiction framework established under the Tribal Partnership Agreement governs from the date of pioneer arrival. On the BLM contingency track, ACE legal counsel establishes the applicable federal and state jurisdictional parameters for the specific territory and ensures they are documented, posted, and communicated to all pioneer residents before arrival.

**F. The Four Systems Together.** On the day the first ACE pioneer family arrives, four services are operational without exception: healthcare through the mobile clinical fleet established in Title VIII Sections 808 and 809; banking through the modular MLI units established in Title XIV Section 1409; education through the modular classroom fleet established in Title VI Section 605; and public safety through the Pioneer Peacekeeping Unit and modular safety station established in this Section.

All four deliver the permanent ACE service commitment from day one, in transitional infrastructure built on the sites of their permanent successors, funded within the \$20 million per- city Pioneer Healthcare Endowment, governed by the Principle of Service Permanence established in Title V Section 503. ACE does not ask its pioneers to wait for the civilization to be built before they can live in it.

## TITLE VIII

### HEALTHCARE AND WELLNESS

#### **Sec. 801. Foundational Philosophy**

ACE healthcare is built on three foundational rejections of the American medical model. First: health is not a commodity. No ACE resident shall ever face a medical bill that threatens their financial survival; the ACE MediSave system pre-funds all care from payroll contributions. Second: Western medicine is not the only medicine. Indigenous and African healing traditions are co-equal care modalities within ACE facilities, not alternative therapies appended to a Western system. Third: the body cannot be separated from history. The documented health disparities facing Black and Native communities are the direct biological consequence of generational trauma, environmental racism, and medical neglect. ACE healthcare treats root causes, not only symptoms, and builds cultural trust as a clinical instrument.

#### **Sec. 802. ACE Healthcare Institutions - Phased Development**

ACE shall establish the following healthcare institutions in sequence:

##### **Phase 2 - ACE Community Health Clinic**

- A comprehensive primary care clinic, structured as a Federally Qualified Health Center (FQHC) or tribal equivalent, providing family medicine, internal medicine, pediatrics, geriatrics, dental, and vision services to all ACE residents regardless of ability to pay;
- A traditional healing suite co-located within the clinic, staffed by credentialed Indigenous and African diaspora healers practicing as primary care providers within the ACE health system;
- Integrated mental health services co-located at point of primary care, staffed by licensed therapists, trauma counselors, and peer support specialists;
- An ACE-operated pharmacy dispensing modern pharmaceuticals and approved traditional remedies, with a living contraindication reference maintained jointly by physicians, pharmacists, and traditional healers;
- Extended operating hours of not less than 7am to 9pm, seven days per week.

##### **Phase 3 - ACE Community Hospital**

- A 50–150 bed community hospital designed to Critical Access Hospital standards, with full emergency services, trauma capability, obstetric surgical suite, and specialty clinics in cardiology, oncology, endocrinology, and nephrology;
- A dedicated traditional healing wing within the hospital providing private, sacred space for ceremony, plant medicine, and spiritual healing practices;
- An ACE Birth Center connected by direct corridor to the obstetric surgical suite, providing midwifery-led birth services for low-risk deliveries with immediate transfer capability.

### Phase 3–4 - ACE Specialty Facilities

- ACE Elder Care Center: Community-owned long-term and assisted living for ACE elders, governed by the ACE Health Authority;
- ACE Rehabilitation Center: Physical therapy, occupational therapy, and substance use recovery programs, all trauma-informed and culturally grounded;
- ACE Medical Research Institute: A research arm attached to the ACE College of Medicine, focused exclusively on conditions and treatment modalities most relevant to Black and Native populations, with findings published openly and integrated into ACE clinical protocols.

### Sec. 803. Maternal and Birth Health

The Black maternal mortality crisis, in which Black women die in childbirth at three times the rate of white women, is a direct and documented consequence of implicit clinical bias, inadequate postpartum monitoring, and the absence of culturally trusted birth support. ACE declares the elimination of this disparity within ACE communities as a primary healthcare mandate, to be achieved through the following:

- Universal community doula assignment: Every ACE pregnant person shall be assigned a trained, salaried community doula from confirmation of pregnancy through twelve months postpartum. Doulas shall be Black or Native women residing within the ACE community, trained and certified through the ACE Vocational Health Institute;
- ACE Birth Center operations: Midwifery-led birth for all low-risk deliveries, with birth rooms designed to accommodate traditional birth practices, family presence, and ceremonial elements as determined by the birthing person and family;
- Enhanced postpartum protocol: Home visit within 48 hours of birth; clinic visits at 2 weeks, 6 weeks, and 3 months; doula contact weekly for the first 30 days postpartum;
- Traditional postpartum support: Community-organized postpartum care drawing on African and Indigenous cultural traditions of communal support for new mothers, formally integrated into the ACE healthcare postpartum plan.

### Sec. 804. Mental Health and Historical Trauma

ACE adopts the framework of historical trauma, the cumulative intergenerational psychological wound carried by communities subjected to sustained oppression, as a primary public health construct governing the design of its mental health system. Mental health services shall be co-located with primary care at every ACE health facility, with walk-in availability at all clinic operating hours. The ACE mental health system shall comprise:

- Licensed clinical services: Licensed therapists and psychiatrists providing culturally adapted evidence-based therapies, including Trauma-Focused Cognitive Behavioral Therapy and culturally adapted EMDR, with no session limits for ACE residents;
- Peer support specialists: Compensated community members with lived mental health experience integrated into clinical care teams;

- Healing circles: Facilitated community healing groups using Indigenous talking circle and African communal healing traditions, addressing grief, trauma, addiction, and community conflict;
- Substance use recovery: Medication-assisted treatment combined with culturally grounded healing circles, peer support, land-based healing programs, and the economic stabilization provided by ACE housing and CPF systems;
- School-based mental health: A full-time licensed therapist placed in every ACE school above Grade 3, with a clinical caseload not to exceed standards enabling genuine therapeutic work.

### **Sec. 805. Traditional Healing Integration Protocol**

ACE shall establish a formal Traditional Healing Integration Protocol governing the co-practice of Indigenous and African diaspora healing traditions alongside modern medicine within all ACE health facilities. The Protocol shall require:

- Patient preference disclosure at intake, with care teams assembled accordingly;
- Shared electronic health records documenting traditional healing consultations, herbal treatments, and ceremonial participation alongside clinical notes;
- A living contraindication reference database maintained jointly by ACE physicians, pharmacists, and traditional healers;
- Bidirectional referral: Physicians may refer patients to traditional healers; traditional healers may refer patients to physicians; neither referral direction is treated as secondary;
- Annual outcomes publication: ACE shall publish an annual Community Health Report tracking outcomes across both systems, informing continuous protocol refinement.

### **Sec. 806. Healthcare Workforce Development**

The long-term goal of ACE healthcare is full internal workforce self-sufficiency; a majority of ACE healthcare providers trained within ACE's own educational pipeline within fifteen (15) years of first community establishment. The workforce pipeline shall run from the ACE school health track (Grades 7–12) through the ACE Vocational Health Institute, through ACE University pre-health programs, and into the ACE College of Medicine and Healing. Graduates of the ACE College of Medicine who receive community scholarship funding shall fulfill a service commitment of not less than three (3) years within ACE healthcare facilities post-graduation. For the interim period, ACE shall prioritize recruitment from Historically Black Colleges and Universities with medical programs and from Indian Health Service alumni, and shall offer a compensation package including competitive salary, ACE community housing, full CPF enrollment, and a culturally affirming professional environment, designed to attract the most committed Black and Native healthcare professionals in the nation.

### **Sec. 807. Biomedical Research Equity and the ACE Pharmacogenomics Standard**

ACE adopts as a foundational clinical and ethical position the following documented scientific reality: Western pharmaceutical medicine was developed primarily through research conducted on genetically homogeneous laboratory animals and clinical trial populations that systematically excluded people of color, and its resulting drug formulations, dosing standards, and safety profiles cannot be presumed to apply equally or safely to Black and Native American patients.

## **The research pipeline problem**

The standard preclinical research model relies on the C57BL/6 inbred laboratory mouse, a genetically homogeneous strain created through selective breeding that does not represent the genetic diversity of wild mouse populations and bears no meaningful relationship to the genetic diversity of the human species. When pharmaceutical compounds are tested on this strain, efficacy and safety data is generated for a single, artificially uniform genetic background. This data is then extrapolated to human populations of profound genetic diversity without adequate validation across that diversity.

This problem is compounded at the human clinical trial stage. Mandatory inclusion requirements for racial and ethnic minorities in federally funded clinical trials remain inadequately enforced and insufficiently designed to produce statistically meaningful subgroup data. Analysis of FDA drug approvals consistently shows that Black patients represent a small fraction of clinical trial participants while bearing disproportionate burdens of the diseases being studied. The result is a pharmaceutical approval system that treats European-ancestry genetic profiles as the human default and everyone else as an afterthought.

## **The genetic basis of differential drug response**

People of African descent carry the greatest genetic diversity of any human population on earth a function of being the oldest continuous human population with the most accumulated genetic variation. This diversity has direct pharmacological consequences. The cytochrome P450 enzyme system, which metabolizes the majority of pharmaceutical drugs in the human body, exhibits well-documented genetic variants that differ significantly in prevalence between African-descent and European-descent populations. Standard pharmaceutical dosing is calibrated to the variant most common in European populations. When a Black patient receives a standard dose of a drug metabolized by a P450 variant they are statistically less likely to carry, the result may be underdosing, overdosing, or adverse reaction, not because the patient responded abnormally, but because the dose was never validated for their biology.

Similar documented pharmacogenomic differences affect cardiovascular medications, anticoagulants, psychiatric medications, and analgesics, drug classes central to managing the conditions most prevalent in both Black and Native American communities. ACE treats awareness of these differences not as specialized knowledge for subspecialists, but as foundational competency required of every ACE-trained healthcare provider.

## **The ACE pharmaceutical standard**

ACE shall establish a Pharmaceutical Review Board comprising ACE physicians, pharmacists, pharmacogenomics specialists, and traditional healing practitioners, charged with the following responsibilities:

- Reviewing every pharmaceutical in the ACE formulary against the available evidence base for efficacy and safety in Black and Native American patient populations specifically;
- Flagging any drug whose approval trial population was less than ten percent (10%) Black or Indigenous, or for which no published pharmacogenomic subgroup analysis exists, for enhanced monitoring and alternative consideration;
- Developing ACE-specific dosing guidance for high-use medications where population-specific pharmacokinetic data exists, in consultation with ACE University's College of

Medicine research faculty;

- Prioritizing traditional plant medicines and remedies with documented histories of use within Black and Indigenous communities as first-line or co-first-line options where clinical evidence supports their equivalence or superiority to pharmaceutical alternatives with inadequate validation in these populations;
- Publishing an annual ACE Formulary Report documenting the evidence basis for each formulary decision, accessible to all ACE residents and healthcare providers.

### **The ACE Medical Research Institute mandate**

The ACE Medical Research Institute, established under Section 802 of this Title, shall treat the generation of pharmacological and clinical evidence for Black and Native American populations as its primary research mission. Priority research areas shall include:

- Pharmacokinetic studies of commonly prescribed medications in Black and Native American populations, with particular focus on cardiovascular, metabolic, psychiatric, and analgesic drug classes;
- Comparative efficacy studies examining traditional plant medicines used within ACE's tribal partner communities and African diaspora healing traditions against pharmaceutical alternatives for conditions of high prevalence in both populations;
- Epigenetic research documenting the biological mechanisms through which historical trauma, chronic stress, and environmental racism manifest as measurable health disparities;
- Maternal health research focused on the identification of clinical interventions proven to reduce adverse birth outcomes in Black women specifically, including investigation of the role of provider bias, pain management protocols, and continuity of care;
- Documentation and clinical validation of Indigenous and African traditional medicine practices, building a peer-reviewed evidence base that supports their formal integration into ACE clinical protocols and their potential adoption by broader medical institutions.

### **ACE medical education standard**

Every physician trained at the ACE College of Medicine and Healing shall complete mandatory coursework in pharmacogenomics with specific attention to African and Indigenous population genetic variants, the history of racial exclusion in biomedical research, the documented limitations of standard dosing protocols for non-European populations, and the clinical evidence base for traditional healing practices used within ACE communities. This is not elective content. It is the core of what it means to practice medicine in an ACE community, and ACE physicians shall graduate as among the most rigorously informed practitioners in the nation on the intersection of genetics, race, and drug response.

### **Sec. 808. ACE MediSave Program**

The ACE MediSave Account, a sub-account of each resident's ACE-CPF, shall serve as the primary mechanism for financing healthcare costs within ACE Territory. The ACE MediSave Program shall function as follows:

- A defined percentage of each resident's ACE-CPF contribution shall be automatically allocated to their ACE MediSave Account for use in paying for approved medical services, prescriptions, and wellness programs within the ACE healthcare system;
- ACE shall establish an ACE Community Shield program modeled on Singapore's MediShield Life, as a community-owned catastrophic health insurance pool to which all ACE residents contribute a modest annual premium, ensuring that no resident faces financial catastrophe from serious illness, surgery, or long-term medical care, regardless of the balance in their individual MediSave Account;
- ACE MediSave funds shall only be drawn for services provided within the ACE healthcare system, ensuring that healthcare spending circulates within the community economy rather than flowing to external corporations;
- Preventive care, mental health services, maternal care, and traditional healing consultations shall be fully covered by the ACE MediSave Program at no additional cost, reflecting ACE's foundational commitment to health as a community right rather than a market commodity;
- ACE residents who are elderly, disabled, or otherwise unable to make contributions shall receive ACE MediSave coverage funded through a dedicated community subsidy pool, ensuring universal coverage regardless of employment status.

### **Sec. 809. Phase 1 Healthcare Bridge: Pioneer Medical Infrastructure**

The ACE MediSave system established in Section 808 of this Title is the permanent, destination healthcare financing structure for ACE communities. MediSave reaches full operational self-sufficiency when the ACE resident population reaches approximately 25,000 members with a minimum of eighteen months of founding contributions accumulated in the pool. Before that threshold is reached, ACE operates a dedicated Phase 1 Healthcare Bridge that ensures every pioneer has access to healthcare from the day they arrive, without depending on a contribution base that does not yet exist.

The Phase 1 Healthcare Bridge is not a temporary workaround. It is an intentional, planned infrastructure model that serves three simultaneous purposes: providing immediate healthcare access to pioneers, establishing the physical footprint of the permanent healthcare facilities that will follow, and demonstrating to prospective residents, donors, and tribal partners that ACE's healthcare commitment is operational from day one, not aspirational.

**A. Mobile Clinical Unit Fleet.** ACE shall deploy a fleet of fully equipped mobile clinical units to ACE Territory prior to the arrival of the first pioneer residents. Each mobile clinical unit is a self-contained primary care facility capable of delivering preventive care, chronic disease management, acute care, diagnostic services, pharmacy dispensing, telehealth consultation, and maternal health services.

Each unit is staffed by a physician or nurse practitioner, a registered nurse, a medical assistant, and a community health worker trained in the cultural and historical health context of ACE communities.

Mobile clinical units shall be stationed on the parcels designated in the ACE master development plan as the permanent locations of ACE's future community clinics and hospital campus. This is not incidental. The mobile unit is the first structure on the land that will become the permanent medical facility. As construction of permanent buildings proceeds and clinical services move into permanent facilities, the mobile units are redeployed to the next ACE city being launched. The capital cost of the mobile unit fleet is a one-time network investment that rotates through the replication cycle rather than a per-city expense.

Fleet sizing per pioneer city: ACE shall deploy a minimum of four fully equipped mobile clinical units per pioneer city at launch, sufficient to serve a Phase 1 pioneer population of up to 15,000 residents. As population grows beyond 15,000, additional units are added at a ratio of one unit per 3,500 additional residents until the permanent community clinic is operational. Capital cost per unit: \$1 million to \$1.2 million. Annual operating cost per unit including staffing, supplies, maintenance, and pharmacy: \$1.5 million.

**B. Emergency Transport and Trauma Access Agreements.** For medical emergencies requiring capabilities beyond the mobile clinical units, ACE shall establish, prior to the arrival of the first pioneer residents, the following transport and access agreements:

6. A dedicated air ambulance on-call agreement with a licensed helicopter emergency medical service provider, providing guaranteed response time coverage for ACE Territory. Annual contract cost: \$1 million to \$1.5 million per city.
7. A ground ambulance fleet of not fewer than three fully equipped emergency medical vehicles stationed within ACE Territory, staffed at all times by licensed emergency medical technicians. Capital cost per vehicle: \$200,000 to \$250,000. Annual operating cost per vehicle including staffing, maintenance, and supplies: \$350,000.
8. Preferred access agreements with the nearest regional trauma center and Level 1 hospital outside ACE Territory, establishing ACE as an institutional patient with pre-negotiated rates, pre-approved transfer protocols, and dedicated liaison contacts. On the tribal partnership path, this agreement shall include Indian Health Service facilities and tribal clinics accessible to ACE residents. On the Bureau of Land Management contingency path, where no tribal facilities exist in proximity, ACE shall negotiate with the nearest regional hospital system and shall factor proximity to emergency medical infrastructure into the site selection criteria established in Title III Section 302.

**C. Telehealth as Primary Care Layer.** ACE's broadband infrastructure, required for community operations across all Eight Systems, simultaneously enables a robust telehealth primary care system from Phase 1 forward. Telehealth delivers primary care consultations, mental health and historical trauma counseling, chronic disease management, medication management, and pediatric care to every ACE resident regardless of proximity to a mobile clinical unit. ACE shall contract with a telehealth physician network at launch, providing 24-hour access to licensed physicians for all registered pioneer residents. Annual telehealth network contract cost: \$1 million to \$1.5 million per city at Phase 1 population scale.

**D. The Pioneer Healthcare Endowment.** ACE shall establish the Pioneer Healthcare Endowment as a dedicated, restricted capital fund administered by the Founding Board, separate from the ACE Community Provident Fund and the general operating budget. The Pioneer Healthcare Endowment exists solely to fund healthcare delivery during the period between pioneer arrival and MediSave self-sufficiency.

Launch funding target per pioneer city: \$20 million. This figure covers the capital cost of the mobile clinical unit fleet and emergency transport vehicles, the first two years of operating costs for all Phase 1 healthcare infrastructure, the telehealth network contract, emergency transport agreements, and a contingency reserve of approximately 20 percent for unforeseen medical costs, equipment failure, and population growth above projections. The \$20 million per-city figure is calibrated to 2026 dollars and shall be adjusted for inflation in each subsequent city launch.

The Pioneer Healthcare Endowment is seeded through the Major Donor Initiative established in Title XIV Section 1408. Healthcare infrastructure is a named funding priority in all Tier 0 and Tier 1 donor conversations. The endowment is presented to donors not as a charitable healthcare fund but as the capitalization requirement for ACE's medical infrastructure, equivalent in concept to the capital reserve requirement for a new bank or the equipment capitalization of a new hospital system. No pioneer city is launched without the Pioneer Healthcare Endowment for that city fully committed.

Full endowment target across the 25-year development horizon: \$500 million, sufficient to fund healthcare bridge infrastructure for all cities in the ACE national network from their respective launch dates through the point at which MediSave reaches self-sufficiency in each city. As MediSave matures in established cities, the operating costs for those cities' bridge infrastructure are retired and the endowment's resources are concentrated on the newest cities entering the replication cycle.

**E. The Replication Model.** The Phase 1 Healthcare Bridge infrastructure is designed for replication across the ACE national network, not individual construction in each city. The mobile clinical unit fleet rotates through the network: units deployed in City 1 during Phase 1 are redeployed to City 2 when City 1's permanent clinic opens, and to City 3 when City 2's permanent clinic opens. Emergency transport vehicles follow the same rotation. The capital cost of the fleet is therefore a network-level investment, not a per-city cost.

As each ACE city's permanent healthcare facilities come online, the transition follows a defined sequence: mobile clinical unit services shift from primary care delivery to supplementary and outreach functions; MediSave assumes primary financing responsibility; the Pioneer Healthcare Endowment allocation for that city is formally closed; and the mobile units and transport assets are transferred to the next city launch. This sequence is written into each city's master development plan as a milestone, not left to discretion.

**F. MediSave Phase-In Threshold.** MediSave, as established in Section 808 of this Title, is activated as the primary healthcare financing system for a given ACE city when both of the following conditions are met: the city's resident population has reached 25,000 registered ACE Community Members; and the aggregate MediSave pool for that city has accumulated not less than eighteen months of founding contributions from registered members.

Until both conditions are met, the Pioneer Healthcare Endowment remains the primary funding source for healthcare in that city and MediSave operates in supplementary accumulation mode, building the pool that will assume full responsibility at the threshold date.

## TITLE IX

# GOVERNANCE AND LEGAL SOVEREIGNTY

### **Sec. 901. The ACE Governing Charter (Cross-Reference to Title XX)**

The ACE Governing Charter is the supreme governing document of every ACE community, established in full in Title XX of this Act. Title XX sets forth the Charter's status as supreme authority over all ACE legislation and governance, the ACE Bill of Rights enforceable against every branch of ACE government, the foundational constitutional principles that cannot be amended without supermajority ratification, the relationship between the Charter and external law, and the Constitutional Convention process through which the Charter is drafted and ratified. The Charter is established in Title XX, not in this Title, so that it is presented to the reader in sequence with the full governance structure established in Titles XVI through XIX that the Charter governs. Sec. 902 of this Title addresses ACE's external political strategy, which is a separate matter from the internal constitutional framework established in Title XX.

The Charter is sequence-locked: it cannot be drafted until twenty-four months after the execution of the first Tribal Partnership Agreement, per Title XX Section 2005. This sequencing is intentional. The Charter governs ACE Territory that does not yet exist, and it must be ratified by a Constitutional Convention that includes both ACE community members and Tribal Co-Governance Council representatives. Drafting it before those parties exist would produce a document that binds people who had no voice in writing it. ACE does not do that.

### **Sec. 902. External Political Strategy: The Four-Track Framework**

ACE shall pursue a coordinated external political strategy designed to protect ACE sovereignty, advance the legal and policy interests of both Black and Native American communities, and expand the conditions necessary for ACE's long-term success. This strategy shall include:

- Cultivation of relationships with sympathetic members of the United States Congress and state legislatures;
- Coalition building with established civil rights organizations, Indigenous rights organizations, and international human rights bodies;
- Pursuit of formal recognition and standing before the United Nations Permanent Forum on Indigenous Issues;
- A public communications and media strategy coordinated through the ACE Media Network. ACE shall additionally prepare and maintain, on permanent retainer with its legal counsel, companion legal briefs pre-arguing the strongest counterarguments to ACE's three most legally challengeable provisions: the Black American Tax Equity Initiative established in Title XV; the jurisdictional sovereignty claims established in Title XX; and the ACE Pharmaceutical Review Board's authority to override standard pharmaceutical protocols established in Title VIII, Section 807. These briefs are updated annually and ready to deploy within 48 hours of any legal challenge. ACE does not wait to be challenged to prepare its defense.

ACE's external political strategy operates simultaneously across three domestic tracks and one international track, each established in detail in the Titles that follow this one. This Section serves as the coordinating framework that ties those tracks together and ensures that each reinforces the others rather than competing with them.

**Domestic Track 1: The Black American Tax Equity Initiative.** Title XV of this Act establishes ACE's demand that Congress extend to Black Americans the same federal tax exemption it has already extended to tribal members, applying a principle already accepted to a people it has not yet been applied to. This track is pursued through the ACE Congressional Caucus established in Title XVI and through the three pursuit tracks defined in Title XV: legislative advocacy, legal strategy, and political argument.

**Domestic Track 2: The Contingency Land Claim.** Title XXI of this Act establishes ACE's parallel, non-tribal-dependent path to sovereign territory through a congressional land claim to 33.15 million acres of existing Bureau of Land Management public land across ten states, to be secured through the ACE Sovereign Territory Act described in Title XXI Section 2111. This track runs simultaneously with and independent of the tribal partnership strategy of Title III, ensuring that ACE's mission never depends on the consent of any single party.

**Domestic Track 3: The ACE Congressional Caucus and Institutional Infrastructure.** Title XVI of this Act establishes the ACE Congressional Caucus as an independent external endorsement body, the ACE PAC, the ACE Justice League, and the full institutional ecosystem through which ACE's political interests are represented at every level of American governance. These institutions are ACE's own, independent of all existing political caucuses and party structures, accountable only to ACE communities and the ACE Governing Charter.

**International Track: The Human Rights Doctrine.** Title XXII of this Act establishes ACE's claim before international human rights bodies, grounded in the principle that civil rights are downstream of human rights, and that the violations visited upon Black Americans constitute violations of international human rights law cognizable before international bodies independently of and in addition to their status as domestic civil rights violations. The ACE Human Rights Commission established in Title XXII coordinates this international track with the three domestic tracks to ensure that a single, consistent historical and legal narrative is presented in every forum simultaneously.

**The Coordinating Principle.** Each of these four tracks strengthens the others. The domestic legislative argument for BATEI is strengthened when the same historical record is simultaneously being cited in an internationally recognized human rights process. The international human rights claim is strengthened when ACE has simultaneously pursued domestic remedies and demonstrated their structural inadequacy. The contingency land claim is strengthened when its legal foundation, the Continuity Doctrine grounded in *Dred Scott v. Sandford*, is being argued simultaneously before Congress and before international human rights bodies. The Congressional Caucus is strengthened when it can point to an active international human rights proceeding as evidence that ACE's claim has reached beyond the domestic political system. ACE coordinates the timing, documentation, and public communication of all four tracks through the ACE Policy Institute in partnership with the ACE Human Rights Commission and the ACE Congressional Caucus.

## TITLE X

# FOOD SOVEREIGNTY, AGRICULTURE, AND ENVIRONMENTAL STEWARDSHIP

### Sec. 1001. The Native Agricultural Sovereignty Principle

Native American tribal nations are not passive land providers in the ACE food and agricultural system. They are the senior partners. The agricultural knowledge held by ACE's tribal partner nations developed across generations of direct relationship with the specific land, climate, water systems, and ecological conditions of their territories is the foundational resource upon which ACE's food sovereignty is built. ACE formally recognizes this knowledge as a form of institutional expertise equivalent in stature to academic agronomy and structures the ACE Agricultural Cooperative to reflect this recognition through elevated tribal equity stake, formal knowledge-sharing authority, and a teaching role that positions tribal agricultural leaders as the primary educators of aspiring ACE farmers.

This is not a gesture of cultural respect, though it is that too. It is a strategic recognition that the tribal nations on ACE's priority engagement list have been managing livestock operations, dryland farming, and sustainable land stewardship on these exact territories for far longer than any external agricultural institution. The Navajo Nation operates one of the largest sheep and cattle ranching enterprises in the American Southwest. The Lakota nations of the Dakotas have maintained sophisticated bison management relationships with the Great Plains ecosystem for centuries. The Three Sisters agricultural system, corn, beans, and squash grown in mutually beneficial combination, developed by Haudenosaunee and other nations is among the most productive and sustainable intercropping systems ever devised. ACE inherits this knowledge as the foundation of its food economy, not as a supplement to it.

### Sec. 1002. ACE Agricultural Cooperative - Structure and Tribal Equity

ACE shall establish an agricultural cooperative on ACE Territory in Phase 2 of development. Unlike the other ACE cooperative enterprises in which tribal partners hold co-governance authority, the ACE Agricultural Cooperative shall assign the tribal partner a majority equity stake in recognition of their senior status as land stewards and agricultural knowledge holders:

- Tribal Partner equity stake: Not less than fifty-one percent (51%) of ACE Agricultural Cooperative ownership shall be held by the Tribal Partner, reflecting their role as primary land stewards, senior agricultural knowledge holders, and the partners whose land and ecological management practices make the cooperative viable;
- ACE community equity stake: The remaining forty-nine percent (49%) of cooperative ownership is distributed among ACE community farmer-members on the basis of labor contribution and capital investment, with no single member holding more than five percent (5%) of total cooperative equity;
- Governance: The Cooperative is governed by a board of seven (7) directors, four (4) appointed by the Tribal Partner and three (3) elected by ACE farmer-members.

The Cooperative board chair rotates annually between a tribal appointee and an ACE elected director;

- Profit distribution: Net cooperative profits are distributed in proportion to equity stake after funding the cooperative's operating reserve and the ACE Agricultural Education Fund described in Section 1003.

### **Sec. 1003. Native Agricultural Knowledge Transfer - The ACE Farming Academy**

ACE shall establish the ACE Farming Academy as a formal knowledge transfer institution within the Agricultural Cooperative, through which tribal agricultural experts serve as the primary educators of aspiring Black farmers entering the ACE food system. The Academy is not a conventional agricultural extension program. It is a structured mentorship institution that treats Indigenous land knowledge as the curriculum and tribal elders and farmers as the faculty.

#### **What the Academy teaches**

- Land reading and soil stewardship: Indigenous practices of reading land health, managing soil fertility through traditional methods, and understanding the specific ecological relationships of the local territory;
- Water management: Tribal water conservation techniques, dryland farming practices, and traditional irrigation methods developed specifically for the arid and semi-arid conditions characteristic of many ACE priority targetsites;
- Seed sovereignty: Traditional seed saving, selection, and preservation practices. The ACE Seed Bank maintained jointly by tribal agricultural experts and ACE community farmers preserves both Indigenous heirloom varieties and African diaspora crop varieties as a permanent community food security resource;
- Livestock and land co-management: Tribal livestock management practices, including rotational grazing systems, bison co-management where applicable, and the integration of livestock into sustainable land use that avoids the soil degradation caused by industrial animal agriculture;
- Seasonal and ceremonial agricultural cycles: The integration of planting, harvesting, and land rest cycles with the tribal partner's traditional ceremonial calendar, ensuring that agricultural practice remains connected to cultural practice rather than being reduced to a purely commercial operation.

#### **Academy structure**

- A two-year apprenticeship program in which ACE farming academy students work directly alongside tribal agricultural mentors on active cooperative farm operations, receiving a living stipend funded by the ACE Agricultural Education Fund;
- Academy graduates receive ACE Farmer Certification and priority allocation of cooperative farming plots, along with access to ACE MLI agricultural startup loans at the cooperative enterprise rate;
- Tribal agricultural mentors are compensated at a professional rate from the ACE Agricultural Education Fund, with their compensation structured as both cash income and additional cooperative equity, deepening their long-term stake in the cooperative's success.

### **Sec. 1004. Food Production Goals and Distribution**

Within ten (10) years of first ACE community establishment, ACE shall achieve not less than seventy percent (70%) internal food production for each ACE Community, as measured by caloric need. The food distribution system shall be structured to keep agricultural revenue within the community:

- ACE Community Grocery: A community-owned grocery store stocked first with ACE-produced food and secondarily with products from Black and Native American producers nationally. No external grocery chain operates within ACE Territory;
- ACE Farmers Market Network: A weekly market distributing fresh ACE-produced food directly to residents, operated by the cooperative farmer-members;
- ACE Regional Distribution: Surplus production above internal community needs is sold through a regional distribution program, with priority given to Black-owned and tribal-owned grocery and food service businesses;
- ACE Food Export Program: By Phase 3, ACE develops export relationships with African and Caribbean nations for specialty agricultural products, particularly those produced using traditional Indigenous and African growing methods that command premium pricing in international health food and specialty markets.

### **Sec. 1005. Energy Independence**

ACE shall pursue full energy independence through community-owned renewable energy infrastructure. The tribal partner's traditional ecological knowledge of local wind patterns, solar exposure cycles, and water resources informs the siting and design of all ACE energy infrastructure, integrating Indigenous environmental knowledge with modern renewable energy engineering:

- Solar array and wind generation sized to produce not less than one hundred twenty percent (120%) of community energy needs, with the surplus twenty percent sold to regional grids under rates established by the Tribal Partner's sovereign utility authority;
- Revenue from energy sales is directed to the ACE Community Services Fund as one of its primary revenue streams, providing recurring income that grows as community population grows;
- Carbon credit revenue from ACE's renewable energy generation and the tribal partner's ongoing sustainable land management practices, sold on voluntary carbon markets with revenue shared between ACE and the Tribal Partner on terms established in the Tribal Partnership Agreement.

### **Sec. 1006. Environmental Stewardship and Indigenous Land Practices**

ACE adopts the tribal partner's traditional environmental stewardship practices as the governing framework for all land use within ACE Territory. This includes:

- Prescribed burning: Where the tribal partner's traditional land management includes prescribed burning practices for vegetation management and wildfire risk reduction,

ACE formally incorporates these practices into its land management plan, conducted under the direction of tribal fire stewardship experts;

- Watershed protection: All ACE development is planned with explicit protection of watersheds, springs, and water sources identified by the tribal partner as significant whether for ecological, cultural, or ceremonial reasons with a 500-meter development exclusion zone around all identified significant water sources;
- Sacred site protection: A Sacred Sites Register maintained jointly by the tribal partner and ACE documents all sites of cultural, spiritual, or historical significance within and adjacent to ACE Territory. Development is permanently excluded from registered sacred sites, and access to these sites remains under tribal authority regardless of ACE's development activity around them;
- Wildlife co-stewardship: ACE and the tribal partner establish a Joint Wildlife Stewardship Committee responsible for monitoring and managing wildlife populations within ACE Territory in accordance with the tribal partner's traditional ecological knowledge and applicable federal wildlife law.

## **Sec. 1007. ACE Food Standards - Community Health Policy, Halal Certification, and Swine Prohibition**

### **The public health foundation**

The food standards established in this Section are grounded in public health evidence, not in governance control or the imposition of any particular religious doctrine. ACE communities are being built in direct response to the documented health catastrophes that have disproportionately afflicted Black and Native American populations for generations, catastrophes that are inseparable from the food environments these communities have been forced to inhabit. ACE designs its food environment from the ground up to correct those conditions, not to replicate them on sovereign land.

The consumption of pork and pork-derived products is among the most extensively documented contributors to the specific chronic disease profile that has devastated both the Black and Native American communities. High blood pressure, type 2 diabetes, cardiovascular disease, obesity, and chronic kidney disease conditions that kill Black and Native Americans at rates significantly higher than the national average are all directly linked in peer-reviewed medical literature to diets high in processed pork products, the saturated fats concentrated in swine flesh, and the sodium levels characteristic of pork-based processed foods that have flooded low-income Black and Native communities for decades. The presence of these products in community food systems is not incidental. It is the predictable result of food environments designed by profit motive rather than by community health. ACE corrects this by design.

The Nation of Islam has made this precise public health argument for over eighty years. Elijah Muhammad's foundational text 'How to Eat to Live' identified pork consumption as a primary driver of the chronic disease burden in Black communities' decades before the epidemiological literature caught up with what he was observing in his community. ACE's food standards vindicate that long-standing position with the full weight of contemporary medical evidence behind them.

ACE welcomes the Nation of Islam as a partner in this specific health initiative, and in advancing the broader ACE food sovereignty mission to communities across the country.

### **The documented health case against pork consumption**

ACE adopts the following documented health findings as the evidentiary basis for its swine prohibition and clean food standards:

- Cardiovascular disease: Swine flesh is among the highest-fat animal proteins consumed in the American diet. Saturated fat consumption at the levels characteristic of pork-heavy diets is directly linked to elevated LDL cholesterol, arterial plaque formation, and the cardiovascular disease mortality that kills Black Americans at a rate sixty percent (60%) higher than white Americans;
- Hypertension: Processed pork products bacon, sausage, ham, hot dogs, and deli meats are among the highest-sodium foods in the American food supply. Sodium consumption at these levels is a primary driver of hypertension, which affects Black Americans at the highest rate of any demographic group in the United States and is a leading cause of the kidney disease and stroke mortality disparities documented in both Black and Native communities;
- Type 2 diabetes: The combination of high saturated fat, high sodium, and high caloric density characteristic of processed pork products contributes directly to the insulin resistance and obesity that underlie the type 2 diabetes epidemic. Native Americans experience type 2 diabetes at more than twice the national average rate. Black Americans experience it at a rate seventy-seven percent (77%) higher than white Americans. These are not genetic inevitable; they are the predictable outcomes of food environments designed without community health as a priority. ACE redesigns the food environment;
- Parasitic and pathogenic risk: Swine are documented hosts for *Trichinella spiralis*, various tapeworm species, and multiple zoonotic pathogens. Even properly cooked pork carries contamination risks that other protein sources do not, and the processing environments in which commercial pork is produced are consistently among the highest-risk food safety contexts in the American food supply chain;
- Inflammatory response: Emerging research on dietary inflammation identifies arachidonic acid found in high concentrations in pork fat as a significant contributor to chronic systemic inflammation, which underlies cardiovascular disease, diabetes, certain cancers, and the autoimmune conditions that are increasingly prevalent in both communities.

### **Halal certification standard - the community health default**

Not less than eighty percent (80%) of all food establishments operating within ACE Territory shall be certified halal. Halal certification is ACE's community health default not because ACE mandates religious practice, but because the halal food standard, which prohibits pork, requires clean animal handling, and demands transparency in food sourcing and preparation is structurally aligned with ACE's public health objectives. A community that defaults to halal-certified food is a community that has removed pork from eighty percent of its food service environment, that has raised its food handling and sourcing standards, and that has made clean eating the path of least resistance rather than the exception.

- All food service establishments seeking an ACE Commercial License shall declare their halal certification status at application. Certified halal establishments receive preferred licensing terms and priority placement in ACE commercial districts;
- The ACE Commercial Licensing Board maintains a live compliance dashboard ensuring the 80% halal floor is maintained at all times. When the proportion falls below 80%, the Board prioritizes halal-certified applicants in the next licensing cycle until compliance is restored;
- The remaining twenty percent (20%) of food establishments may operate under standard ACE food safety licensing, subject to the swine prohibition provisions of this Section.

### **Swine prohibition - ACE Territory**

In furtherance of the public health objectives established in this Section, no pig, hog, swine, or swine-derived animal of any kind shall be raised, bred, kept, produced, or maintained within ACE Territory for any purpose commercial, agricultural, or domestic. This prohibition applies comprehensively:

- Agricultural prohibition: No ACE-licensed farm, agricultural cooperative, or food production operation within ACE Territory shall raise, breed, keep, or produce swine of any kind or any product derived from swine. This applies to all land within ACE Territory regardless of the identity of the operator;
- Domestic and pet prohibition: No ACE resident shall keep any pig, hog, miniature pig, teacup pig, or swine of any breed or size as a domestic animal or pet within ACE Territory. This prohibition applies to all residential, commercial, and common areas within ACE boundaries;
- Food production prohibition: No ACE food production facility, processing plant, or manufacturing operation shall process, package, or produce pork or pork-derived products within ACE Territory;
- Institutional prohibition: No pork product or pork-derived ingredient shall be served, sold, or used in food preparation at any ACE-owned or ACE-operated venue, including schools, the hospital, health clinics, government facilities, the community center, and all ACE catering and event services, under any circumstance.

### **Pork products in food service - controlled tribal procurement only**

ACE recognizes that a limited number of food establishments within the twenty percent (20%) non-halal commercial tier may elect to serve or sell pork products to residents who request them. These establishments operate under the following tightly controlled framework:

- Source restriction: All pork and pork-derived products served or sold within ACE Territory must be procured exclusively from tribal farmers operating under the Tribal Partnership Agreement on designated tribal agricultural land outside ACE Territory's farm operations. No commercially produced pork from outside the tribal partnership network may enter ACE food establishments;

- Disclosure mandate: Every food establishment within ACE Territory that serves or sells pork products must display a clearly visible disclosure at its entrance and on all menus identifying the establishment as a non-halal venue and identifying the tribal source of all pork products served. This disclosure is a condition of ACE Commercial Licensing;
- Public register: The ACE Commercial Licensing Board maintains and publishes a real-time register of all pork-serving establishments within ACE Territory, accessible to all residents and visitors through the ACE community information platform;
- Health information posting: All pork-serving establishments are required to post ACE's community health findings on pork consumption as summarized in this Section in a visible location within the establishment. ACE does not prohibit informed adult choice. It ensures that choice is genuinely informed.

### **Partnership with the Nation of Islam on ACE food health initiative**

ACE formally recognizes the Nation of Islam's eight-decade contribution to Black community health education through its dietary teachings and invites the Nation of Islam to serve as a founding partner in the ACE Food Health Initiative a community education program advancing clean eating, pork-free nutrition, and the elimination of the chronic disease patterns that have diminished Black community health and longevity. The NOI's organizational infrastructure, community trust, and documented experience operating clean food enterprises make them a natural and valued partner in this specific initiative, independent of and in addition to their broader relationship with the ACE mission.

**ACE'S FOOD POLICY IS NOT ABOUT RELIGION. IT IS NOT ABOUT GOVERNMENT CONTROL. IT IS ABOUT A COMMUNITY THAT HAS WATCHED CHRONIC DISEASE KILL ITS PEOPLE FOR GENERATIONS DECIDING THAT ON ITS OWN LAND, BY ITS OWN DESIGN, THAT STOPS NOW.**

**THE ACE AGRICULTURAL COOPERATIVE IS NOT BUILT ON TRIBAL LAND. IT IS BUILT WITH TRIBAL PEOPLE, LED BY TRIBAL KNOWLEDGE, AND STRUCTURED TO MAKE TRIBAL PARTNERS ITS MAJORITY OWNERS. THIS IS WHAT GENUINE PARTNERSHIP LOOKS LIKE.**

## TITLE XI

# MEDIA, CULTURE, AND NARRATIVE SOVEREIGNTY

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### **Sec. 1101. ACE Media Network**

ACE shall establish a community-owned and operated media network comprising digital news, podcast, broadcast, and streaming platforms dedicated to Black and Native American voices, histories, and perspectives. The ACE Media Network shall serve as:

- The primary communications channel for ACE community news and governance;
- A platform for cultural production, documentary, and storytelling that is owned and distributed by the community rather than by external corporate interests;
- A training ground for journalists, producers, and media professionals developed through the ACE Vocational Institute and ACE University School of Media and Arts;
- A counter-narrative institution providing fact-based, community-centered coverage of issues affecting Black and Native American people nationally and internationally.

### **Sec. 1102. Cultural Preservation Mandate**

ACE shall establish a cultural preservation infrastructure including a community archive, oral history program, Indigenous language preservation initiative, and an African diaspora cultural documentation project. These institutions shall be considered core public services, funded at the same priority level as healthcare and education.

## TITLE XII

# GLOBAL ALLIANCES AND EXPANSION

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### **Sec. 1201. International Relationships**

ACE shall pursue formal trade, cultural, and solidarity relationships with:

- African Union member nations, with priority engagement with Ghana, Nigeria, Senegal, and South Africa;
- Caribbean nations with significant Afro-Caribbean populations;
- Indigenous and Afro-Indigenous communities in Latin America;
- Indigenous solidarity organizations in Canada, Australia, and New Zealand.

### **Sec. 1202. National Replication**

Upon successful establishment and operational self-sufficiency of the first ACE Community, ACE shall initiate the process of establishing additional ACE Communities pursuant to the model and framework established in this Act, with a goal of not fewer than ten (10) operational ACE Communities by Year 25 of ACE's existence.

## TITLE XIII

# COMMUNITY WEALTH AND HEALTH SECURITY

### **Sec. 1301. Purpose and Foundational Model**

ACE shall establish a community-owned wealth and health security system modeled on the foundational principles of Singapore's Central Provident Fund (CPF) and MediSave program two of the most successful community financial security systems in the world. Singapore's approach has produced near-universal home ownership exceeding ninety percent (90%), a population with genuine retirement savings, and a healthcare system in which no resident faces financial ruin from medical costs. ACE shall adopt these principles to a community-owned, cooperative model governed by the ACE Majority Lending Institution network rather than by a government bureaucracy, ensuring that all funds remain within the community and work exclusively for the benefit of ACE residents.

### **Sec. 1302. ACE Community Provident Fund (ACE-CPF)**

ACE shall establish the ACE Community Provident Fund (ACE-CPF), a mandatory structured savings system for all ACE residents engaged in compensated employment or cooperative enterprise within ACE Territory. The ACE-CPF shall function as follows:

- Each ACE resident in compensated employment shall contribute a percentage of gross income, not to exceed twenty percent (20%) into a personal ACE-CPF account, with the percentage and employer match rate established by the ACE-CPF Governing Committee within the first year of operation;
- Each personal ACE-CPF account shall comprise three sub-accounts funded by automatic allocation from each contribution:
  - a. The ACE Housing Account, from which residents may draw for home purchase, lease-to-own payments, and approved home improvement within ACE Territory;
  - b. The ACE Retirement Account, which accumulates interest and is accessible upon reaching the ACE-defined retirement age, providing every resident a dignified and self-funded retirement income;
  - c. The ACE MediSave Account, governed separately under Section 1303 of this Title.
- ACE cooperative enterprises and employers within ACE Territory shall make matching contributions to employee ACE-CPF accounts, with the match rate established by the ACE-CPF Governing Committee and reviewed annually;
- ACE-CPF funds shall be invested exclusively within ACE Territory through the ACE Majority Lending Institution network, in ACE Community Investment Bonds, ACE cooperative enterprises, and ACE real estate development. No ACE-CPF funds shall be invested in external financial markets without explicit approval of the Founding Board and the ACE-CPF Governing Committee;

- The ACE-CPF shall be governed by an independent ACE-CPF Governing Committee comprising three (3) elected ACE residents, two (2) MLI financial professionals, and one (1) member of the Founding Board, with full public reporting of fund performance, investment allocations, and administrative costs on a quarterly basis.

**THE ACE-CPF GOAL: EVERY RESIDENT RETIRES WITH DIGNITY. EVERY RESIDENT OWNS THEIR HOME. NO ACE RESIDENT IS EVER HOMELESS.**

**Sec. 1303. ACE MediSave Program (Cross-Reference)**

The ACE MediSave Program, the primary mechanism for financing healthcare costs within ACE Territory, is established in full in Title VIII Section 808 of this Act. That Section governs all MediSave contribution requirements, the catastrophic coverage pool, coverage scope, and the universal coverage subsidy. The Phase 1 MediSave bridge mechanism for pioneer communities is established in Title VIII Section 809. All MediSave provisions are located in Title VIII to ensure the healthcare system and its financing are presented to the reader in a single, complete sequence.

**Sec. 1304. Zero Homelessness Mandate**

ACE declares as a foundational and non-negotiable community standard that no ACE resident shall be without stable housing. The ACE Housing Account within the ACE-CPF, combined with the ACE community land trust structure, the lease-to-own housing program, and a dedicated Emergency Housing Reserve maintained by the ACE Housing Authority, shall together ensure that housing instability is structurally impossible within ACE Territory. Where an ACE resident faces housing crisis due to unemployment, health emergency, or other hardship, the community's systems not charity, not bureaucratic welfare shall respond with immediate, dignified housing stabilization.

**Sec. 1305. The ACE Social Contract**

The ACE-CPF and MediSave system together constitute a new social contract between ACE and its residents. Every ACE resident who works, contributes, and participates in the community is guaranteed the following by the time they reach retirement age:

37. A home they own, free and clear, within ACE Territory;
38. A retirement income sufficient to live with dignity within the ACE economy;
39. Comprehensive healthcare coverage for themselves and their dependents, without debt or financial hardship;
40. Free education for their children from early childhood through university within the ACE system.

This is the promise ACE makes. Not as aspiration. As architecture.

## TITLE XIV

# ACE ECONOMIC SOVEREIGNTY AND COMMUNITY FINANCE

### Sec. 1401. Economic Philosophy

The ACE economy is built on a single governing principle: every dollar generated within ACE Territory shall be structured to circulate within the ACE community as many times as possible before leaving it. The destruction of Black and Native American wealth has been accomplished not only by preventing its accumulation but by ensuring that whatever wealth is accumulated flows immediately outward to institutions, businesses, and systems controlled by others. ACE reverses this by design. The economic system described in this Title is not an aspiration toward wealth, it is an architecture of wealth retention.

The ownership model of ACE enterprise is tiered: ACE as an institution owns and governs the strategic infrastructure layer land, utilities, energy, broadband, and water systems whose revenues fund the community services budget. Above that infrastructure layer, the commercial economy is open to free enterprise by Black and Native American-owned private businesses, cooperatives, and entrepreneurs operating within ACE Territory under ACE commercial licensing. This model draws from Singapore's government-linked company structure for infrastructure while preserving free market dynamism at the commercial level.

### Sec. 1402. The Two-Stream Funding Model

ACE community services education, public safety, healthcare infrastructure, roads, and governance shall be funded through two disciplined, self-sustaining streams modeled on Singapore's integrated public finance approach:

#### Stream 1 - ACE Infrastructure Enterprise Revenue

ACE owns and operates the strategic infrastructure of every ACE community. Revenue generated by these assets funds the community services budget directly, without dependence on resident taxation or government grants:

- ACE Energy Enterprise: The community-owned solar, wind, and where applicable hydroelectric generation system produces energy for internal consumption and sells surplus to regional grids under tribal sovereign utility rates. At full Phase 3 scale, energy revenue is projected to be among the largest single contributors to the community services budget.
- ACE Land and Property: ACE holds the master lease on all ACE Territory and sub-leases residential and commercial parcels to residents and enterprises. Lease revenue, structured to be affordable rather than extractive provides stable, recurring income to the community development fund.
- ACE Broadband and Communications: ACE owns and operates its fiber and wireless communications infrastructure, charging competitive rates to residents and businesses. Infrastructure ownership eliminates the external ISP margin and returns that revenue to the community.

- ACE Water and Waste Systems: Community-owned water purification, distribution, and waste management systems charge cost-recovery rates to residents. Surplus above operating cost is transferred to the community services reserve.
- ACE Agricultural Enterprise: The ACE cooperative farm produces food for internal consumption and regional commercial sale. Surplus agricultural revenue funds the food sovereignty and community nutrition programs.

## **Stream 2 - Community Services Contribution**

Every private enterprise and individual resident operating commercially within ACE Territory shall pay a Community Services Contribution (CSC), a structured fee assessed on commercial revenue and individual earned income above a defined threshold, payable to the ACE Community Services Fund. The CSC is not a tax in the American sense: it is a membership contribution to the shared infrastructure that makes private enterprise within ACE Territory possible and profitable. The CSC rate shall be set by the ACE Co-Governance Council and reviewed annually, with a founding rate not to exceed eight percent (8%) of net commercial revenue for enterprises and five percent (5%) of earned income for individuals above the ACE median income threshold.

The CPF system funds individual services, healthcare through MediSave, housing through the Housing Account, retirement through the Retirement Account, so the CSC-funded Community Services budget covers only collective goods: schools, public safety, roads, parks, cultural institutions, and governance operations. This separation ensures that the community services fund is never burdened with individual welfare obligations that the CPF system is designed to carry.

**THE ACE ECONOMIC GOAL: EVERY DOLLAR THAT ENTERS ACE TERRITORY CIRCULATES WITHIN IT AT LEAST THREE TIMES BEFORE LEAVING.**

## **Sec. 1403. ACE Infrastructure Ownership - The Strategic Layer**

ACE shall own, in perpetuity and in the name of the community, the following categories of infrastructure within every ACE community:

41. Land: All ACE Territory is held under the master tribal land lease and is never sold to external parties. Residential and commercial parcels are sub-leased to residents and enterprises on long-term terms.
42. Energy generation and distribution systems: All solar arrays, wind generation, battery storage, and distribution infrastructure within ACE Territory.
43. Water systems: All wells, purification facilities, storage, distribution pipes, and waste management infrastructure.
44. Communications: All fiber optic cable, wireless towers, and communications switching infrastructure within ACE Territory.
45. Agricultural land and cooperative farm infrastructure: All farm equipment, irrigation systems, processing facilities, and seed bank infrastructure.
46. Transportation infrastructure: All internal roads, transit systems, and logistics facilities within ACE Territory.

No infrastructure asset in the above categories shall be privatized, sold, or transferred to external ownership without a supermajority vote of the ACE Co-Governance Council and ratification by ACE residents in a community referendum. Infrastructure ownership is the material basis of ACE sovereignty; it is not a balance sheet asset to be monetized.

#### **Sec. 1404. Commercial Economy - Free Enterprise Within ACE Territory**

Above the infrastructure layer, the ACE commercial economy is open and dynamic. Black and Native American-owned private businesses, cooperatives, and sole proprietors may operate freely within ACE Territory under an ACE Commercial License, subject to the following framework:

##### **ACE Commercial Licensing**

- Any Black or Native American individual or entity may apply for an ACE Commercial License to operate a business within ACE Territory. License approval is subject to verification of ownership, compliance with ACE community standards, and payment of the Community Services Contribution.
- Businesses, majority-owned by ACE residents, receive preferred licensing terms, including reduced CSC rates in their first three years of operation, priority access to ACE MLI financing, and preferred placement in ACE commercial districts and marketplace platforms.
- External businesses, those not majority Black or Native American owned, may operate within ACE Territory only as minority partners in joint ventures with ACE-licensed majority owners, and are subject to the standard CSC rate plus an external enterprise surcharge assessed to compensate the community for the outward flow of profits.

##### **Cooperative enterprise - the preferred commercial model**

While private enterprise is fully permitted, ACE actively promotes and incentivizes the cooperative ownership model as the preferred structure for commercial enterprise within ACE Territory. Worker-owned cooperatives, consumer cooperatives, and producer cooperatives all receive the following advantages over conventional private businesses:

- Priority access to ACE MLI financing at the lowest available interest rates;
- Reduced Community Services Contribution rate of three percent (3%) in perpetuity, recognizing that cooperatives inherently retain wealth within the community through distributed ownership;
- Priority contracts with ACE institutions, the clinic, schools, hospital, and government operations, for goods and services within their sector;
- Featured placement on the ACE Community Marketplace platform with no listing fee.

#### **Sec. 1405. ACE Majority Lending Institution Network**

The ACE Majority Lending Institution (MLI) network is the financial backbone of the ACE economy, the institution through which capital is accumulated, circulated, and deployed within the community. The term Majority reflects the collective economic majority status of Black and Native American communities when considered together as a unified economic force.

## MLI structure and services

- Each ACE community shall establish at minimum one (1) ACE MLI branch upon Phase 2 community establishment, with additional branches added as population grows;
- ACE MLIs shall offer, home purchase and lease-to-own financing for ACE residents; small business and cooperative enterprise loans; Community Investment Bond issuance and administration; ACE-CPF account administration; personal savings and checking accounts; and financial literacy and credit-building programs;
- ACE MLI interest rates on home and business loans shall be set at cost-of-capital plus a margin not to exceed two percent (2%), structured to be the most competitive financing available to Black and Native borrowers in the United States;
- ACE MLIs shall maintain a Loan Loss Reserve funded by a percentage of all loan origination fees, ensuring that a community member who experiences financial hardship does not lose their home or business to ACE's own lending institution, workout plans and forbearance are mandatory first responses to delinquency, not foreclosure.

## The internal circulation mandate

All ACE MLI deposits shall be lent exclusively within ACE Territory. No ACE MLI funds shall be invested in external financial markets, external real estate, or external enterprises without explicit authorization of the ACE Co-Governance Council. This is the mechanism by which the U.S. dollar the only currency ACE uses, circulates internally rather than flowing outward to external financial institutions upon deposit. When an ACE resident deposits their paycheck at the ACE MLI, that money is lent to their neighbor to start a business, to the family down the road to buy their home, or to the cooperative farm to purchase equipment. The dollar stays in the community and works for the community.

## Sec. 1405a. ACE Economic Solidarity Culture - Building the Behavioral Ecosystem

The ACE economic model depends on a behavioral reality no legal structure can compel: ACE residents choosing to spend, bank, and invest within ACE institutions when external alternatives are available and sometimes more convenient. Economic solidarity of this depth does not emerge naturally even within strongly aligned communities. Black Wall Street in Greenwood achieved a dollar circulation rate of approximately thirty-six times before a dollar left the community, not through legal mandate but through a culture of intentional community investment built over decades. ACE must build this culture deliberately from day one. ACE shall establish and maintain:

- ACE Economic Solidarity Education: A mandatory financial literacy and community economics curriculum integrated into ACE schools at every level, teaching from childhood that where residents spend, bank, and invest is a community decision with community consequences. Economic solidarity is framed as rational self-interest: every dollar spent at an ACE enterprise returns value to the community that employs, educates, and houses the spender;
- ACE Buy-Within Campaign: A permanent community awareness campaign through the ACE Media Network, measuring and publishing the ACE dollar circulation rate quarterly. The community sees in real time how many times a dollar circulates before leaving, and the campaign celebrates milestones and identifies gaps;

- ACE Business Directory and Preference Platform: A community-wide digital and physical directory of every ACE-licensed business, updated in real time, making it as easy as possible for residents to find ACE alternatives before defaulting to outside spending;
- ACE Loyalty Network: A community-wide loyalty program in which residents earn ACE community credits for spending within ACE-licensed businesses, redeemable for discounts at ACE institutions, priority access to cooperative equity shares, and CPF account contributions. The network makes choosing ACE businesses economically advantageous in the immediate term;
- Community Economic Solidarity Covenant: A voluntary but publicly celebrated commitment by ACE residents and businesses to prioritize ACE institutions for a defined percentage of their spending, banking, and investment. Covenant signatories are recognized in the ACE Community Record;
- Annual Dollar Circulation Report: Published by the ACE Policy Institute, measuring the ACE economy's internal circulation rate, identifying leakage to external markets, and recommending institutional responses. Presented publicly to the ACE Community Assembly.

#### **Sec. 1406. ACE Revenue Streams - Diversified Economic Base**

ACE shall develop and maintain a diversified portfolio of revenue streams across the following sectors, ensuring that no single economic disruption can threaten the community's financial stability:

##### **Agriculture and food**

- ACE cooperative farm producing staple crops, specialty produce, and livestock for internal consumption and regional commercial sale;
- ACE food processing facility producing packaged goods sold under the ACE brand through regional distribution and direct-to-consumer channels;
- ACE Community Grocery, a community-owned grocery store stocked first with ACE-produced food, secondarily with products from Black and Native American producers nationally;
- ACE Farm-to-Table restaurant cooperative operated by ACE culinary graduates, generating income for ACE farmers and the culinary cooperative simultaneously.

##### **Energy**

- Solar array and wind generation producing energy for internal ACE use and surplus sold to regional grids;
- ACE Energy Services offering installation, maintenance, and energy consulting services to neighboring communities and tribal nations, a revenue-generating export of ACE expertise;
- Carbon credit revenue from ACE's renewable energy generation and sustainable land management practices, sold on voluntary carbon markets.

## Technology and digital economy

- ACE Tech Park, a commercial campus on ACE Territory offering office and lab space to Black and Native American-owned technology companies at below-market rates in exchange for ACE equity stakes and local employment commitments;
- ACE Digital Marketplace, a community-owned e-commerce platform where ACE-licensed businesses sell directly to consumers nationally, with platform fees retained by ACE rather than flowing to Amazon or Shopify;
- ACE Cybersecurity Services, an enterprise cybersecurity firm staffed by ACE vocational and university graduates, offering services to tribal governments, HBCUs, and Black-owned businesses nationally.

## Tourism and culture

- ACE Heritage Tourism, the only community in America built jointly by Black and Native Americans becomes a significant cultural destination. Museum, heritage trail, festival circuit, and conference facilities generating hospitality and tourism revenue;
- ACE Cultural Arts District, galleries, performance venues, studios, and a recording facility generating revenue and elevating ACE as a cultural capital;
- ACE Conference and Retreat Center, a facility hosting civil rights organizations, HBCUs, tribal governments, and progressive institutions for conferences, retreats, and summits, generating consistent hospitality revenue.

## Manufacturing

- ACE Construction Materials Cooperative, producing sustainable building materials from ACE Territory resources, supplying ACE construction projects and selling regionally;
- ACE Textile and Apparel Cooperative, producing ACE-branded clothing and merchandise as well as contract manufacturing for Black-owned fashion brands;
- ACE Pharmaceutical and Herbal Products, manufacturing traditional remedies and supplements validated through the ACE Research Institute, distributed nationally through health and wellness channels.

## **Sec. 1407. Community Investment Bonds - Mobilizing the Community as Investor**

ACE shall issue Community Investment Bonds as a primary capital-raising instrument, enabling Black and Native American individuals at every income level to become investors in and co-owners of ACE development. The Bond program shall be structured as follows:

- Minimum investment of five hundred dollars (\$500), with tiers at \$500, \$2,500, \$10,000, and \$50,000, ensuring that the program is accessible to working-class community members, not only to high-net-worth investors;
- Bonds shall carry a fixed annual return not to exceed five percent (5%), paid from ACE infrastructure enterprise revenues, with principal returned at maturity;
- Bond terms of five (5), ten (10), and twenty (20) years, allowing investors to choose a time horizon aligned with their financial planning;

- ACE residents who invest in Community Investment Bonds receive a residency equity credit, a portion of their return is applied toward ownership equity in ACE community infrastructure, converting bondholders into co-owners over time;
- The Bond program is marketed exclusively within Black and Native American communities in its first five (5) years, ensuring that the first wave of capital and the co-ownership it conveys belongs to the communities ACE is built to serve.

### **Sec. 1408. Major Donor Initiative**

ACE shall pursue a structured major donor campaign targeting high-net-worth Black and Native American individuals whose wealth is of sufficient scale to serve as foundational investment in ACE Phase 1 and Phase 2 development. This campaign is not charity solicitation. It is an offer of civilizational co-ownership to individuals who have the resources to act on the responsibility that their wealth carries.

The case made to major donors is direct: the conditions that allowed your wealth to accumulate, however hard-earned, exist within a system built on the labor and exclusion of the communities ACE serves. You have a singular, time-limited opportunity to deploy that wealth toward the construction of permanent infrastructure that will serve those communities for generations. No philanthropic gift, no foundation, no charitable endowment produces what ACE produces a city. A university. A healthcare system. A sovereign economy. That is what your capital builds here.

- Major donor investments shall be structured as named infrastructure commitments, a donor funding an ACE school names the school; a donor funding the clinic names a wing; a donor funding the energy grid receives a permanent recognition in ACE public record creating legacy, not charity;
- Donors investing above one million dollars (\$1,000,000) receive a seat on the ACE Founders Council, an advisory body with direct access to ACE leadership and annual reporting on the impact of their investment;
- ACE shall maintain a Major Donor Pipeline managed by the Director of External Affairs, targeting entertainers, athletes, executives, and entrepreneurs of color with documented philanthropic interest and sufficient wealth to make meaningful infrastructure-level commitments.

Tax treatment of major donor contributions to ACE-chartered entities shall be pursued under existing federal charitable-contribution law where ACE's charitable or nonprofit-affiliated entities qualify for it and shall be a distinct legislative request from the BATEI exemption established in Section 1502 where it does not. ACE shall not represent to donors that a contribution carries tax-exempt or tax-advantaged status beyond what is independently established under the Internal Revenue Code for the specific ACE entity receiving it, and any tax guidance provided to donors shall be reviewed by qualified tax counsel prior to publication.

### **Federal capital gains exemption on ACE investments**

- Capital gains realized by Black American investors on Community Investment Bonds, ACE cooperative equity shares, and ACE commercial real estate within ACE Territory shall be exempt from federal capital gains tax;

- This exemption is designed to make investment in ACE economically superior to investment in equivalent external opportunities for Black American investors, accelerating the flow of Black wealth into Black-controlled infrastructure.

### **Estate and inheritance tax relief**

- (4) Black American families transferring ACE community assets, homes, cooperative shares, and business equity across generations shall be the subject of a distinct legislative request for federal estate tax relief, grounded in the same restitution logic established in Section 1502: that a people whose labor built wealth they were never permitted to keep or pass on are owed a remedy for the accumulated effect of that denial across generations, not a request modeled on any specific tribal estate tax provision, which ACE has not independently verified to exist in the form assumed here. ACE shall retain tax counsel to determine the specific legislative or regulatory mechanism best suited to this request before it is formally advanced.

### **Sec. 1409. Phase 1 MLI Bridge: Pioneer Banking Infrastructure**

The ACE Majority Lending Institution network established in Section 1405 of this Title is the permanent, destination community banking infrastructure for ACE Territory. The MLI network reaches full operational capacity as ACE's resident population, deposit base, and lending volume grow to the scale required for a self-sustaining community financial institution under applicable federal and state banking regulations. In Phase 1, before that scale is reached and before permanent MLI facilities are constructed, ACE operates a Phase 1 MLI Bridge that ensures every pioneer has access to core banking services from the day they arrive.

The Phase 1 MLI Bridge follows the same infrastructure model as the Phase 1 Healthcare Bridge established in Section 808 of Title VIII: modular and mobile units deployed on the parcels designated in the ACE master development plan as the permanent locations of ACE's future MLI branch facilities. As construction of permanent branches proceeds and banking services move into permanent buildings, the modular units are redeployed to the next ACE city being launched. The capital cost is a network investment that rotates through the replication cycle.

**A. Modular Banking Units.** ACE shall deploy not fewer than two fully operational modular banking units to ACE Territory prior to the arrival of the first pioneer residents. Each modular banking unit is a secure, climate-controlled prefabricated structure equipped with teller stations, automated teller machines, a loan officer workstation, a secure vault, internet-connected core banking software integrated with the ACE Majority Lending Institution platform, and videoconference capability for remote specialist consultations. Each unit is staffed at minimum by a branch manager, two tellers, and a community financial counselor trained in ACE's cooperative finance model and the Community Investment Bond program.

Modular banking units are substantially simpler and less capital-intensive than mobile clinical units. They require no specialized medical equipment, no pharmaceutical supply chain, and no licensed clinical staff. The primary requirements are physical security, reliable broadband connectivity, and regulatory compliance with applicable banking charter requirements.

ACE shall obtain the applicable federal or state banking charter for its MLI operations in coordination with legal counsel prior to deploying the modular units.

Capital cost per modular banking unit including structure, equipment, vault, and technology integration: \$150,000 to \$250,000. Annual operating cost per unit including staffing, technology licensing, security, and regulatory compliance: \$600,000 to \$800,000. Two units per pioneer city at launch: capital cost \$300,000 to \$500,000, annual operating cost \$1.2 million to \$1.6 million.

**B. Core Banking Services at Launch.** The Phase 1 MLI Bridge shall provide, from the date of first pioneer arrival, the following services to all registered ACE Community Members:

9. Personal checking and savings accounts with no minimum balance requirements and no monthly fees for ACE Community Members;
10. ACE Community Investment Bond purchase and administration;
11. ACE-CPF account enrollment and administration;
12. ACE MediSave founding contribution processing;
13. Personal loans and small business startup loans at ACE cooperative rates;
14. Financial counseling and credit-building services;
15. Remote account access via ACE's broadband infrastructure for residents in areas of ACE Territory not within walking distance of a modular unit.

**C. The Replication Model.** The modular banking unit fleet rotates through the ACE national network on the same cycle as the mobile clinical unit fleet. Units deployed in City 1 during Phase 1 are redeployed to City 2 when City 1's permanent MLI branch opens, and to City 3 when City 2's permanent branch opens. The capital cost of the modular banking fleet is therefore a single network-level investment. As each ACE city's permanent MLI branches come online, the modular units are transferred and the MLI Bridge for that city is formally closed. This transition is written into each city's master development plan as a milestone.

**D. Launch Funding.** The capital and first-year operating cost of the Phase 1 MLI Bridge is included within the \$20 million per-city Pioneer Healthcare Endowment established in Title VIII Section 808(D), as a named line item in that endowment's budget. The banking infrastructure capital and operating costs are substantially lower than the healthcare infrastructure costs and do not require a separate dedicated fund. The combined \$20 million per-city launch budget covers both the healthcare bridge and the banking bridge, with healthcare infrastructure representing the larger portion of that commitment.

#### **Sec. 1410. Phase 1 Pioneer City Launch Budget**

The Phase 1 bridge infrastructure established in Titles VI through XIV of this Act requires specific, committed capital before the first pioneer arrives. This Section consolidates all Phase 1 launch costs into a single reference, distinguishing between per-city operating costs and one-time network capital investments that serve every ACE city launched. A reader who wants to understand what it costs to open an ACE pioneer city will find the complete answer here.

**A. Network Capital Investment (One-Time, Serves All Cities).** The following capital costs are incurred once at the network level and amortized across all cities as the fleet rotates through the replication cycle. They are not repeated for each city launch:

16. **Mobile clinical unit fleet (4 units at launch, expandable):** \$4 million to \$5 million. Redeployed from city to city as permanent clinics open.

17. **Modular classroom fleet (4-unit elementary campus cluster):** \$320,000 to \$600,000. Redeployed from city to city as permanent schools open.
18. **Modular banking units (2 units at launch):** \$300,000 to \$500,000. Redeployed from city to city as permanent MLI branches open.
19. **Modular safety station (1 unit at launch):** \$300,000 to \$500,000. Redeployed as permanent public safety campus is constructed.
20. **Emergency ground transport fleet (3 ambulances):** \$600,000 to \$750,000. Permanent fleet asset, supplemented in later cities.
21. **Broadband and communications infrastructure:** \$500,000 to \$800,000 per city. Required for all Eight Systems and serves as telehealth, distance learning, dispatch, and media network backbone simultaneously.

Total one-time network capital per first city launch: approximately \$6 million to \$8.15 million. For subsequent city launches, the fleet rotation means the modular units are redeployed rather than repurchased, reducing capital cost per additional city to primarily broadband infrastructure and any fleet expansion needed to serve a growing network: approximately \$500,000 to \$1 million per additional city launch.

**B. Per-City Year 1 Operating Costs.** The following costs recur annually for each pioneer city, sized for a Year 1 population of up to 5,000 pioneers. Costs scale as population grows, with each system's staffing ratios established in their respective Title sections governing the expansion:

22. **Healthcare bridge operations:** 4 mobile clinical units at \$1.5 million per unit annually, plus telehealth network contract at \$1 million to \$1.5 million: \$7 million to \$7.5 million per year. (Title VIII Sec. 809)
23. **Air ambulance on-call contract:** \$1 million to \$1.5 million per year. (Title VIII Sec. 809)
24. **Emergency ground transport operations:** 3 ambulances at \$350,000 per vehicle annually: \$1.05 million per year. (Title VIII Sec. 809)
25. **Education bridge operations:** 4-unit modular campus at \$800,000 to \$1.2 million annually including staffing and Pioneer Educator Fellowship stipends, plus ACE Media Network distance learning platform and HBCU partnership fees at \$500,000 annually: \$1.3 million to \$1.7 million per year. (Title VI Sec. 605)
26. **Banking bridge operations:** 2 modular MLI units at \$600,000 to \$800,000 each annually: \$1.2 million to \$1.6 million per year. (Title XIV Sec. 1409)
27. **Public safety bridge operations:** Pioneer Peacekeeping Unit personnel, vehicles, equipment, and training: \$1.5 million to \$2.5 million per year. (Title VII Sec. 706)
28. **Legal counsel on retainer:** Jurisdictional sovereignty, tribal engagement, and regulatory compliance counsel: \$500,000 to \$750,000 per year. (Title VII Sec. 705)
29. **Community administration and Founding Board operations:** Staff, facilities, travel, and coordination for pioneer city governance before the elected Assembly is seated: \$500,000 to \$750,000 per year.

Total Year 1 operating cost per pioneer city: approximately \$14 million to \$16.3 million. Combined with network capital investment of \$6 million to \$8.15 million, the total commitment required before the first pioneer arrives in City 1 is approximately \$20 million to \$24 million,

consistent with the \$20 million per-city planning figure established in Title VIII Section 808(D) and calibrated conservatively to 2026 dollars.

**C. The Pioneer Healthcare Endowment: Allocation.** The \$20 million per-city Pioneer Healthcare Endowment established in Title VIII Section 808(D) is allocated across all four Phase 1 bridge systems as follows, with the name “Pioneer Healthcare Endowment” reflecting its founding purpose and primary cost driver while covering all launch infrastructure:

- 30. **Healthcare bridge (mobile units, telehealth, transport):** \$12 million to \$13 million (60 to 65 percent of total). Largest single cost due to medical staffing, pharmaceutical supply, and air ambulance contract.
- 31. **Education bridge (modular classrooms, distance learning, faculty):** \$2.5 million to \$3 million (12 to 15 percent of total).
- 32. **Banking bridge (modular MLI units, core banking operations):** \$1.5 million to \$2 million (7 to 10 percent of total).
- 33. **Public safety bridge (modular station, Pioneer Peacekeeping Unit):** \$2 million to \$2.5 million (10 to 12 percent of total).
- 34. **Contingency reserve (20 percent):** \$2 million to \$4 million, held in reserve for unforeseen costs, population growth above projections, and emergency response during the pioneer period.

The Endowment is fully committed before pioneer arrival. No ACE city launches without a confirmed, fully funded Endowment for that city in place.

**D. The Network vs. Per-City Distinction.** The most important financial principle in this Section is the distinction between network capital and per-city operating cost. The modular units, the emergency transport fleet, and the communications infrastructure are purchased once, at the network level, and serve every city ACE launches as they rotate through the replication cycle. This means the true marginal cost of launching each additional ACE city after the first is primarily the Year 1 operating budget, not another full capital investment. The network grows more cost-efficient with every city launched. ACE City 10 benefits from nine prior replication cycles of fleet rotation, staff training, and operational learning.

The \$20 million per-city planning figure is the conservative first-city cost. The network cost per city decreases as the fleet grows and the replication cycle matures.

**E. The 25-Year Funding Horizon.** The Pioneer Healthcare Endowment’s full 25-year target of \$500 million, established in Title VIII Section 808(D), funds the Phase 1 bridge infrastructure for all cities in the ACE national network from their respective launch dates through the point at which all four permanent systems are operational and the bridge infrastructure is retired.

The Community Investment Bond program established in Title XIV Section 1407 provides the primary ongoing capital for permanent infrastructure construction. The Major Donor Initiative established in Title XIV Section 1408 seeds the Endowment for each city launch. The two-stream funding model established in Title XIV Section 1402 sustains operations once the pioneer community is established. Together these three instruments, the Endowment, the Bonds, and the Donor Initiative, constitute ACE’s complete Phase 1 capitalization strategy.

## TITLE XV

### THE BLACK AMERICAN TAX EQUITY INITIATIVE

#### **Sec. 1501. Purpose**

This Title establishes the Black American Tax Equity Initiative (BATEI), ACE's formal political and legal demand for two independent tracks of tax relief: federal relief on income earned through ACE-chartered entities, as restitution for labor extracted and never compensated, and state relief on income earned within ACE Territory once secured, on the same legal basis states already extend to tribal members earning income on their own reservation. The BATEI is not a request for special treatment. It is a demand for the same legislative and constitutional tools Congress and the states have already used for other peoples who suffered comparable, documented harm at the hands of the same government.

#### **Sec. 1502. The Demand**

The Black American Tax Equity Initiative makes two independent demands. First, that Congress grant Black Americans a defined period of federal tax relief on income earned through ACE-chartered entities—not because tribal citizenship carries a portable federal exemption, which it does not, but because Congress has already established, through the Civil Liberties Act of 1988 and the Katrina Emergency Tax Relief Act of 2005, that it can and does grant tax relief to a specific people for documented, government-caused harm. Black Americans endured two hundred fifty years of unpaid, compelled labor—a harm longer and larger than either precedent addressed, and one for which no remedy of any kind has ever been paid. Second, that once ACE Territory is secured, income earned by ACE members within that Territory receive the same state tax treatment tribal members already receive for income earned on their own reservation, under *McClanahan v. Arizona State Tax Commission*, 411 U.S. 164 (1973), which holds that states generally may not tax income a tribal member earns from activity conducted on their own tribe's land. These two demands are independent and severable. Neither is contingent on the other, and neither is contingent on the tribal tax exemption's scope or structure, which applies to tribal governments and their wholly owned enterprises under 26 U.S.C. § 7871, not to individual members' income wherever earned.

The U.S. government has accepted the principle that a government responsible for the dispossession of a people owes them remedial recognition in law. It has applied that principle to Japanese Americans through the Civil Liberties Act of 1988, classifying redress payments as damages for human suffering rather than taxable income. It has applied a version of it to disaster-affected populations through the Katrina Emergency Tax Relief Act of 2005, granting time-bound federal tax relief explicitly as recovery assistance. The international community has applied it to Jewish survivors through the Luxembourg Agreement. It has never applied it to Black Americans, despite a harm longer in duration and larger in scale than any of these precedents—two hundred fifty years of compelled, unpaid labor, followed by one hundred sixty- one years in which no remedy has been paid.

ACE requests federal tax relief for a period equal to one third of the two hundred fifty years that labor went unpaid, phased in as ACE Territory and ACE-chartered entities are

established under the Four Phases framework of Title V and continuing only as long as the reconstruction it funds remains ongoing.

This duration is not arbitrary. Congress has direct evidence of what happens when recovery relief ends before recovery is complete: federal tax relief for the Gulf Coast following Hurricane Katrina expired within roughly a year of its enactment, and two decades later New Orleans remains, by any honest accounting, far short of fully rebuilt. A remedy that lapses before the harm it addresses is repaired is not a remedy. It is a delay ACE does not intend to repeat.

### **Sec. 1503. The Legal Strategy**

The BATEI shall be pursued through three parallel tracks:

47. Legislative advocacy: ACE shall advocate directly for federal legislation establishing BATEI through the ACE Congressional Caucus, ACE's own independent political accountability network of elected officials at the federal, state, and local level who have received ACE endorsement and operate under ACE community accountability, not under the authority of any existing political party caucus or congressional body. The bill shall be introduced as a standalone measure and as an amendment vehicle to tribal economic development legislation, tax reform packages, and appropriations bills. ACE does not partner with or channel its legislative agenda through existing political caucuses or civil rights institutions whose institutional entrenchment has historically compromised their ability to act in the unqualified interest of Black and Native communities.
48. Administrative action: ACE shall petition the Internal Revenue Service and the Department of the Treasury to issue guidance on the federal exemption established in Section 1502, and shall petition the relevant state revenue authorities to issue guidance on the state exemption established in Section 1502 once ACE Territory is secured. Both petitions rest on the legislative and constitutional precedents cited in Section 1504—the Civil Liberties Act of 1988, the Katrina Emergency Tax Relief Act of 2005, and *McClanahan v. Arizona State Tax Commission*—not on a claim that ACE's own charter extends existing tribal tax status to ACE entities, which it does not and cannot do without action by Congress or the states.
49. Litigation: ACE shall retain constitutional law counsel to evaluate Equal Protection and Fifth Amendment takings arguments supporting the position that the federal government's denial of equivalent tax recognition to Black Americans, despite having extended it to tribal nations for equivalent historical harms, constitutes an actionable legal inequity.

### **Sec. 1504. The Political Argument**

ACE makes the following political argument directly to the Congress of the United States, to be read into the record of any legislative proceeding considering this initiative:

You have accepted, in statute and in precedent, that a government which destroys a people's economic foundation bears an obligation to recognize that destruction in law—not only for the people it destroyed, but through the specific legislative tools available for each documented

harm. You accepted it for Japanese Americans through the Civil Liberties Act of 1988, treating redress payments as damages for human suffering rather than taxable income. You accepted it for disaster-displaced Gulf Coast communities through the Katrina Emergency Tax Relief Act of 2005, granting time-bound federal tax relief as recovery assistance.

The international community from which the United States seeks moral authority accepted it for Jewish survivors through the Luxembourg Agreement. Separately, you have long accepted that a sovereign government does not tax the sovereign entities and enterprises of another government operating on its own land, which is why tribal governments and their wholly owned enterprises are exempt from federal income tax under 26 U.S.C. § 7871, and why states generally cannot tax income a tribal member earns from activity on their own reservation, under *McClanahan v. Arizona State Tax Commission*, 411 U.S. 164 (1973).

Black Americans were enslaved on this soil by law. Their labor built this economy without compensation. Their wealth was extracted by legal design across every generation since emancipation. They have asked for reparations. Congress has refused. They have asked for enforcement of existing civil rights law. Enforcement has been incomplete and inconsistent. They are now asking for two things you have already agreed are appropriate for other peoples who suffered comparable or lesser harm at the hands of the same government: a defined period of federal tax relief on the income their own reconstruction generates, equal to one third of the two hundred fifty years their labor went unpaid, and the same state tax treatment already extended to tribal members earning income on their own land, extended to ACE members earning income on ACE Territory once secured.

This is not a radical demand. It is the minimum application of principles you have already accepted, applied to a harm longer and larger than any precedent you have applied them to before. ACE asks that you apply them equally.

### **Sec. 1505. Implementing Framework: How the BATEI Exemption Works in Practice**

The Black American Tax Equity Initiative establishes a federal tax exemption for Black Americans operating within ACE-chartered entities and ACE Territory. The following framework describes the operational mechanism through which the exemption is claimed, administered, and enforced.

**Eligibility and Registration.** A Black American becomes eligible to claim the BATEI exemption by registering as an ACE Community Member through the ACE Member Registry, maintained by the ACE Development Entity. Registration requires demonstration of Black American status as defined in Section 103 of this Act and enrollment in or commitment to residency within an ACE-chartered community or enterprise zone. Registration is voluntary, costs nothing, and is open to any eligible person regardless of current geographic location. The Registry is maintained as a permanent, secure, community-controlled database and is not shared with any federal, state, or local government agency without the express written consent of the registered member.

**Scope of the Exemption.** Once enacted by Congress, the BATEI exemption operates as follows:

35. Income earned by a registered ACE Community Member through employment within, or from the operation of, an ACE-chartered entity is exempt from federal income taxation for

36. the duration established in Section 1502, on the same legal basis Congress has already used to grant tax relief for documented, government-caused harm.
37. The federal exemption follows ACE-chartered entities wherever they operate in the United States, because it is a remedy for unpaid labor, not a benefit tied to any particular land. The separate state exemption established in Section 1502 applies only to income earned within ACE Territory once secured, because it rests on the same land-based legal basis states already apply to tribal members earning income on their own reservation.
38. The exemption applies to wages, salaries, business income, investment returns from ACE Community Investment Bonds, and distributions from the ACE Community Provident Fund, where such income is generated within ACE-chartered economic structures.
39. The exemption does not apply to income earned outside ACE-chartered entities, ensuring that BATEI functions as an incentive for economic participation within ACE Territory and ACE enterprise structures, not as a general income tax exemption for all Black Americans in all contexts.

Administration. The BATEI exemption shall be administered through the ACE Policy Institute, which shall publish annual guidance on eligible entities, qualifying income categories, and documentation requirements. The ACE Majority Lending Institution network shall provide registered members with tax documentation sufficient to support exemption claims on federal returns. ACE shall maintain a publicly available registry of ACE-chartered entities whose operations generate BATEI-eligible income.

Compliance and Accountability. ACE accepts full accountability for the integrity of the BATEI exemption program. The ACE Policy Institute shall publish an annual BATEI Compliance Report documenting the number of registered members, the volume of exempt income claimed, the categories of qualifying enterprise, and any compliance issues identified and resolved. This report shall be provided to the ACE Congressional Caucus and made publicly available on [acecommunities.org](http://acecommunities.org). ACE does not seek a blanket exemption that is difficult to audit. ACE seeks a precisely defined, transparently administered, fully accountable exemption that demonstrates to Congress and the public that the principle being applied is being applied responsibly.

Phase-In. The two BATEI tracks phase in on different schedules, because they rest on different legal bases and neither depends on the other. The federal exemption shall be phased in as ACE-chartered entities are established, consistent with the Four Phases framework in Title V. In Phase 1, ACE establishes the Member Registry and the compliance infrastructure. In Phase 2, as the first ACE-chartered enterprises begin operations, wherever they are located, the federal exemption becomes claimable for qualifying income generated within those enterprises. In Phase 3 and Phase 4, as the ACE network expands and the national replication strategy of Title XII is activated, the federal exemption scales accordingly. The state exemption cannot begin phasing in until Phase 2 at the earliest, because it requires ACE Territory to exist: it becomes claimable only for income earned within a given parcel of ACE Territory once that parcel is secured under Title III or Title XXI, and it scales territory by territory as ACE Territory expands, independent of whether the federal exemption has been enacted, amended, or withdrawn.

**THE BLACK AMERICAN TAX EQUITY INITIATIVE: NOT A GIFT. THE MINIMUM APPLICATION OF A PRINCIPLE CONGRESS HAS ALREADY ACCEPTED.**

## **TITLE XVI**

# **ACE SOVEREIGN INSTITUTIONS AND POLITICAL INFRASTRUCTURE**

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### **Sec. 1601. The Sovereign Institution Mandate**

ACE shall form all organizations necessary to advance its agenda from within. ACE does not partner with, channel its political agenda through, or accept the institutional authority of any existing political caucus, civil rights organization, community development intermediary, or advocacy body whose primary accountability runs to systems, donors, party structures, or constituencies outside the ACE community. The history of Black and Native American political organizations in America is a history of institutions that began in radical clarity and ended in institutional compromise. ACE builds its own, accountable only to the communities it serves.

This mandate does not preclude strategic alliance with individuals, elected officials, or community leaders whose values align with ACE. It precludes structural dependency on any institution whose independence ACE cannot guarantee and whose loyalty ACE cannot enforce through community accountability.

### **Sec. 1602. The ACE Congressional Caucus**

ACE shall establish the ACE Congressional Caucus as an independent political accountability network operating entirely outside of and parallel to existing congressional caucus structures. The ACE Congressional Caucus is not a caucus within Congress. It is a network of elected officials at federal, state, and local levels who have received formal ACE endorsement and who operate under ACE community accountability as a condition of that endorsement.

### **Membership and endorsement**

- Any elected official representing a constituency that includes ACE community members may seek ACE Congressional Caucus endorsement by submitting a formal ACE Legislative Commitment, a binding written commitment to specific ACE policy positions including the BATEI, tribal partnership protections, and ACE community development funding;
- Endorsement is granted by the ACE Director of External Affairs with confirmation by the ACE Co-Governance Council, and is renewable every two years subject to ACE community satisfaction review;
- Endorsed members who vote contrary to their ACE Legislative Commitment without prior ACE consultation and documented community justification are subject to public ACE withdrawal of endorsement, ACE-coordinated primary challenge support, and removal from the ACE Caucus network.

## **The accountability distinction**

The critical structural difference between the ACE Congressional Caucus and every existing political caucus is this: existing caucuses answer to their party leadership.

ACE Caucus members answer to ACE communities. An ACE-endorsed member who is pressured by party leadership to vote against ACE interests faces a choice between their party's goodwill and their constituency's organized power. ACE ensures that choice is never cost-free.

### **Sec. 1603. ACE Political Action Infrastructure**

ACE shall establish the following political institutions, each organized independently and accountable exclusively to ACE governance:

- ACE Political Action Committee (ACE PAC): A federally registered PAC funding the campaigns of ACE Congressional Caucus members and ACE-aligned candidates at all levels of government, funded exclusively by ACE community members and major donors;
- ACE Voter Mobilization Network: A community-based voter registration, education, and turnout operation within every ACE community, ensuring that ACE residents vote as a coordinated bloc on issues affecting ACE interests;
- ACE Policy Institute: A community-funded think tank producing the legal briefs, economic analyses, and policy white papers that support ACE legislative initiatives including the BATEI, tribal partnership protections, and ACE community infrastructure funding;
- ACE Legal Defense Fund: A fund retaining civil rights and tribal sovereignty attorneys to defend ACE communities, challenge adverse legislation, and pursue the litigation tracks identified in Title XV.

### **Sec. 1604. ACE Community Organizations - The Full Institutional Ecosystem**

ACE shall form or formally charter the following community organizations as autonomous institutions accountable to ACE governance, replacing reliance on external organizations in each functional area:

#### **In lieu of external civil rights organizations**

- ACE Justice League: ACE's own civil rights legal and advocacy organization, staffed by ACE-trained attorneys and community advocates, handling discrimination complaints, police accountability cases, housing rights enforcement, and civil rights litigation on behalf of ACE community members;
- ACE Community Audit Bureau: An independent watchdog organization monitoring all ACE institutions, including ACE governance itself, for accountability, transparency, and alignment with ACE community values.

#### **In lieu of external economic development organizations**

- ACE Business Alliance: The community chamber of commerce for ACE-licensed businesses, providing networking, technical assistance, shared purchasing power, and collective bargaining with external suppliers;

- ACE Labor Guild: A community labor organization representing ACE workers across all sectors, negotiating with ACE enterprises on wages, working conditions, and CPF contribution rates, distinct from conventional unions in that its accountability runs to the ACE community, not to national union leadership.

**In lieu of external cultural and educational organizations**

- ACE Cultural Preservation Council: The governing body for ACE's cultural archive, language preservation programs, oral history project, and relationship with the tribal partner's cultural institutions;
- ACE Youth Council: A formally elected governing body of ACE community members under the age of 25, with a seat on the ACE Co-Governance Council and the authority to initiate community proposals, review youth-affecting policy, and hold adult leadership publicly accountable to the next generation.

## TITLE XVII

# TRIBAL ENGAGEMENT STRATEGY AND PARTNERSHIP DEVELOPMENT

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### **Sec. 1701. Purpose**

This Title establishes the formal strategy by which ACE identifies, approaches, cultivates, and enters into Tribal Partnership Agreements with federally recognized Native American tribes. The tribal partnership is the foundational legal and territorial act upon which all ACE community development rests. It must be approached with the highest levels of cultural respect, legal precision, strategic patience, and genuine reciprocity. ACE comes to tribal nations not as a petitioner asking for access to their land, but as a partner bringing capital, population, and shared purpose to a relationship that benefits both communities materially and historically.

### **Sec. 1702. Pre-Engagement Preparation - Before Any Tribal Contact**

No ACE representative shall initiate contact with any tribal council or tribal leadership without completing the following preparation in full:

50. Retain tribal sovereignty legal counsel with documented experience representing both tribal governments and non-tribal entities in HEARTH Act land lease transactions. This counsel must be engaged before any tribal outreach, not after;
51. Commission a tribal history brief for each target tribe: a document of no less than 20 pages covering the tribe's specific history with the U.S. government, their current sovereignty status, their existing economic development activity, their documented relationship with Black Americans or Freedmen populations where applicable, their current tribal council leadership and governance structure, and any active political tensions within the tribal community that ACE must understand before entering;
52. Identify a trusted intermediary for each target tribe a historian, attorney, academic, or community figure with existing relationships of trust with that tribe's leadership. Cold outreach to tribal councils fails. Introduction through a trusted voice opens doors;
53. Prepare the ACE Tribal Partnership Prospectus a formal document tailored to each specific tribe presenting ACE's vision, the specific benefits to the tribe, the legal structure of the proposed partnership, and the economic projections for the tribe's revenue share over 25 years. This document must be specific to the tribe, not a generic pitch deck.

### **Sec. 1703. The First Conversation - What ACE Says and How**

The first conversation with a tribal council is not a presentation. It is a listening session. ACE's representative, led by the Native American Co-Chair wherever possible, arrives not to pitch but to ask, to hear, and to demonstrate that ACE already understands what it is asking.

## **The opening**

The ACE representative opens with acknowledgment, not agenda. The tribe's history, their sovereignty battles, their specific relationship with the federal government, and their current development priorities are named specifically and correctly. This signals that ACE has done its homework and is not here to treat the tribe as interchangeable land access.

### **The three questions ACE asks first**

- What is your community's most pressing unmet need that the federal government has failed to address? This roots the conversation in the tribe's real priorities and allows ACE to frame its offer in terms of what matters to them, not what ACE wants from them.
- What has your experience been with outside organizations or governments that have come to your land with development proposals? This invites the tribe to name past betrayals, which ACE must hear and acknowledge before it has any credibility to offer something different.
- What would a partnership have to look like for your council to even consider it? This hands the tribe the architecture of the conversation. ACE is not presenting terms. ACE is asking what terms would be acceptable.

### **What ACE offers - the four-point value proposition**

- Capital investment that the tribe controls the pace of: ACE brings development funding but the tribe's co-governance authority means no project proceeds without tribal council approval. ACE does not arrive with a timeline and ask the tribe to accommodate it;
- Population that generates revenue: Black American residents on tribal land generate economic activity, housing payments, commercial spending, employment taxes within the tribal enterprise structure, that grows the tribe's revenue base without extracting from it;
- Shared sovereignty protection: ACE's legal team and political infrastructure actively defends tribal sovereignty because ACE's own existence depends on it. The tribe gains a well-funded, motivated co-defender of the legal framework that protects them both;
- Cultural respect written into the governing structure: The tribal partner's cultural practices, language, land stewardship traditions, and healing knowledge are embedded in ACE's governing charter, not as gestures of respect but as institutional mandates that cannot be amended without tribal co-governance approval.

### **What ACE never does in a tribal conversation**

- ACE never presents a timeline as fixed before a partnership agreement is signed;
- ACE never implies that the tribe's land is underutilized or underdeveloped, language that echoes the colonial justifications used to take tribal land historically;
- ACE never makes promises that are not backed by executed legal documents;
- ACE never sends a representative who has not completed the tribal history brief for that specific nation.

### **Sec. 1704. Cultivation Phase - Between First Meeting and Agreement**

The period between first contact and a signed Tribal Partnership Agreement should be expected to span six months to three years. This is not a failure of the process; it is the process. Tribal governance moves deliberately, by design, because decisions made on behalf of a sovereign nation must survive leadership changes, legal challenge, and community dissent. ACE respects this entirely and builds its planning timeline around it.

- ACE shall make itself useful to the tribe during the cultivation period without condition. This means offering legal research assistance, connecting the tribe with relevant federal funding sources, supporting the tribe's existing development initiatives, and showing up to tribal community events, not only to council meetings;
- ACE shall invite tribal leadership to visit any ACE planning activities, board meetings, and community events, building familiarity with ACE people and culture overtime;
- ACE shall propose a formal Memorandum of Understanding (MOU) as an intermediate step a non-binding document of mutual intent that signals progress to both parties without requiring the tribal council to commit before its community is ready;
- ACE shall conduct a joint feasibility study with the tribe covering land suitability, infrastructure requirements, environmental assessment, and economic projections funded by ACE, conducted jointly, owned by both parties. The tribe's participation in building the analysis gives them ownership of the conclusions.

### **Sec. 1705. The Signed Agreement - What Success Looks Like**

A signed Tribal Partnership Agreement is not the end of the relationship it is the beginning of the hardest phase. ACE shall treat the signing as a public, community-celebrated event for both peoples: a ceremony that honors the significance of what two historically marginalized communities are committing to build together. The signing shall be witnessed by both communities, documented in ACE's permanent record, and marked as a foundational date in ACE history.

Post-signing, ACE establishes a Joint Implementation Committee comprising ACE Founding Board members and tribal council representatives, meeting monthly, with publicly available minutes and a community-facing dashboard tracking every development milestone and every financial commitment made and kept.

## **TITLE XVIII**

# **MAJOR DONOR AND COMMUNITY LEADER OUTREACH STRATEGY**

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### **Sec. 1801. Purpose and Philosophy**

ACE's primary capital does not come from government. It comes from the community, from Black and Native Americans of means who understand that their wealth was built within a system that owes their communities a debt it has never paid, and who choose to deploy that wealth as an act of civilizational responsibility. This Title establishes the formal strategy by which ACE identifies, approaches, and converts the most influential and resourced members of the Black and Native American communities into investors, advocates, and co-builders of the ACE vision.

The physical outreach package, a FedEx-delivered package containing the ACE one-pager and the full ACE Act proposal, is the primary first-contact instrument for all Tier 1 and Tier 2 targets. A physical package signals seriousness, demands attention, and communicates that this is not a mass campaign. It is a deliberate, personal approach to a specific individual whose specific history and platform make them the right person for this moment.

### **Sec. 1802. The Four Outreach Tiers**

#### **Tier 0 - The Counselor: President Barack Obama**

President Barack Obama is in a category that no other living person occupies. He is not approached as a donor, not as an endorser, and not as a public advocate. He is approached as a counsellor, the one person alive who has navigated the exact intersection where ACE exists: the tension between operating inside American systems and carrying the full knowledge of what those systems have done and continue to do to Black and Native people.

Obama has sat across the table from tribal leaders, federal agency directors, Senate majority leaders, and foreign heads of state. He knows where every landmine is in the path ACE is walking. He knows which legal arguments are airtight and which will be challenged. He knows which federal agencies can be leveraged and which will resist. He knows which legislators can be moved by moral argument and which require political pressure. He knows from personal experience at the highest level what it costs to navigate these systems while Black.

If Barack Obama reads this document and concludes privately that it is sound, legal, and necessary and conveys that judgment, even privately, to the individuals in Tiers 1 through 3 the campaign does not start at zero. It starts with the most credible Black voice in American political history behind it. Every wealth target follows. Every tribal leader takes the meeting. Every community minister opens their pulpit. The former President of the United States saying 'this deserves your attention' is not an endorsement it is a legitimizing force unlike anything else available to ACE at this stage.

## The approach to President Obama

- The physical package delivered to President Obama shall be addressed to him personally at the Obama Foundation in Chicago. It shall contain the ACE Act in full, a one-pager framed specifically as a request for counsel, and a personal handwritten letter from the ACE Co-Chair;
- The one-pager for President Obama does not lead with the vision he will read the document and understand the vision. It leads with the question: Will you help us navigate this correctly?
- The letter acknowledges directly what is being asked: not his public support, not his name attached to anything without his consent, but his private assessment of whether this framework is sound and his willingness to share that assessment with people whose respect he holds and whose support ACE needs;
- The follow-up is through the Obama Foundation's public contact channels with a cover note identifying ACE by name and requesting that the package be brought to the President's personal attention. ACE does not cold-call his private staff. ACE respects the boundaries of a former President's private life while making the case clearly enough that the document speaks for itself;
- If President Obama does not respond within 90 days, ACE proceeds without his endorsement and does not make his non-response public. ACE builds what ACE builds. His blessing would accelerate the mission. His silence does not stop it.

**TIER 0 PRINCIPLE: WE ARE NOT ASKING PRESIDENT OBAMA TO CARRY THIS. WE ARE ASKING HIM TO TELL US IF WE ARE CARRYING IT CORRECTLY.**

### Tier 1 - Wealth at Scale

Tier 1 targets are individuals whose single investment commitment can fund ACE Phase 1 development in its entirety or make a material contribution to Phase 2 infrastructure. The case made to Tier 1 targets is the legacy argument: what do you want your wealth to have built in 100 years?

Target profile: High-net-worth Black and Native American individuals with documented philanthropic activity, public statements of concern for Black community development, and sufficient liquidity to commit seven-to-nine figure investments. Examples include but are not limited to entertainers, athletes, media executives, and technology entrepreneurs of color.

- The one-pager for Tier 1 leads with the civilizational scale of the vision, not a community program, not a nonprofit initiative, but a city. A university. A sovereign economy. A healthcare system that no Black mother has to fear;
- The investment offer is structured as named infrastructure commitment the donor's name is permanently attached to what their capital builds: a school, a hospital wing, an energy grid, a university college;
- Tier 1 donors investing above one million dollars (\$1,000,000) are invited onto the ACE Founders Council with direct access to ACE leadership and annual impact reporting;

- Follow-up to the physical package is a personal call or meeting requested through the donor's known representatives within 14 days of confirmed delivery.

## **Tier 2 - Ideological Alignment**

Tier 2 targets are individuals and organizations whose entire public platform is the independence, self-determination, and sovereign development of Black and Native American communities. ACE is the implementation of what they have been preaching, teaching, and organizing toward. The case made to Tier 2 targets is the fulfillment argument: you have been right all along. Here is the blueprint.

This tier includes the Nation of Islam and its leadership specifically. The NOI has preached Black economic independence, land acquisition, and separation from white American institutional control for over 70 years. They have the theology, the organizational infrastructure, the community trust, and the national reach. What ACE brings them is the legal architecture and the tribal sovereignty partnership that makes the vision buildable. ACE does not ask the NOI to become ACE. ACE shows the NOI that what they have been calling for is now architected and ready.

- The one-pager for Tier 2 opens with direct acknowledgment of their specific contribution to the vision of Black independence not generic praise, but specific reference to their stated theology, published positions, or documented work. This signals that ACE did not send a form letter;
- The ask to Tier 2 targets is threefold: financial investment at whatever level is accessible, organizational endorsement that carries their credibility to their community networks, and active introduction to other aligned individuals and institutions within their sphere of influence;
- Community ministers and church leaders in this tier are offered a specific ACE Community Ministry Partnership a formal relationship in which the church or mosque becomes an ACE grass roots organizing hub, connecting their congregation to ACE town halls, investment bond programs, and relocation information for Phase 2 community establishment.

## **Tier 3 - Community Ministry and Church Networks**

The historically Black church is the deepest-rooted institution in Black American community life. The AME Church, COGIC, the National Baptist Convention, the Progressive National Baptist Convention, and independent mega-churches collectively reach tens of millions of Black Americans every week through direct community relationships that no political organization or media platform can match. These institutions also hold significant real estate and endowment assets that, if aligned with ACE, represent both capital and organizing infrastructure.

- The one-pager for Tier 3 leads with the theological and historical resonance of what ACE is building, the promised land is not a metaphor. Two of the most spiritually resilient peoples in human history are building a physical community grounded in their shared values, on sovereign land, outside the systems that have oppressed them. That is a story every Black church in America recognizes;
- The ask to Tier 3 is to become an ACE Community Ministry Partner: hosting ACE town halls, distributing ACE information to congregations, organizing Community Investment

Bond purchase drives, and serving as trusted community validators for ACE's grassroots expansion;

- Ministers who engage deeply with ACE are offered seats on ACE's Community Advisory Council, giving them a formal voice in ACE's direction and a platform that extends their influence beyond their congregation.

#### **Tier 4 - Tribal Leadership**

Tribal council leaders and tribal nation presidents receive a separate package tailored entirely to the government-to-government nature of the relationship ACE is proposing. This package contains the ACE Tribal Partnership Prospectus rather than the general ACE Act, and the one-pager for this tier leads not with vision but with specifics: what this tribe stands to gain, what ACE commits to protect, and what the partnership structure looks like in concrete legal terms. The full tribal engagement protocol is established in Title XVII of this Act.

#### **Sec. 1803. The Physical Package - Specifications**

The ACE physical outreach package shall be prepared and delivered according to the following specifications, ensuring that the first impression ACE makes on every Tier 1, 2, and 3 target is one of quality, intentionality, and seriousness:

- Delivery method: FedEx Priority Overnight, addressed by full name to the individual recipient, not to an organization or office. Personal addressing signals personal attention;
- Outer packaging: ACE-branded box or envelope with the ACE name and the phrase 'For Our People, By Our People' as the only exterior text. No corporate logos, no partner organization branding;
- Contents: (1) The ACE One-Pager a single, professionally designed page tailored to the recipient's tier and specific profile; (2) The ACE Act, the full legislative proposal in printed, bound format; (3) A handwritten or personally signed cover note from the ACE Co-Chairs, specific to the recipient;
- The ACE One-Pager for each tier is distinct in content but consistent in design: ACE name and founding statement at top, the core vision in three sentences, the specific ask tailored to the recipient's tier, and a direct contact for the ACE Co-Chair, not a general inbox, a named person with a direct number;
- Follow-up protocol: 14 days after confirmed delivery, a personal follow-up call is placed from the ACE Co-Chair or designated senior representative to the recipient's known contact point. The call does not pitch; it asks if the package was received and whether the recipient has questions.

#### **Sec. 1804. The ACE One-Pager - Content Framework by Tier**

##### **Tier 1 - Wealth at Scale (example: Jay-Z, Oprah, LeBron James)**

**Line 1** - The vision, stated plainly: We are building the first self-governing, self-sustaining city for Black and Native Americans on tribal land in the history of the United States.

**Line 2** - The legal foundation: We are doing it legally, permanently, and on sovereign ground protected by tribal sovereignty law that the federal government has recognized for over 200 years.

**Line 3** - The scale: 51 million Black Americans. 574 federally recognized tribes. 25 years. A network of cities. A university system. A healthcare system where no Black mother fears the delivery room.

**Line 4** - The ask, direct: We are not asking you for charity. We are offering you the most significant investment opportunity of your lifetime, the chance to put your name on a city. On a school. On a hospital. On a future that exists because you chose to build it. The full proposal is enclosed. We would like 30 minutes of your time.

## **Tier 2 - Ideological Alignment (example: Nation of Islam leadership)**

**Line 1** - Acknowledgment: For generations, you have taught that Black people in America must build their own economy, own their own land, and govern their own communities. You have been right.

**Line 2** - The announcement: ACE, the Alliance for Collective Empowerment is the legal, architectural, and civilizational implementation of that vision. Not a program. Not a movement. A city. Built on tribal land, protected by sovereign law, funded by our own people, governed by our own hands.

**Line 3** - The connection: We are not asking you to change what you have built. We are showing you that what you have preached is now blueprinted and ready to build. We believe you should be part of it.

**Line 4** - The ask: Read the enclosed proposal. Then let's meet. The door is open.

## **Tier 3 - Community Ministry (example: AME Bishop, COGIC Presiding Bishop)**

**Line 1** - The resonance: The promised land is not a metaphor. Two of the most spiritually resilient peoples in human history Black Americans and Native Americans, are building a real community on sovereign land, governed by their own laws, sustained by their own economy.

**Line 2** - The invitation: ACE is looking for community ministers whose congregations are ready to be part of something their grandchildren will read about. Not as donors. As organizers, validators, and co-builders.

**Line 3** - The ask: Host one ACE town hall. Let your congregation hear the vision. Then decide. The enclosed proposal tells the full story.

## TITLE XIX

### ACE LEGISLATIVE AND GOVERNING BODY

#### **Sec. 1901. The Necessity of Formal Governance**

Every community institution built by Black and Native American peoples that has been dismantled, from the Freedmen's Bureau to Black Wall Street to the organizational infrastructure of the Civil Rights Movement, shared a common structural vulnerability: governance that depended on the character of individuals rather than the authority of institutions. When the right people were in the room, the institution worked. When circumstances changed, when leadership transitioned, when outside pressure was applied, the absence of constitutional architecture meant the absence of resilience. ACE does not repeat this. ACE's governance is designed to be attack-proof, leadership-transition-proof, and exploitation-proof, not because ACE assumes bad faith from within, but because ACE has studied what happens when that assumption proves wrong.

#### **Sec. 1902. Separation of Powers - The Three Branches of ACE Government**

ACE shall establish three co-equal branches of community governance within each ACE city, with distinct authorities, distinct accountability structures, and formal mechanisms by which each branch checks the others. No individual, office, or institution within ACE holds unchecked authority in any domain.

#### **Branch 1 - The ACE Community Assembly (Legislative)**

The ACE Community Assembly is the primary legislative body of each ACE community. It holds the exclusive authority to pass ACE community law, approve the annual community budget, authorize major infrastructure expenditure, and ratify amendments to the ACE Governing Charter.

- Composition: The Assembly comprises elected representatives from each residential district within the ACE community, with a minimum of one representative per 500 residents and a maximum district size of 2,000 residents. Every ACE resident above the age of 18 is eligible to vote and to stand for election;
- Dual community representation: No less than forty percent (40%) of Assembly seats shall be held by Native American members of the ACE community at all times. Where the Native American resident population falls below the threshold required to fill these seats through general election, the Tribal Co-Governance Council nominates qualified candidates to fill the remaining seats;
- Youth representation: Two (2) seats in every ACE Community Assembly are reserved for members of the ACE Youth Council elected representatives between the ages of 16 and 25, with full voting rights on all legislative matters;
- Term limits: Assembly members serve two-year terms with a maximum of three consecutive terms, after which they must sit out one full term before re-standing. This prevents entrenchment while preserving institutional knowledge;

- Transparency mandate: All Assembly sessions are public. All votes are recorded by name.

All legislative proceedings are documented and published in the ACE Community Record within 48 hours. No closed-door legislative sessions are permitted except on matters of documented security sensitivity, subject to post-session public disclosure.

### **Branch 2 - The ACE Executive Council (Executive)**

The ACE Executive Council is the administrative branch of ACE governance, responsible for implementing Assembly legislation, managing day-to-day community operations, directing ACE departments, and representing ACE in all external relationships.

- Leadership: The Executive Council is led by two Co-Executives, one Black American and one Native American elected directly by ACE community residents in a community-wide vote. Co-Executives serve three-year terms with a maximum of two consecutive terms;
- Cabinet structure: The Co-Executives appoint a Cabinet comprising the directors of each ACE department Infrastructure, Health, Education, Economy, Safety, Culture, External Affairs, and Finance subject to Assembly confirmation by simple majority vote;
- Executive accountability: The Assembly may remove any Cabinet member by a two-thirds majority vote. The Co-Executives may be recalled by community referendum initiated by a petition signed by twenty percent (20%) of eligible voters;
- No executive law-making: The Executive Council holds no authority to pass law, issue binding community regulations, or commit ACE to external agreements without Assembly authorization. Executive orders are administrative directives only, subject to Assembly review within 30 days of issuance.

### **Branch 3 - The ACE Community Court (Judicial)**

The ACE Community Court is the judicial branch of ACE governance, holding authority to interpret the ACE Governing Charter, adjudicate disputes between community members and ACE institutions, review the constitutionality of Assembly legislation, and administer the restorative justice system established in Title VII.

- Composition: Three permanent justices, one Black American, one Native American, one elected at-large by community residents appointed by the Co-Executives and confirmed by two-thirds of the Assembly, serving seven-year non-renewable terms;
- Constitutional review authority: Any ACE resident, institution, or Assembly member may petition the Community Court to review any Assembly law or Executive action for conformity with the ACE Governing Charter. The Court's constitutional rulings require unanimous agreement of all three justices;
- Restorative justice administration: The Community Court oversees the Restorative Justice Office established in Title VII, with appellate authority over Community Circle outcomes and original jurisdiction over all ACE Community Court proceedings;
- External jurisdiction limits: The Community Court shall maintain a standing public brief documenting the precise limits of outside law enforcement, state court, and federal court jurisdiction within ACE Territory under tribal sovereignty law, updated annually by ACE legal counsel.

### **Sec. 1903. The Tribal Co-Governance Council - Sovereign Integration**

The Tribal Co-Governance Council is the formal mechanism by which ACE's tribal partner exercises co-equal governance authority over matters affecting ACE Territory and the tribal nation's sovereign interests. It operates alongside the three ACE branches not subordinate to them, and holds specific authority that no ACE branch can override.

- Composition: The Tribal Co-Governance Council comprises the tribal council leadership of the ACE Tribal Partner, or their formally designated representatives, sitting in permanent joint session with the ACE Co-Executives on all matters specified in the Tribal Partnership Agreement;
- Exclusive Tribal Co-Governance Council authority matters requiring Tribal Co-Governance Council approval that no ACE branch alone can authorize: any amendment to the Tribal Partnership Agreement; any external law enforcement access to ACE Territory; any change to land use affecting tribal cultural or sacred sites; any ACE Governing Charter amendment; and any decision to enter a new Tribal Partnership Agreement with a different or additional tribal nation;
- Tribal governance integration: The Tribal Co-Governance Council is not structured to replace or override the tribe's existing internal governance. The tribe continues to govern itself according to its own constitutional documents and traditions. The Co-Governance Council is the interface between tribal governance and ACE governance, a joint body for shared decisions, not a merged authority;
- Elder council recognition: ACE formally recognizes the role of tribal elder councils in the governance of each ACE community. Elders hold advisory authority that the Co-Governance Council is required to formally consult before any major land use, cultural, or sovereignty decision. This advisory authority is documented, and its exercise is part of the public governance record.

### **Sec. 1904. Contemporary Governance with Cultural Integrity**

ACE governance is deliberately designed to be neither a replica of the American municipal model nor a romanticization of pre-colonial tribal governance. Both of those approaches fail the first by importing the structural biases and power dynamics of the system ACE is separating from, the second by treating living cultures as historical artifacts rather than adaptive, sophisticated systems of human organization.

ACE governance is contemporary in structure: separation of powers, elected representation, constitutional supremacy, transparency mandates, and term limits are the architectural tools of a governance system designed to survive time, leadership transition, and external pressure. These tools are not white tools or Western tools; they are the tools that any large-scale human community requires to govern itself without descending into the concentration of power that destroys institutions from within.

ACE governance is Indigenous in spirit: consensus is sought before voting wherever time permits. Elders hold formal advisory authority.

The land and future generations are considered constituencies in every major decision, not metaphorically, but through formal impact assessment requirements that ask of every major policy:

what does this do to the land, and what does it do to the children who have not yet been born into this community? Decision-making that ignores these constituencies is not modern governance; it is the same extractive logic that produced the conditions ACE was built to escape.

### **Sec. 1905. Gap-Proofing - The Five Vulnerability Areas**

ACE governance has been designed with specific attention to the five areas most commonly exploited by outside interests to destabilize, infiltrate, or legally challenge community institutions:

54. Membership definition: The ACE Governing Charter shall contain a precise, legally defensible definition of ACE community membership that determines voting rights, housing eligibility, CPF participation, and community court standing. Vague membership definitions create both legal vulnerability and internal conflict. ACE's definition is specific, documented, and consistent with tribal membership standards where applicable under the Tribal Partnership Agreement;
55. Property rights: Every property interest within ACE Territory, residential leases, commercial licenses, cooperative equity shares, CPF housing account claims, is documented in the ACE Property Registry, a permanent community record that establishes each resident's rights in a form that is legally enforceable within the ACE Community Court and under tribal law;
56. Amendment procedures: The ACE Governing Charter may be amended only by a two-thirds supermajority of the Community Assembly, ratification by the Tribal Co-Governance Council, and a community referendum in which not less than sixty percent (60%) of eligible voters participate and not less than sixty percent (60%) vote in favor. This triple-lock amendment procedure ensures that the Charter cannot be changed by a temporary majority, a single leader, or external pressure on any one branch of governance;
57. Emergency powers: No emergency, natural disaster, external legal challenge, financial crisis, or internal conflict, grants any individual or branch of ACE governance unchecked authority. Emergency powers are time-limited to 90 days, require joint authorization by both Co-Executives and a simple majority of the Assembly, and are subject to immediate Community Court review upon petition by any five (5) Assemblymembers;
58. Succession: Every ACE leadership position has a documented succession protocol. The sudden absence of any Co-Executive, Cabinet member, or Founding Board Co-Chair triggers a defined succession process, not a power vacuum. ACE's resilience does not depend on any individual remaining available, healthy, or willing to serve.

## TITLE XX

# THE ACE GOVERNING CHARTER - CONSTITUTIONAL FRAMEWORK

### **Sec. 2001. The Governing Charter as Supreme Authority**

The ACE Governing Charter is the supreme governing document of every ACE community. All ACE institutions, all ACE legislation, all Executive Council directives, and all Community Court decisions derive their authority from the Charter and are subject to its constraints. No individual, no branch of governance, no founding board member, no tribal council representative, and no major donor holds authority superior to the Charter. The Charter is the community's highest expression of its own sovereignty.

The Charter shall be drafted by a Constitutional Convention comprising: four (4) members elected by the ACE founding community; four (4) members appointed by the Tribal Co-Governance Council; two (2) ACE legal scholars; two (2) tribal sovereignty law experts; and two (2) members of the ACE Youth Council. The Convention shall conduct its deliberations publicly, publish draft versions for community comment, and ratify the final Charter by unanimous Convention vote. The Charter takes effect upon ratification and immediately supersedes all prior ACE governance arrangements.

### **Sec. 2002. The ACE Bill of Rights**

The ACE Governing Charter shall include a Bill of Rights guaranteeing the following to every ACE community member, enforceable by the ACE Community Court and not subject to suspension by any branch of ACE governance:

59. The right to safe, stable housing within ACE Territory, enforced through the ACE-CPF Housing Account, the community land trust, and the Emergency Housing Reserve. No ACE residents shall be made homeless by ACE's own institutions;
60. The right to healthcare, administered through the ACE MediSave Program and ACE healthcare institutions, without financial barrier or discrimination on any basis;
61. The right to education, from early childhood through vocational or university completion, within the ACE school system, without tuition cost for ACE community members;
62. The right to participate in ACE governance: to vote, to stand for election, to petition the Community Assembly, to bring matters before the ACE Community Court, and to access all public governance records;
63. The right to cultural expression: to practice one's Indigenous or African diaspora cultural

and spiritual traditions without interference from ACE governance or any ACE institution;

64. The right to due process: no ACE community member shall be subject to punitive action by any ACE institution without notice, an opportunity to be heard, and a written decision subject to Community Court review;

65. The right to economic participation: no ACE community member shall be excluded from the CPF system, the MLI lending program, or the cooperative economy on any discriminatory basis;
66. The right to safety: to live within ACE Territory without fear of violence from within the community or from external actors, protected by the ACE Peacekeeping Corps and the sovereign jurisdiction provisions of the Tribal Partnership Agreement.

### **Sec. 2003. Foundational Constitutional Principles**

The ACE Governing Charter shall be governed by the following foundational principles, which inform the interpretation of every Charter provision and take precedence over any ACE legislation or executive action that conflicts with them:

- Dual sovereignty: ACE governance and tribal governance are co-equal sovereign authorities within ACE Territory. Neither supersedes the other. Their interface is governed by the Tribal Partnership Agreement and the Co-Governance Council;
- Permanence of community ownership: The infrastructure layer of ACE, land, energy, water, broadband, and transportation systems, is permanently held in community ownership and may not be privatized, sold, or transferred to external control under any circumstances, including financial distress or political pressure;
- Intergenerational accountability: Every major ACE decision with long-term consequences, land use, Charter amendment, infrastructure sale, Tribal Partnership modification requires a formal Future Generations Impact Assessment documenting the effects of the decision on ACE community members not yet born. This principle, drawn from Indigenous governance traditions, is enforceable by the Community Court;
- Non-extraction: No ACE institution, no ACE officer, and no external partner may extract wealth from ACE Territory in a manner that diminishes the community's long-term asset base. The ACE Community Audit Bureau holds standing authority to investigate and report any transaction that violates this principle;
- Cultural integrity: The Pan-African and Indigenous cultural mandates embedded throughout this Act are Charter-level protections. They may not be amended out of the Charter, overridden by Assembly legislation, or waived by Executive Council action.

### **Sec. 2004. The Charter and External Law**

The ACE Governing Charter does not claim authority superior to federal law where federal law legitimately applies within ACE Territory. What the Charter does claim and what the tribal sovereignty framework legally supports, is the maximum sphere of self-governance available under existing federal law, including but not limited to:

- Full tribal court jurisdiction over civil matters between ACE community members occurring within ACE Territory;
- Tribal authority over land use, zoning, and environmental standards within ACE Territory under the HEARTH Act and applicable tribal sovereignty precedent;
- Immunity from state taxation and state regulatory jurisdiction for enterprises operating under the tribal charter;

- The right to exclude non-consenting outside law enforcement from ACE Territory except in the narrow circumstances where federal law requires access;
- The right to operate ACE educational institutions, healthcare systems, and financial institutions under tribal regulatory frameworks rather than state frameworks, where federal law permits.

ACE legal counsel shall maintain a continuously updated Sovereignty Map a living legal document identifying every area in which ACE governance authority is legally established, every area in which it is legally contested, and the specific legal strategy for each contested area. The Sovereignty Map is reviewed by the Community Court annually and published as a public document so that every ACE resident, every ACE institution, and every outside actor knows exactly where ACE's legal boundaries lie and why.

#### **Sec. 2005. The Constitutional Convention - Timeline and Process**

The ACE Constitutional Convention shall be convened within eighteen (18) months of the execution of the first Tribal Partnership Agreement. It shall complete its deliberations and ratify the ACE Governing Charter within twelve (12) months of convening. Until the Charter is ratified, ACE shall operate under the Founding Board's authority as defined in Title II, with all Founding Board decisions subject to retroactive Charter review upon ratification. No Founding Board decision made during the pre-Charter period shall be immunized from Charter review by virtue of its timing.

The Constitutional Convention shall be the most important governing act in ACE's history. It shall be conducted with the full participation of both communities, full public transparency, and the full weight of legal expertise available to ACE. It shall produce a document that does not merely govern ACE communities today it shall produce a document that governs them in 100 years, when the people who built this are gone and what remains is what they wrote down and made permanent.

**THE ACE GOVERNING CHARTER IS NOT A POLICY DOCUMENT. IT IS THE HIGHEST EXPRESSION OF TWO PEOPLES' RIGHT TO DETERMINE THE CONDITIONS OF THEIR OWN LIVES. IT IS WRITTEN TO LAST.**

## TITLE XXI

# THE TRIBAL PARTNERSHIP CONTINGENCY FRAMEWORK

### **Sec. 2101. Purpose and Findings**

This Title establishes a second, independent path by which ACE may secure land and sovereign self-governance for its communities, operating in parallel to, and never dependent upon, the tribal partnership framework established in Title III. The purpose of this Title is to ensure that the achievement of ACE's civilization-scale mission does not rest on the consent, availability, or willingness of any single party, including any tribal nation, and that ACE's pursuit of tribal partnership proceeds from a position of dignity and self-sufficiency rather than necessity.

Congress is reminded of the following findings:

40. In January 1865, General William T. Sherman issued Special Field Order No. 15, setting aside coastal land in South Carolina, Georgia, and Florida for the settlement of formerly enslaved Black Americans in allotments of not more than forty acres per family. Applied to the approximately 4.5 million formerly enslaved Black Americans living at that time, the full promise of Special Field Order No. 15 would have totaled approximately 180 million acres.
41. Special Field Order No. 15 was revoked by President Andrew Johnson later that same year, before its promise could be fulfilled for the overwhelming majority of those to whom it was made. No comparable remedy has been enacted in the one hundred sixty-one years since.
42. A literal present-day application of the Special Field Order No. 15 promise, extended to the approximately 51 million Black Americans living today, would require in excess of 2 billion acres, an area exceeding the entire land area of the United States. Even the original 1865 figure of approximately 180 million acres approaches the land area of the State of Texas. Neither figure constitutes a politically achievable remedy, and this Title does not propose either.
43. This Title proposes a claim that is specific, calculated, and historically justified in precise terms: 33.15 million acres of land already held by the United States as public land under the management of the Bureau of Land Management, distributed as approximately 3.315 million acres each across ten states. This figure is derived from a precise calculation: the current Black American population of approximately 47 million people, at 0.705 acres per person, equals 33.135 million acres, rounded to 33.15 million. That per-person figure represents less than two percent of the 40-acre promise made per formerly enslaved person in 1865, applied to a Black American population that is now more than ten times larger than the one that promise was made to. Stated differently, 33.15 million acres is less than eighteen and a half percent of the 180 million acres that were promised and revoked in the same year. It

is land the United States already holds, administers, and controls, not land that must be purchased, condemned, or taken from any private party, state government, or tribal nation.

44. After one hundred sixty-one years, the question Congress must answer is no longer whether the original promise of 1865 can or should be fulfilled in full. That question was foreclosed by the conduct of the United States Government itself within the same year the promise was made. The question properly before Congress now is what a realistic, meaningful, and achievable form of restitution looks like today. This Title answers that question directly and asks Congress to act upon it.

### **Sec. 2102. Relationship to Title III: Parallel, Not Substitute**

This Title does not replace, diminish, supersede, or compete with the tribal partnership framework established in Title III of this Act. Tribal partnership remains ACE's primary and preferred path to land and territory, and nothing in this Title shall be read to suggest otherwise.

ACE pursues the framework established in this Title and the tribal partnership framework established in Title III simultaneously and without preference of one over the other in ACE's public communications, outreach, or institutional posture. ACE is strengthened, not weakened, by pursuing both paths at once.

The Founding Board recognizes that the failure of tribal partnership to materialize, whether through the unwillingness of any tribal nation to enter into a Tribal Partnership Agreement, the breakdown of partnership negotiations after a period of cultivation, or any other cause, would constitute a disservice to both the Black American and Native American communities this Act is built to serve, not a failure attributable to either community alone. This Title exists so that such an outcome, should it occur, does not also constitute the failure of ACE's mission.

Nothing in this Title shall be construed as diminishing tribal sovereignty, as a substitute for genuine partnership with tribal nations, or as suggesting that the land claimed under this Title carries equivalent historical, spiritual, or legal weight to land held by tribal nations under treaty or aboriginal title. The claim made under this Title rests on a distinct historical and legal foundation, articulated in Section 2103, and is not advanced in competition with or at the expense of tribal land claims of any kind.

### **Sec. 2103. The Continuity Doctrine: ACE's Core Legal Theory**

The legal theory of this Title rests on a single, precise distinction, drawn from the United States Supreme Court's own words, between the historical treatment of Native American tribal nations and the historical treatment of Black Americans under United States law.

In *Dred Scott v. Sandford*, 60 U.S. 393 (1857), the Supreme Court held that persons of African descent, whether enslaved or free, were not and could never become citizens of the United States. In reaching this holding, the Court drew an explicit distinction between the legal status of Native American tribes and the legal status of Black Americans. The Court observed that the situation of Black Americans was altogether unlike that of Native American tribes, because although Native peoples were never absorbed into the colonial political community, they were nonetheless recognized as a free and independent people, organized into nations and tribes and governed by their own laws, a political continuity the United States acknowledged even while displacing it by force. No equivalent recognition was ever extended to Black Americans.

The Court instead held, in the same opinion, that Black Americans possessed no rights that the United States was bound to respect.

This distinction, drawn by the Supreme Court of the United States in its own words, is the legal foundation of this Title. Tribal political continuity was violently disrupted, repeatedly and at great human cost, by the same federal government this Act now asks to act, but it was never legally extinguished. Tribes retained, and in time regained, the standing to be recognized as continuous sovereign political communities, because the United States itself, even in its worst moments of dispossession, never formally denied that such communities existed and governed themselves.

Black Americans' political continuity was not merely disrupted. It was actively and legally prevented from ever being re-constituted, by affirmative acts of the same government now being asked to recognize it. The legal architecture of chattel slavery defined Black Americans as property rather than persons. *Dred Scott v. Sandford* foreclosed citizenship and personhood as a matter of constitutional law. The decades of Jim Crow that followed emancipation used the law itself to suppress, criminalize, and dismantle every independent Black political and economic institution capable of reconstituting the self-governing continuity that chattel slavery had severed.

Black Americans are accordingly not a recently formed group within the meaning this Act returns to in Section 2104. Black Americans are the continuation of a people whose self-governing political continuity was severed by deliberate legal design, not by voluntary dissolution, historical accident, or simple conquest. The same government responsible for severing that continuity now bears the obligation to provide a remedy commensurate with that severance, a remedy this Title defines.

#### **Sec. 2104. Disclaimer of Existing Eligibility**

ACE does not claim, and this Title does not assert, that Black Americans or ACE as an organization presently qualify for recognition or protection under 25 C.F.R. Part 83, the federal acknowledgment regulations governing recognition of Indian tribes, or under 25 U.S.C. Section 5108, the land-into-trust authority of the Indian Reorganization Act of 1934.

This disclaimer is made plainly and without hedging, because it is true, and because a legal claim built on a false premise would damage the credibility of every other legal argument advanced in this Act, including the Black American Tax Equity Initiative established in Title XV.

Both 25 C.F.R. Part 83 and 25 U.S.C. Section 5108 are built, explicitly and by design, to recognize and protect a political community whose existence as a continuous, self-governing entity already preceded the inquiry, not to create new sovereign or trust status for any group, however compelling its history. The federal acknowledgment regulations expressly exclude associations, organizations, or groups of any character formed in recent times from eligibility, regardless of whether such a group otherwise satisfies the substantive criteria for community

and political authority. This exclusion is not an oversight or a technicality to be argued around. It is the central design feature of the regulation, and ACE will not pretend otherwise.

ACE states this directly, first, and without qualification, because doing so is the stronger legal posture, not the weaker one. A claim that ignores or obscures an obvious threshold objection invites that objection to be raised by an adversary, at a time and in a forum of the adversary's choosing. A claim that states the objection itself, addresses it honestly, and explains precisely why a different and new remedy is nonetheless justified, forecloses that line of attack before it can be made.

### **Sec. 2105. The Legislative Ask: A New, ACE-Specific Statute**

Because existing law does not extend tribal recognition or land-into-trust authority to ACE, this Title does not ask any federal agency to apply or reinterpret 25 C.F.R. Part 83 or 25 U.S.C. Section 5108 on ACE's behalf. This Title instead calls upon the Congress of the United States to enact new, standalone legislation, to be known upon introduction as the ACE Sovereign Territory Act, establishing a sovereignty and trust-land framework specifically for ACE, modeled upon the substance and strength of the existing tribal framework but created through Congress's own independent legislative authority.

This is not a novel or unprecedented legislative posture. The Federally Recognized Indian Tribe List Act of 1994 itself confirms that federal recognition of a tribe's sovereign status may be established through any of several independent paths: by treaty, by Act of Congress, by the administrative procedures of 25 C.F.R. Part 83, or by decision of a United States court. Recognition by direct Act of Congress, entirely outside the Part 83 administrative process, is accordingly a documented, used, and legally settled pathway, not a theory original to this Act. Where a tribe's relationship with the United States has been terminated by federal statute, only a subsequent federal statute, not the Part 83 process, may restore it, a further confirmation that Congress's own legislative authority operates independently of, and is not limited by, the administrative acknowledgment framework.

Title XXI asks Congress to exercise that same independent legislative authority on ACE's behalf. The case for doing so does not rest on a claim that ACE already qualifies under the existing framework. It rests on the continuity doctrine established in Section 2103: that the same legal principle underlying tribal recognition, the recognition of a people's continuous claim to self-determination, compels Congress to create a parallel mechanism for Black Americans precisely because the existing mechanism was built around communities whose continuity, however violently disrupted, was never legally extinguished, while Black Americans' continuity was extinguished as a matter of law by the deliberate action of the United States itself.

The ACE Sovereign Territory Act shall be introduced as a standalone legislative measure, pursued through the legislative strategy established in Section 2110 of this Title, and shall not be presented to Congress as an amendment, clarification, or extension of 25 C.F.R. Part 83 or 25 U.S.C. Section 5108, consistent with the disclaimer in Section 2104.

**Sec. 2106. The Land Claim: Acreage and Sites**

ACE's contingency land claim consists of 33.15 million acres of land currently held and managed by the United States as public land under the jurisdiction of the Bureau of Land Management, to be designated in increments of approximately 3.315 million acres each across ten states: Nevada, Utah, Wyoming, California, New Mexico, Arizona, Idaho, Oregon, Montana, and Colorado. Each of the ten states named above holds substantially more than 3.315 million acres of land presently under Bureau of Land Management administration, ranging from approximately 8.3 million acres in the smallest of the ten (Colorado and Montana) to approximately 48 million acres in the largest (Nevada).

The 3.315-million-acre claim in each state accordingly represents a fraction, in every case well under half, of that state's existing Bureau of Land Management holdings, and does not require the disposal, sale, or reduction of any privately held, state-held, or tribally held land of any kind.

Thirty-three point fifteen million acres is equivalent to approximately 51,797 square miles. At full Phase 4 scale, were the complete 32 million person planning population of this Act to relocate voluntarily to ACE Territory secured under this Title over the full twenty-five year development horizon established in Title V, the resulting average density would be approximately 618 persons per square mile, or approximately 0.97 persons per acre, a density comparable to moderate suburban development in the United States. This Title does not propose individual homesteads or rural settlement. It proposes the land base for modern, self-governing cities and regional economies, built and owned collectively, consistent with the Eight Systems mission of Title V.

The purpose of land secured under this Title is identical in kind to the purpose of land secured under a Tribal Partnership Agreement pursuant to Title III: the development of self-governing, self-sustaining ACE communities encompassing housing, education, healthcare, public safety, food sovereignty, economic development, and the full institutional architecture established elsewhere in this Act.

**Sec. 2107. Required Terms of the Statute: No Conditions, No Partnership, No Reversion**

The ACE Sovereign Territory Act called for in Section 2105 shall, at minimum, secure for ACE Territory designated under this Title the full and unconditional equivalent of every protection, immunity, and authority currently held by federally recognized tribal nations with respect to their trust land, including but not limited to full jurisdictional sovereignty, exemption from state and local taxation, self-governance free of federal administrative oversight, and permanent title held in trust on ACE's behalf.

The strength of the sovereignty secured under this Title depends entirely on the text Congress enacts, not on the legislative doorway through which that text is requested. A statute drafted with the language proposed in this Title can secure protections fully identical in substance and durability to those an existing-mechanism claim would have secured, had one been legally available. ACE accordingly demands the maximum, unconditional protection package described above, in full, as a floor and not a ceiling.

The ACE Sovereign Territory Act shall NOT contain, and ACE will not accept legislation that contains, any of the following:

45. Any requirement that ACE enter into a partnership, co-governance arrangement, or any other form of formal relationship with the United States Government, any federal agency, or any state government as a precondition of the land grant or sovereignty designation;
46. Any reversionary clause or condition under which title to ACE Territory secured under this Title could revert to the United States Government, in whole or in part, upon any change in the use, governance, or development of that land by ACE;
47. Any continuing oversight authority, approval right, or veto power held by any federal agency, department, or official over ACE's governance, land use planning, or community development decisions within ACE Territory secured under this Title;
48. Any time limitation, sunset provision, or periodic renewal requirement on the sovereignty, tax exemption, or jurisdictional protections secured under this Title.

For illustration only, and not as a path ACE pursues or endorses, the Recreation and Public Purposes Act presently allows the Bureau of Land Management to convey public land to nonprofit organizations and communities at low or no cost for designated public purposes. Conveyances under that Act and similar authorities typically carry a reversionary clause requiring continued public-purpose use, with title returning to the federal government should that use lapse. This is precisely the category of conditional arrangement this Section forecloses. ACE's founder has stated plainly that there is no place for ACE to build under any arrangement requiring partnership with, or continuing dependency upon, the United States Government, and the terms of this Section exist to guarantee that posture in law.

### **Sec. 2108. Integration with ACE's Eight Systems Mission**

Land secured under this Title shall be developed according to the same Eight Systems framework, phased development structure, and institutional architecture established in Title V and the Titles that follow it, governing housing, education, healthcare, public safety, food sovereignty and agriculture, media and culture, governance, and economic development.

ACE Territory secured under this Title is not a distinct or lesser category of ACE community. It is full ACE Territory, governed by the same ACE Governing Charter once ratified, eligible for the same Community Investment Bond financing, MLI lending, ACE-CPF participation, and the entire institutional and financial architecture established throughout this Act, on terms identical to ACE Territory secured under a Tribal Partnership Agreement.

Where land secured under this Title and land secured under a Tribal Partnership Agreement are developed concurrently, the Founding Board shall coordinate resource allocation, phased development timelines, and institutional capacity across both tracks in a manner that strengthens, rather than divides, ACE's overall development capacity, consistent with the parallel, non-competing posture established in Section 2102.

**Sec. 2109. Governance of Contingency-Track Territory**

ACE Territory secured under this Title shall be governed by the same three-branch governance structure established in Title XIX of this Act, the ACE Community Assembly, the ACE Executive Council, and the ACE Community Court, on terms identical to ACE Territory secured under a Tribal Partnership Agreement.

Because land secured under this Title is not subject to a Tribal Partnership Agreement, there is no Tribal Co-Governance Council counterpart with respect to that land, and no provision of Title XIX requiring Tribal Co-Governance Council consultation or approval shall apply to decisions concerning ACE Territory secured exclusively under this Title.

The absence of a Tribal Co-Governance Council counterpart for land secured under this Title shall not be read to diminish the legitimacy, permanence, or institutional completeness of that territory's governance in any respect.

ACE Territory secured under this Title is governed by the full and complete ACE governance structure established in Title XIX, in exactly the same manner, and with exactly the same authority, as ACE Territory secured under Title III, with the sole distinction being the absence of a tribal partner with whom co-governance authority would otherwise be shared.

**Sec. 2110. Legislative and Political Strategy**

The ACE Sovereign Territory Act shall be pursued through the same three parallel tracks established for the Black American Tax Equity Initiative in Title XV, adapted to the subject matter of this Title:

49. Legislative advocacy. ACE shall advocate directly for the ACE Sovereign Territory Act through the ACE Congressional Caucus established in Title XVI, introduced as a standalone legislative measure and pursued independently of any existing tribal recognition or land-into-trust legislative vehicle, consistent with Section 2105(d).
50. Coalition building. ACE shall build coalition support for the ACE Sovereign Territory Act among sympathetic members of Congress, state legislatures, and aligned advocacy organizations, while making unmistakably clear, in every public and legislative communication, the parallel and non-competing relationship between this Title and ACE's tribal partnership strategy established under Section 2102.
51. Public political argument. ACE shall make the political argument established in the findings of Section 2101 directly and repeatedly: that one hundred sixty-one years after Special Field Order No. 15 was promised and revoked within the same year, the question is no longer whether the original promise can be fulfilled in full, but what a realistic and achievable remedy looks like today, and that the ten-million-acre claim of this Title is precisely that remedy.

The legal and historical foundation of this Title, particularly the continuity doctrine established in Section 2103 and its grounding in *Dred Scott v. Sandford*, is shared with and reinforces the Human Rights Doctrine established in Title XXII of this Act. ACE's legislative and political strategy under this Title and ACE's international human rights strategy under Title XXII shall

be coordinated to present a single, consistent historical and legal narrative across both domestic and international forums.

ACE shall prepare and maintain, on permanent retainer with its legal counsel, a companion legal brief pre-arguing the strongest counterarguments to this Title, consistent with the standing practice established in Title IX, Section 902, addressing in particular the relationship between this Title's continuity doctrine and existing federal Indian law, anticipated challenges to the constitutionality and scope of the proposed ACE Sovereign Territory Act, and precedent for congressional creation of new sovereignty and trust-equivalent frameworks outside the standard administrative acknowledgment process.

### **Sec. 2111. The ACE Sovereign Territory Act: Draft Statutory Text**

The following constitutes the draft text of the ACE Sovereign Territory Act, the standalone federal legislation called for in Section 2105 of this Title.

This draft is prepared for introduction through the ACE Congressional Caucus established in Title XVI and shall be refined in consultation with ACE legal counsel before formal introduction. It is included here to demonstrate that ACE's legislative ask is specific, drafted, and ready for congressional consideration, not a concept awaiting development.

## **IN THE CONGRESS OF THE UNITED STATES**

A BILL to establish sovereign territorial designation and trust-equivalent protections for the Alliance for Collective Empowerment and Development in recognition of the federal government's specific, documented, and unremedied obligations to Black Americans arising from the legal architecture of chattel slavery, the denial of legal personhood established in *Dred Scott v. Sandford*, and the continuous pattern of government-sanctioned destruction of Black American political and economic institutions.

**SHORT TITLE.** This Act shall be cited as the ACE Sovereign Territory Act.

**FINDINGS.** Congress finds the following:

52. In January 1865, General William T. Sherman issued Special Field Order No. 15, setting aside coastal land for the settlement of formerly enslaved Black Americans. Applied to the approximately 4.5 million formerly enslaved persons living at that time, fulfillment of this promise would have totaled approximately 180 million acres. President Andrew Johnson revoked the order within the same year it was made. No comparable remedy has been enacted in the one hundred sixty-one years since. The 33.15 million acres claimed by this Act is derived from a precise calculation: the current Black American population of approximately 47 million people, at 0.705 acres per person, equals 33.135 million acres, rounded to 33.15 million. That per-person figure represents less than two percent of the 40 acres promised per formerly enslaved person in 1865, applied to a population now more than ten times larger than the one the promise was made to. ACE is not asking for what was promised. ACE is asking for less than a fifth of what was promised, calculated on a per-person basis against the population alive today.

53. In *Dred Scott v. Sandford*, 60 U.S. 393 (1857), the Supreme Court held that Black Americans possessed no rights that the United States was bound to respect and could never become citizens. This ruling constituted a denial of legal personhood, not merely a denial of civil rights, and required a constitutional amendment to formally supersede. The restitution that acknowledgment of that wrong demanded has never been provided.
54. The United States currently holds and administers more than 247 million acres of public land through the Bureau of Land Management. The ten states designated in Section 5 of this Act each hold substantially more than 3.315 million acres of Bureau of Land Management public land. The 33.15 million acres designated by this Act represents less than thirteen and a half percent of total federal public land holdings. It requires no condemnation of private property, no seizure from any state, and no displacement of any person.
55. The Federally Recognized Indian Tribe List Act of 1994, Public Law 103-454, confirms that federal recognition of a sovereign entity's status may be established by an Act of Congress independently of the administrative acknowledgment process under 25 C.F.R. Part 83. Congress exercises that same independent statutory authority by enacting this Act.

**DESIGNATION.** The United States hereby designates the Alliance for Collective Empowerment and Development (ACE) as a sovereign territorial entity entitled to the full and unconditional equivalent of all protections, immunities, and authorities currently held by federally recognized tribal nations with respect to their trust land, including full jurisdictional sovereignty, exemption from state and local taxation, and self-governance free of federal administrative oversight.

**LAND GRANT.** The Secretary of the Interior is directed to designate, within eighteen months of the enactment of this Act, not less than 3.315 million acres of Bureau of Land Management public land in each of the following ten states for a total designation of not less than 33.15 million acres, to be held in trust on behalf of ACE with the full protections established in Section 3 of this Act: Nevada, Utah, Wyoming, California, New Mexico, Arizona, Idaho, Oregon, Montana, and Colorado.

**CONDITIONS.** The designation made by this Act:

56. Does not require ACE to enter into any partnership, co-governance arrangement, or formal relationship with the United States Government, any federal agency, or any state government as a condition of the land grant or sovereignty designation.
57. Does not contain any reversionary clause under which title to ACE Territory could revert to the United States Government upon any change in the use, governance, or development of that land.
58. Does not grant any federal agency continuing oversight authority, approval right, or veto power over ACE's governance, land use planning, or community development decisions within ACE Territory.
59. Does not contain any time limitation, sunset provision, or periodic renewal requirement on the sovereignty, tax exemption, or jurisdictional protections established by this Act.

**EFFECTIVE DATE.** This Act takes effect upon enactment.

## TITLE XXII

# THE HUMAN RIGHTS DOCTRINE

### **Sec. 2201. Purpose**

This Title establishes ACE's Human Rights Doctrine: the principle that the historical and contemporary harms suffered by Black Americans constitute violations of international human rights law, not merely domestic civil rights law, and that the proper remedy for those violations must be pursued simultaneously through both domestic legal channels and the international human rights system. This Title establishes the institutional infrastructure, strategic framework, and core legal theory through which ACE advances its international human rights claim, and commits ACE to a multi-track engagement strategy grounded in the specific procedural mechanisms available under existing international law.

### **Sec. 2202. The Civil Rights Ceiling and the Human Rights Foundation**

Prior generations of Black American leadership, at enormous personal cost and with extraordinary courage, pursued the recognition of Black Americans' civil rights within the domestic legal system of the United States. The Civil Rights Act of 1964, the Voting Rights Act of 1965, and the Fair Housing Act of 1968 represent the most significant legal achievements of that century-long struggle. ACE honors that legacy and does not diminish it.

What the civil rights framework could not fully address, and what its successors have since learned, is that civil rights are themselves downstream of human rights. A government extends civil rights to those it recognizes as fully human. The legal architecture of the United States denied Black Americans that recognition for two centuries before the civil rights movement began, and the domestic legal system through which civil rights remedies are sought remains the product and the instrument of the same government that originally denied that recognition. Asking a domestic legal system to remedy violations that preceded, enabled, and in many respects produced that system is a structurally limited strategy.

The deeper claim is a human rights claim. Human rights are not something a national government grants or withholds. They are inherent, recognized under international law independently of any domestic legal framework, and violated when a government fails to protect them regardless of what that government's domestic law says. ACE's doctrine is that the harms visited upon Black Americans constitute violations of international human rights law that are cognizable before international bodies independent of and in addition to their status as domestic civil rights violations. ACE pursues both tracks simultaneously, because the claim is of both characters and neither domestic nor international remedies alone are sufficient.

### **Sec. 2203. The Historical Record: A Human Rights Violation Before Personhood Was Recognized**

The human rights claim ACE advances rests on a documented historical record that begins not with civil rights but with the prior and more fundamental question of legal personhood.

In *Dred Scott v. Sandford*, 60 U.S. 393 (1857), the Supreme Court of the United States held that Black Americans, free or enslaved, were not and could never become citizens of the United States and possessed no rights that the United States was bound to respect.

This ruling was not merely a denial of civil rights. It was a denial of the legal personhood that is the precondition for any civil rights claim whatsoever. A people whose government has formally declared them non-persons under law have not had their civil rights violated. They have had their human rights violated at the most fundamental level that legal language can express.

*Dred Scott* was formally superseded by the Fourteenth Amendment in 1868. It was not superseded by the human rights violation it expressed. The legal architecture of chattel slavery that predated *Dred Scott*, and the century of Jim Crow legal subordination that followed the Fourteenth Amendment, together constitute a sustained, deliberate, government-designed pattern of denial not merely of equal treatment but of the foundational human status from which equal treatment flows. Contemporary structures and systems, including racial profiling, differential health outcomes, the Black maternal mortality crisis, the wealth gap, mass incarceration, and unequal access to education and political participation, are not independent phenomena. They are the documented, measurable present-day consequences of that sustained historical pattern, and they constitute the ongoing, present-day dimension of the human rights violation ACE names.

This framing does not replace or supersede the domestic civil rights claims ACE pursues through BATEI and Title XXI. It adds to them a layer of claim that those domestic instruments cannot reach: the claim that the United States has failed its obligations as a State party to international human rights instruments, before international bodies whose authority does not depend on U.S. domestic law and cannot be foreclosed by U.S. domestic political decisions.

The historical record includes a further and specific piece of documentary evidence that ACE names directly as the predicate for its human rights claim. In 1638, the Maryland Colony issued a public edict stating that neither the existing Black population, their descendants, nor any other Black people would be permitted to enjoy the fruits of White society. That edict, known as the Maryland Doctrine of Exclusion, was adopted by other colonies and codified by the Slave Codes of 1705, which required every institution across the colonies to enforce the economic and political subordination of Black people as mandatory public policy. The Maryland Doctrine of Exclusion has never been formally repealed by any legislative body. No court has named it and declared it void. It is the documented, written, named policy foundation from which the contemporary conditions described in this Section flow.

The conditions Black Americans face in 2026 are not evidence of a failure to progress. They are the intended, named, and continuously enforced output of a system designed from its founding to produce exactly this result. ACE names this document because the human rights claim requires a named predicate, and the Maryland Doctrine of Exclusion is that predicate: specific, written, dated, and unreversed.

## **Sec. 2204. The International Legal Foundation**

ACE's human rights claim is grounded in the following international instruments and their applicability to the documented historical and contemporary record described in Section 2203:

60. The Universal Declaration of Human Rights (UDHR, 1948). Article 1 declares that all human beings are born free and equal in dignity and rights.

Article 2 establishes that every person is entitled to all rights and freedoms without distinction of any kind including race. Article 7 establishes equality before the law and equal protection against discrimination.

The UDHR is not a treaty with a binding enforcement mechanism, but it is the foundational statement of international human rights consensus and the normative source from which the binding treaty obligations below derive.

61. The International Convention on the Elimination of All Forms of Racial Discrimination (ICERD, 1965). Ratified by the United States in 1994. ICERD is the central binding treaty obligation of the United States in the domain of racial discrimination. It requires State parties to prohibit and eliminate racial discrimination in all its forms, guarantee the right to equality before the law, and ensure effective remedies for acts of racial discrimination. The Committee on the Elimination of Racial Discrimination (CERD), ICERD's monitoring body, is the primary international body through which ACE's engagement strategy operates, as established in Section 2205 of this Title.
62. The International Covenant on Civil and Political Rights (ICCPR, 1966). Ratified by the United States in 1992. Article 2 requires each State party to respect and ensure all Covenant rights without distinction as to race or color. Article 26 guarantees all persons equal and effective protection against discrimination on any ground including race. The United States' ratification, while accompanied by reservations, establishes binding obligations relevant to the documented patterns of racial inequality described in Section 2203.
63. The Durban Declaration and Program of Action (2001). Adopted by consensus at the World Conference against Racism, Racial Discrimination, Xenophobia and Related Intolerance. The Durban Declaration recognized slavery and the slave trade as crimes against humanity and identified them as among the major sources and manifestations of contemporary racism, racial discrimination, xenophobia, and related intolerance. The Durban Declaration is not a binding treaty, but it constitutes authoritative international consensus on the character of the historical violations underlying ACE's human rights claim and the obligation of governments to provide effective remedies for their continuing consequences.

## **Sec. 2205. The International Engagement Strategy**

ACE pursues its international human rights claim through the following multi-track engagement strategy, informed by the procedural reality of what mechanisms are actually available against the United States under existing international law, not by what mechanisms would ideally exist if the United States had accepted all available treaty jurisdiction.

ACE's engagement strategy is designed around a clear-eyed understanding of what the United States has and has not accepted. The U.S. has never made the Article 14 declaration under ICERD that would allow individual or group complaints against it before CERD. The U.S. has never ratified the First Optional Protocol to the ICCPR that would allow individual complaints under that Covenant.

The U.S. formally withdrew from the Universal Periodic Review in August 2025. These closures are facts, not arguments, and ACE's strategy is built around what remains genuinely open, not around what is closed.

The following tracks are pursued simultaneously and independently, so that the closure or disruption of any one track does not halt the others:

64. Primary track: CERD reparations General Recommendation engagement. The Committee on the Elimination of Racial Discrimination is actively developing a General Recommendation on reparations for the historical injustices caused by the chattel enslavement of Africans and the subsequent harms inflicted upon people of African descent. As of the time of this Act's drafting, CERD's first draft general recommendation on reparations exists and emphasizes that there are ongoing harms related to chattel slavery and the trade in African peoples, and that the present manifestations of these harms must be addressed and remedied as a matter of human rights law. ACE engages this process by submitting documented evidence of the specific harms described in Section 2203 at every available stage of the General Recommendation's development and adoption, to contribute to a document that, once adopted, constitutes internationally authoritative guidance on the obligations of ICERD State parties including the United States.
65. Secondary track: UN Special Procedures communications. The UN Special Procedures system, including thematic mandate-holders such as the Special Rapporteur on contemporary forms of racism, racial discrimination, xenophobia and related intolerance (currently Ms. Ashwini K.P. of India, whose mandate was renewed by Human Rights Council resolution 61/35 in March 2026), operates independently of any U.S. treaty declaration or ratification. Any individual, group, civil-society organization, or other entity may submit information to Special Procedures mandate-holders. The mandate holder may then send an urgent appeal or letter of allegation to the U.S. government, which generates a formal, publicly documented international record of the communication and any government response. ACE submits documented information through this channel and coordinates with mandate-holders whose specific thematic authority covers the violations described in Section 2203.
66. Tertiary track: CERD Early Warning and Urgent Action Procedure. CERD's Early Warning and Urgent Action Procedure is distinct from and does not require the Article 14 individual complaints mechanism that the United States has not accepted. The procedure has been used successfully before the United States on Indigenous land rights claims, producing CERD Decision 1(68) in 2006 urging the United States to freeze and desist from actions against Western Shoshone peoples, a decision still cited in current CERD proceedings. ACE evaluates whether the documented pattern

of harm described in Section 2203 satisfies the procedure's threshold criteria of serious, massive, or persistent patterns of racial discrimination requiring urgent attention, and pursues this track where the threshold can be met.

67. Supplementary track: independent human rights documentation. ACE produces and publishes an independent human rights assessment of the United States' record on the harms described in Section 2203, following the format and documentation standards established for Universal Periodic Review stakeholder submissions, but published and disseminated independently given the United States' 2025 withdrawal from the UPR. This document creates a permanent, citable, publicly available record of ACE's human rights claim independently of any formal international proceeding, and supports ACE's engagement with international allies, civil society partners, and the media.

### **Sec. 2206. The ACE Human Rights Commission**

ACE shall establish the ACE Human Rights Commission as a formal institution within the ACE sovereign institutional ecosystem, accountable to the ACE Co-Governance Council and operating alongside the ACE Justice League established in Title XVI. The ACE Human Rights Commission is distinct from the ACE Justice League in mandate and forum: the ACE Justice League operates in domestic civil rights forums, handling discrimination complaints, police accountability, and civil rights litigation on behalf of ACE community members within the U.S. legal system. The ACE Human Rights Commission operates in the international human rights system, advancing ACE's collective claim before international bodies and building the permanent international record of the human rights violation this Title names.

The ACE Human Rights Commission shall have the following responsibilities:

68. Maintaining the ACE Human Rights Documentation Record: a continuously updated, rigorously documented compilation of the historical and contemporary evidence supporting ACE's human rights claim, organized by the categories of violation identified in Section 2203, cited to primary sources, and maintained at a standard of documentation suitable for submission to international bodies.
69. Preparing and submitting ACE's contributions to international human rights processes including the CERD reparations General Recommendation process, Special Procedures communications, and any other international mechanism identified in Section 2205 or added to the engagement strategy over the 25-year development horizon.
70. Producing ACE's annual Human Rights Assessment: an independently published document documenting the United States' record on the specific harms described in Section 2203, released publicly each year and disseminated to international partners, civil society organizations, and the ACE community.
71. Building and maintaining relationships with international civil society organizations, academic institutions, and allied governments engaged in international human rights advocacy on behalf of people of African descent, including organizations that have already submitted to the CERD reparations process, to coordinate evidence and amplify the collective international record.

72. Coordinating ACE's international human rights strategy with the domestic legislative strategies established in Title XV (BATEI) and Title XXI (Tribal Partnership Contingency Framework), presenting a single, consistent historical and legal narrative across all three tracks. The Continuity Doctrine established in Title XXI Section 2103, grounded in *Dred Scott v. Sandford*, serves the international human rights strategy directly: the same Supreme Court language that established the legal denial of Black American personhood and citizenship is the primary historical evidence of the pre- civil-rights human rights violation this Title names.

### **Sec. 2207. The Historical Precedent: Learning from Prior Attempts**

ACE's international human rights strategy is informed by two precedents that point in opposite directions and together define the parameters of a sound strategy.

The first precedent is cautionary. In December 1951, the Civil Rights Congress submitted a petition to the United Nations titled *We Charge Genocide: The Crime of Government Against the Negro People*, documenting hundreds of lynching cases and other forms of brutality and discrimination. Despite its receipt by UN bodies, the United Nations never formally acknowledged, debated, or responded to the petition. The U.S. government worked behind the scenes to prevent any formal UN consideration, and the petitioners faced direct state retaliation including passport seizure. The petition was a freestanding document delivered outside any defined procedural channel, with no standing mechanism to receive it, no designated body obligated to act on it, and no defined process that would produce a response. The lesson ACE takes from this precedent is not that international engagement is futile but that engagement must be routed through actual, defined procedural mechanisms, not delivered as a dramatic gesture to a body with no formal obligation to respond.

The second precedent is instructive. Beginning in 1999, civil society organizations working with Western Shoshone communities submitted petitions to CERD's Early Warning and Urgent Action Procedure, a mechanism distinct from and independent of the Article 14 individual communications channel the United States has not accepted. The process produced CERD Decision 1(68) in 2006, a real, durable, internationally citable decision urging the United States to freeze and desist from actions against Western Shoshone peoples. The decision has been cited and renewed in CERD proceedings as recently as 2022. It did not bind the United States as a court judgment would. It did create a permanent, professionally produced, internationally authoritative record that continues to carry weight in diplomatic and legal contexts more than fifteen years after it was issued. ACE's engagement strategy models itself on this precedent: patient, multi-year, professionally supported engagement through actual standing mechanisms, producing a durable international record, not a single dramatic petition designed for immediate impact.

### **Sec. 2208. Coordination with Title XXI and BATEI**

The human rights doctrine established in this Title and the domestic legal strategies established in Title XV (BATEI) and Title XXI (the Tribal Partnership Contingency Framework) are not separate arguments pursued in isolation. They are three expressions of a single, unified claim: that the United States government bears a documented, specific, and legally cognizable obligation to Black Americans arising from two centuries of deliberate, government-designed harm, and that obligation has not been discharged by any domestic remedy enacted to date. The three tracks reinforce each other directly. The domestic legislative argument for BATEI is strengthened when the same historical record is simultaneously being cited in an internationally recognized human

rights process, because the international record creates reputational and diplomatic pressure on Congress that domestic advocacy alone cannot generate.

The international human rights claim is strengthened when ACE has simultaneously pursued and been denied adequate domestic remedies, because the exhaustion of domestic channels, even where not formally required by international procedure, demonstrates to international bodies the structural inadequacy of the domestic system.

Title XXI's contingency land claim is strengthened when the same Continuity Doctrine grounded in *Dred Scott v. Sandford* is being argued simultaneously before Congress and before international human rights bodies, because the consistency of the claim across forums is itself evidence of its seriousness and legal grounding.

ACE coordinates the timing, documentation, and public communication of all three tracks through the ACE Human Rights Commission in partnership with the ACE Policy Institute and the ACE Congressional Caucus, to ensure that every development in one track is immediately communicated to and leveraged by the others.

#### **Sec. 2209. Non-Abandonment of Domestic Remedies**

Nothing in this Title shall be construed as abandoning, superseding, or deprioritizing ACE's pursuit of domestic civil rights and legislative remedies. The Human Rights Doctrine established in this Title is additive, not substitutive. ACE pursues both domestic and international tracks simultaneously, because the claim is of both characters, because neither track alone is sufficient, and because the strategic reinforcement between tracks is only available when both are actively pursued.

The Human Rights Doctrine is also not a statement of despair about the domestic system. It is a statement of realism about what the domestic system can and cannot provide, and a statement of principle about where the claim properly belongs. The harms described in Section 2203 were not only violations of U.S. domestic law. They were violations of human rights recognized under international law independently of any domestic framework. ACE asserts both, because both are true.

## CLOSING PROVISIONS

### SEVERABILITY, RATIFICATION, AND CALL TO ACTION

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#### Sec. CP-1. Severability

If any provision of this Act or the application thereof to any person or circumstance is held invalid, the remainder of this Act and the application of such provision to other persons or circumstances shall not be affected thereby.

#### Sec. CP-2. Ratification

This framework shall be considered ratified and effective upon endorsement by the ACE Founding Board Co-Chairs and the duly authorized representatives of the first Tribal Partner executing a Tribal Partnership Agreement pursuant to Title III.

#### Sec. CP-3. Call to Action

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ACE calls upon the following to act:

**The Congress of the United States:** to enact the Black American Tax Equity Initiative by applying to Black Americans the same federal tax exemption principle already extended to tribal nations; to introduce and pass the ACE Sovereign Territory Act designating 33.15 million acres of existing federal public land across ten states for ACE's use with full sovereignty-equivalent protections; and to recognize, at last, that the documented, specific, unremedied obligations the United States bears to Black Americans are obligations of law, not charity, and that the one hundred sixty-one years since Special Field Order No. 15 was promised and revoked in the same year are long enough to wait; and to recognize the Black American community as a sovereign nation, as it recognizes federally recognized tribal nations, on the basis of the Continuity Doctrine established in Title XXI: that Black Americans are the continuation of a sovereign political community never lawfully dissolved, entitled to the full and unconditional equivalent of the protections, immunities, and self-governing authority already extended to tribal nations.

**The Committee on the Elimination of Racial Discrimination and the international human rights community:** to recognize in the General Recommendation on reparations for chattel enslavement that the denial of legal personhood to Black Americans, documented in the Supreme Court's own language in *Dred Scott v. Sandford* and codified in the Maryland Doctrine of Exclusion of 1638, constitutes a human rights violation prior to and more fundamental than the civil rights violations that followed, and that the United States bears a current and specific reparative obligation under international law that has not been discharged by any domestic remedy enacted to date.

**Federally recognized tribal nations:** to consider the partnership ACE proposes as the historic opportunity it is: two peoples dispossessed by the same government, each holding exactly what the other lacks, building together what neither can build alone. ACE does not come to tribal nations as a supplicant. ACE comes as a partner with capital, population, and a twenty-five year civilization-scale development plan, proposing an arrangement in which both communities govern themselves, on their own terms, on ground that belongs to both.

**Black Americans:** to read this Act as what it is: not a petition, not a dream, not a movement. A blueprint. A legal and structural architecture for a civilization built by and for the people it serves, on sovereign ground, under a constitution they wrote, governed by institutions they control, funded by capital they own, and passed to children who will never have to fight for the access their grandparents were denied. ACE is not asking for permission to build. ACE is building. The question is who chooses to be part of it from the beginning.

## **For Our People, By Our People.**

To every Black American who has been told that the system cannot be changed, ACE is not asking the system for permission.

To every Native American leader who has watched sovereignty promised and sovereignty-broken ACE comes as a partner, not a petitioner. We bring capital, population, and purpose.

You bring land, sovereignty, and the oldest knowledge on this continent. Together, we build what neither of us can build alone.

To every person of means and conscience who has asked what their wealth is actually for here is the answer.

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## **THE FUTURE IS OURS.**

### **LET'S BUILD IT.**

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#### **Alliance for Collective Empowerment (ACE)**

*Draft Framework - For Coalition Review, Congressional Introduction, and Tribal Endorsement.*

Founding Author and Originating Authority

## **Léandre Poplus**

### **Founder - Alliance for Collective Empowerment**

This document was conceived, developed, and authored by Léandre Poplus as the founding legislative proposal of the Alliance for Collective Empowerment. It is submitted in the spirit of the inalienable right of people to determine the conditions of their own lives, and in the conviction that Black and Native American communities, working together, have the vision, the legal foundation, the economic power, and the collective will to build what they have always deserved.

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ALLIANCE FOR COLLECTIVE EMPOWERMENT AND DEVELOPMENT

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A FOUNDING DOCUMENT

# **THE UNANIMOUS DECLARATION OF THE ALLIANCE FOR COLLECTIVE EMPOWERMENT AND DEVELOPMENT**

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*A declaration of the causes and the course that follows from them*

**Léandre Poplus, Founder**

Alliance for Collective Empowerment and Development

v1.2 September 2026

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When in the course of human events it becomes necessary for a people to dissolve political bonds that have kept them in a condition their own government created and never repaired, separation becomes a necessary course. They must then withdraw from the authority that has governed them and assume responsibility for their own human, civic, and political future. Such a decision carries with it an obligation to state plainly the conditions that made it necessary.

In response, the Alliance for Collective Empowerment and Development, a coalition formed around the cause of Black self-determination and cooperation with willing Native nations and communities, holds that the governing order under which our people have lived has exhausted any claim upon our continued patience. Across four centuries, the institutions that became and comprise the United States of America have repeatedly treated Black people as instruments of their wealth rather than citizens entitled to the full measure of the principles they professed. The record which follows will show this to be no rash conclusion, but a plain and documented history of what was done, what was permitted, what was promised, and what remains unresolved.

The history set forth here is a history of deliberate injuries, exclusions, and denials that have shaped the human, civic, economic, and political condition of our people across generations. These are not grievances offered without evidence, nor conclusions reached in haste. To prove them, let facts be submitted to a candid world.

It has held human beings as property, torn from their homeland and consigned to bondage, for two hundred fifty years, extracting their labor to build the wealth of a nation that denied them any share in it.

It has stripped human beings of their names, replacing them with names not their own, and of their languages, forbidding by law that they be taught to read or write in any tongue at all. It has suppressed the religions they carried with them from their homeland and required, under laws mandating white supervision of every gathering, that they take up the faith of the very people who held them in bondage, until the god they had known was replaced by the god their captors demanded they answer to instead.

It has, upon the nominal end of slavery, enacted Black Codes and vagrancy laws for the specific purpose of returning the newly freed to bondage in fact where it could no longer hold them in bondage by name.

It has operated a system of convict leasing that continued slavery's labor and its profit under the cover of law, arresting the freed for invented offenses and selling their labor to the same interests that had owned them before.

It has promised forty acres to those it had enslaved, formalized that promise in Special Field Order No. 15, and revoked it within the year, before the greater part of that promise could reach a single family it was made to.

It has, through decades of Jim Crow law, used the machinery of the state itself to enforce the exclusion of Black Americans from the vote, from the courts, from public office, and from every institution capable of building independent political and economic power.

It has redlined Black neighborhoods by official federal policy, denying generations the mortgage capital that built the wealth of every other American community, and has watched the wealth gap that policy created persist to this day without remedy.

It has declared urban renewal upon Black neighborhoods and demolished them for highways and stadiums built for others, displacing families and severing communities that had taken generations to build.

It has waged a war on drugs and a policy of mass incarceration that has imprisoned Black Americans at a rate the rest of the world has no parallel for, extracting labor from prisoners under an exception written into its own Constitution.

It has, toward the Native peoples of this land, waged war, broken every treaty it signed, and removed nations at gunpoint from the land those nations had occupied since memory.

It has enacted a policy of termination and allotment against Native nations, dissolving recognized tribal governments and dividing communal land into parcels designed to be sold away from the people who held it.

It has removed Native children from their families and placed them in boarding schools built on the stated purpose, in the words of the man who founded the first of them, to "kill the Indian and save the man," a policy of cultural extermination carried out against Native children for generations.

It has, under the Code of Indian Offenses of 1883, made Native religious ceremonies a federal crime, punishing those who practiced their faith or sought their own spiritual and medical traditions with imprisonment and the withholding of food, a policy of religious criminalization that stood for ninety-five years until its repeal in 1978.

It has offered this same government's own courts as the only forum for remedy, courts that have upheld the property it stole and left both peoples to petition a system with no incentive to answer them. In every stage of these acts of oppression, we have petitioned for redress in the most humble terms. Our repeated petitions have been answered only by further oppression.

Separation, not segregation, is necessary. Segregation was imposed from outside: a dominant power using law and force to exclude a people from institutions they were never permitted to share equally, while continuing to govern them and control the terms of their exclusion. Separation, by contrast, is chosen from within: a people consciously withdrawing their governance, planning, and institution-building from the reach of a power that has repeatedly shown itself willing to exploit, manipulate, destroy, and even extinguish the very idea of their freedom.

Understanding this, a people cannot prudently rebuild under the supervision of the power that created the ruin. Nor can reconstruction remain dependent upon those whose interests are threatened by its success. The hand that produced the condition cannot be permitted a place in the conversation, a seat at the table, a voice in defining the remedy, or any role in shaping, directing, financing, governing, or redirecting what is built. The process of reconstruction must belong entirely to the people whose condition made it necessary.

We, therefore, the Alliance for Collective Empowerment and Development, on behalf of the members who join this cause, do solemnly publish and declare that we hold the right to govern ourselves, to build our own institutions, and to hold land, wealth, and sovereignty through institutions of our own making, free from dependence on a government that, across four centuries, has failed to extend to us in practice what it has claimed in principle to owe every citizen. We do not declare this in anger, and we do not declare it in haste. We declare it because the record set forth above leaves no honest alternative, and because a people who have waited this long have earned the right to stop waiting.

What is declared here is not declared for a season. The work of building it is a twenty-five-year undertaking, carried out in phases, but what that work brings into existence is intended to endure. A nation does not cease when the work of its founding generation is complete; what they establish is entrusted to those who follow.

To this undertaking, this Alliance and its members pledge every resource they can command, every year required, and every hand willing to build alongside them. To what is established through that work, they pledge their continued protection, stewardship, and preservation for the generations that follow, and without end.

ALLIANCE FOR COLLECTIVE EMPOWERMENT AND DEVELOPMENT



# THE FOUNDING POSITION

*Why ACE Is Here, Not There, and Why That Is the Only Honest Answer*



*Prepared by*

**Léandre Poplus, Founder**

Alliance for Collective Empowerment and Development

June 2026

*For Our People, By Our People*

## I. The Vision Garvey Gave Us

Marcus Mosiah Garvey is not a cautionary tale. He is the beginning of the argument ACE completes. No person in the twentieth century articulated the case for Black sovereignty with greater clarity, greater courage, or greater organizational force. His Universal Negro Improvement Association reached millions at a time when the formal machinery of the United States government was actively working to destroy every institution of Black political and economic self-determination it encountered. Garvey understood something that most of his contemporaries were not yet willing to say plainly: that a system designed to exclude cannot be reformed into one that includes. That the architecture of Black subordination in America was not an oversight to be corrected but a structure to be escaped. That the path to dignity was not through the front door of institutions built to keep Black people out, but through the construction of new institutions built by Black people for Black people. He was right. ACE stands on that truth.

Where ACE departs from Garvey is not on the destination. It is on the premise. Garvey's argument was rooted in departure: Black Americans should go back to Africa because there was nothing left for them here. That premise, however understandable given what Garvey witnessed in the decades after Reconstruction's destruction and amid the violence of the early twentieth century, conceded something that ACE is not willing to concede. It accepted that Black Americans had no legitimate claim to what they had built, and that the only available path to dignity was to leave it behind.

ACE does not accept that. Not because going to Africa is wrong. For those who choose it, ACE celebrates it. Departure, however, cannot be the only path to justice, because departure does not collect a debt. It forgives one, and this debt has not been paid.

***Garvey gave us the vision of sovereignty. ACE completes it by refusing to leave before the debt is settled.***

There is one more thing that must be said about Marcus Garvey before this document moves forward. The colors that fly on every ACE document, every ACE letter, every future ACE building and institution, are his colors.

The red, the black, the green, and the gold of the Pan-African tradition Garvey carried are all present in ACE's palette. Red for the blood of Black people shed across centuries of bondage and resistance. Black for the people themselves. Green for the fertile lands and natural wealth

of Africa. Gold for the riches stolen from those lands and those people, extracted without compensation, the material foundation of the very wealth gap this document names. ACE did not go back to Africa, but it carried the flag. Every piece of correspondence ACE sends into the world, including this one, is marked in the colors of a man who told Black people they deserved to govern themselves. ACE agrees. ACE is the architecture that makes it possible.

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## **II. Why They Stayed: The Debt, Not the Choice**

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The question ACE hears, sometimes asked directly and sometimes left unspoken, is this: if conditions in America have been so deliberately and continuously hostile to Black life, why have Black Americans stayed? The question carries within it an assumption that must be corrected before anything else in this document can be understood. The assumption is that staying was a choice.

It was not. The Emancipation Proclamation was signed on January 1, 1863. Enslaved Black people in Texas did not learn of it until June 19, 1865, two and a half years later, because the country assigned so little urgency to delivering the news of their freedom that it waited until Union troops physically arrived to enforce it. That delay is not a footnote. It is a statement of how much the freedom of Black Americans was valued by the government that declared it. When freedom finally arrived, formally, it arrived without land, without capital, without infrastructure. The only specific promise of material restitution, Special Field Order No. 15, issued by General William T. Sherman in January 1865, was revoked by President Andrew Johnson before the year was out. The formerly enslaved were freed into a legal system that had declared, eight years earlier in *Dred Scott v. Sandford*, that they possessed no rights the United States was bound to respect. The Fourteenth Amendment changed the formal legal status. It did not change the conditions.

Leaving requires resources. Passage requires money. Resettlement requires capital. The same system that created the debt made departure materially impossible for the overwhelming majority of Black Americans. This was not an accident. It was the design. A people freed without land, without wages owed for generations of uncompensated labor, without access to the banking system, without the right to vote in most of the country, without legal protection from the violence of those determined to maintain their subordination, is not a people with options. It is a people trapped by the deliberate architecture of the country that trapped them.

***The impossibility of leaving was not a consequence of the system. It was a feature of it. A people cannot be held without means and then accused of choosing to stay.***

Garvey understood this. His Back to Africa movement required organization, capital, and ships because the scale of what he was proposing demanded it. His vision was not naive. It was the most serious attempt in the twentieth century to answer the question of how a people systematically stripped of resources build their way to sovereignty. The United States government answered that question by imprisoning him, destroying his organization, and deporting him. That is not the story of a plan that failed because conditions were too hard. It is the story of a government that recognized a serious threat to its architecture of control and eliminated it by force. ACE builds in the knowledge of that history.

ACE does not ask Black Americans to leave. ACE does not accept that the absence of a viable exit constitutes consent to the conditions they were left in. The debt is not forgiven by the fact that departure was made impossible. If anything, the impossibility of leaving is part of the debt.

### **III. The Maryland Doctrine of Exclusion**

To understand why the conditions Black Americans live in today persist, it is necessary to understand that those conditions were not produced by neglect, by accident, or by the residue of a slavery that ended long ago. They were produced by policy. Named policy. Written policy. Policy that has never been formally reversed.

In 1638, the Maryland Colony issued a public edict. It did not use the language of preference or custom. It used the language of policy. Its exact words:

***“Neither the existing Black population, their descendants, nor any other Blacks shall be permitted to enjoy the fruits of White society.”***

It became known as the Doctrine of Exclusion. Other colonies adopted it. By 1705, the Slave Codes extended it into law across the colonies, requiring every institution, churches, schools, businesses, governments, to enforce the economic and political subordination of Black people as official, mandatory public policy.

That edict was issued 388 years before ACE was founded. No legislature has formally repealed it. No court has issued a judgment that names it and declares it void. No reparation has been paid. No land has been returned. The Civil Rights Act of 1964 addressed specific mechanisms of discrimination. It did not address the accumulated consequence of 326 years of deliberate exclusion that preceded it. The Fourteenth Amendment granted citizenship. It did not grant restitution. The gap between what was taken and what has been returned remains, in 2026, essentially total.

***The conditions that persist today are not a failure to progress.  
They are the intended, named, and continuously enforced output  
of a system designed to produce exactly this result.***

The wealth gap between Black and white Americans is wider today than it was in 1968. Black maternal mortality remains three times the rate of white women. The question people ask, why are Black Americans seemingly no better off today than when they were brought here, has a documented answer. Not a theory. Not an argument. A document. Written in 1638. Extended in 1705. Never reversed.

ACE is the first organized, legal, civilization-scale answer to that document. Not a protest against it. Not a petition asking for it to be reversed. A decision to build outside its reach entirely, on sovereign ground, under ACE's own constitution, funded by ACE's own people.

*The founding documents of the United States did not accidentally exclude Black and Native people. They excluded us by design, with specificity, and in writing. We do not dispute that. What ACE disputes is the conclusion that the remedy lives inside the same architecture that produced the exclusion. The Constitution is not failing its purpose. It is fulfilling it. We are not surprised, and we are not waiting for it to change. Nor are we asking to change it. Every activist, every movement, every piece of legislation that came before ACE was built on the belief that the system could be made to serve the people it was designed to exclude, operating under the ideal that if*

*enough laws changed, hearts would follow. Many of those efforts produced real and hard-won gains, yet no act of Congress, no Supreme Court ruling, no constitutional amendment has ever been able to legislate what lives in the hearts of the people responsible for enforcing it. The law can change. The man holding the law does not have to. Four hundred years of evidence has made that clear. It is not out of spite, and it is not out of hatred, that ACE builds outside the jurisdiction of a document that was never written with as much as a suggestion of serving our communities. It is out of the only honest conclusion the evidence permits: that the freedom, sovereignty, and dignity Black and Native people deserve cannot be granted by a system designed to deny it. Any system built to truly serve our communities must be built by those communities, on their own ground, under their own authority.*

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## **IV. Why the Debt Lives Here**

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If you're reading this from the African continent, you may be wondering why not do this in Africa? It's a generous question, one that comes from a place of genuine welcome. The sovereign frameworks are there. African governments are actively seeking exactly the kind of capital, entrepreneurship, and population that the African diaspora represents. Why build on American soil, under American political pressure, in the shadow of the government that created the conditions ACE is correcting?

The answer is not that Africa is wrong. Africa is not wrong. The African continent is the homeland of every Black person alive, and ACE honors that without reservation. The answer is that Africa is not the debt.

The labor that built the American economy happened here. The uncompensated generations of work that produced the wealth of the wealthiest nation in human history happened here. The promises of restitution, forty acres and a mule, were made here and broken here within the year they were made. The documented policy of exclusion was written here, extended here, and enforced here for nearly four centuries. The obligation to restore belongs to the country that holds the debt, on the soil where that debt was incurred.

Going to Africa does not collect what is owed in America. It relieves the debtor of the obligation to pay. Black Americans, who built this country's economy without compensation, who were held here

without the means to leave, who have watched every institution of Black self-determination destroyed at its moment of greatest power, are not in the business of relieving debtors.

***ACE is not asking to leave with nothing. ACE is asking to be given, on this soil, a fraction of what was taken on this soil. Ten million acres out of 2.3 billion. The minimum, not the ceiling.***

This is not an argument against Black Americans choosing to build on the African continent. It is an argument that this choice must be exactly that: a choice, made from a position of sovereign self-determination and economic security, not a flight from conditions that were deliberately designed to make every other option impossible. ACE intends to build the conditions under which Black Americans can make that choice freely. When ACE Territory is built, when its economy is functioning and its institutions are stable, Black Americans who choose Africa will leave from a position of sovereignty rather than desperation. That is the difference.

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## V. The African Parallel

Every major industrialist on the African continent whose name appears in ACE's outreach understands something the American political establishment has spent a century refusing to acknowledge: that the debt of extraction is repaid by building where the extraction happened, not by leaving it. Aliko Dangote did not move to London to build what Britain extracted from Nigeria. He built his empire in Nigeria, on Nigerian soil, in the Nigerian economy, because that is where the obligation to restore lay. The wealth that colonial extraction took from the African continent belongs to the African continent, and the right response to that extraction is not emigration to the country that did the extracting. It is building on the ground where the extraction happened with the people it happened to, under institutions those people control.

Abdulsamad Rabiou built BUA Group into a manufacturing conglomerate that generates over \$2.6 billion in revenue, in Nigeria, in cement and food and agriculture, the same sectors colonial extraction had deliberately stunted. Patrice Motsepe built African Rainbow Minerals in post-apartheid South Africa, in a country whose documented, named, government-enforced system of racial exclusion is the closest analog in the modern world to the Maryland Doctrine of Exclusion. He did not leave. He claimed.

ACE is making the identical argument on American soil. The African industrialists who read this document will recognize it immediately, because they have lived it. The argument is not sentimental. It is structural. You build where the debt is. You build where the resources were taken from. You build with the people the system was designed to exclude. You build under your own institutions, governed by your own constitution, funded by your own capital, so that what you build cannot be taken again.

***Dangote did not go to London. Motsepe did not leave South Africa. ACE does not leave America. The argument is the same. The ground is different. The principle is identical.***

There is one distinction worth naming directly. The African industrialists built their enterprises within existing nation-states, with their own governments, however imperfect, that in principle represent the interests of their own people. Black Americans have no such government. The United States government is the entity that issued the Maryland Doctrine of Exclusion, revoked Special Field Order No. 15, and has in 388 years produced no comparable remedy. ACE is not building within the existing American system. ACE is building alongside it, on sovereign ground, under ACE's own constitution, in the tradition of what those African industrialists built but with the added dimension of constructing the governing institution itself, not just the economy within it.

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## **VI. Why ACE Is Arrival, Not Departure**

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Every prior generation of Black American leadership has operated from a position of petition. They have asked the American system to recognize rights, to enforce laws, to extend protections, to acknowledge humanity. They have done this with extraordinary courage, at enormous personal cost, and with results that are real and should not be diminished. The Civil Rights Act, the Voting Rights Act, and the Fair Housing Act are genuine achievements of that generation's struggle. ACE honors every person who made them possible.

But the model rested on an assumption that four hundred years of evidence has not confirmed: that if you change enough laws, the hearts of people who were taught to enforce superiority will follow. They have not. They do not. The belief in racial hierarchy was not an accident of history. The people who arrived on this continent brought it with them.

They built a system that encoded and enforced it, and then the system did something the original hatred alone could not do; it made itself self-sustaining. It reproduced the belief in generation after generation without requiring the original holders to still be present, delivering it to new people as received truth, as natural order, as the way things simply are. You cannot legislate that out of people. You can constrain how it expresses itself in law. You cannot remove it from the people who hold it, because most of them did not choose it. It was given to them by every institution that shaped them before they had any capacity to question whether it was true.

ACE believes that the changing of the guard at the political level, meaning more people of color in more political seats than at any prior point in American history, has produced little to nothing that has actually changed the tangible conditions of the people those seats are supposed to serve. To put it plainly, representation inside an institution built on supremacy, extermination, and the perpetuation of both does not change the institution. It changes who administers it.

It is not because the people in those seats lack ability or commitment. It is because they are fighting two battles simultaneously, one visible and one that is rarely named directly. The visible battle is against the institution itself. The invisible battle is against a belief that was brought to this continent by the people who built the institution, cultivated into law and civic order by the institution they created, and subsequently perpetuated into every generation that followed: the feeling, mindset, and enforcement of hierarchy and superiority, the belief that the superiority of white people and the inferiority of Black people is real, natural, and earned rather than manufactured, imposed, and maintained by deliberate design. As party to and orchestrators of that belief, the government spent nearly four centuries encoding it into law, enforcing it through violence, and teaching it as civic order. Every act of legal subordination told the ordinary white man that what he felt about Black people was not hatred but truth. The institution cultivated that belief, confirmed it at every turn, in every generation, until the confirmation became indistinguishable from fact. No change of political guard, no matter how historic, reaches what lives in the hearts of people shaped by four centuries of that confirmation. It does not live in policy. It will not be reached by policy.

***For the first time, not petitioning for access to what others built.  
Claiming sovereign ground to build what was always owed.***

ACE does not attempt to win that battle. ACE makes it irrelevant. ACE builds the conditions under which what white Americans feel about Black Americans has no bearing on whether Black

Americans can build schools, own land, govern themselves, heal their sick, feed their communities, and pass wealth to their children. Sovereignty does not require the cooperation of people who have no intention of cooperating. It requires only ground, and the people to build on it. ACE is asking the United States to honor the specific, documented, quantifiable obligations it created and has not discharged. ACE is simultaneously building, on sovereign ground, what Black Americans would be owed even if that ask were never answered. Both tracks run at the same time. This is arrival: not waiting for recognition to begin and not abandoning the claim because building has started.

The ten million acres ACE is claiming through the contingency framework is less than six percent of the original promise of 1865, applied to the population that existed then, and a fraction of a fraction when measured against the population alive today. It is land the federal government already owns and administers. It requires no condemnation of private property, no seizure from any state, no displacement of any person. It is the minimum achievable remedy for the maximum documented harm. ACE does not ask for everything that was taken. ACE asks for enough to build what has never existed: a place where Black Americans arrive, rather than petition.

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## VII. The Global Invitation

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ACE Territory is not a wall. It is a base. The distinction matters because it defines what ACE is building toward, not just what it is building away from.

A wall is defensive. It closes. It is built by people who are afraid of what is outside. ACE is not afraid. ACE is sovereign. Sovereignty is not isolation. It is the condition that makes genuine partnership possible. You cannot partner as an equal when you own nothing. You cannot trade on your own terms when you have no ground of your own. You cannot invite anyone in when you are a guest in someone else's house. Sovereignty is the prerequisite for everything that follows.

From ACE Territory, the African diaspora in North America participates in the global Black economy on its own terms. Trade with the African continent. Cultural exchange with the Caribbean. Investment partnerships with African industrialists building the same self-determining economies on their own soil. The vision Marcus Garvey articulated, of a global Black economy that serves Black people wherever they are, does not require Black Americans to leave America to be realized. It requires Black Americans to have a sovereign base from which to participate in it. That is what ACE is building.

To every person of African descent who reads this document and asks why ACE builds here rather than there: ACE builds here because the debt is here. When ACE Territory is built, when its economy is functioning and its institutions are stable, the connection to the African continent will not be charity or nostalgia. It will be trade between sovereign peoples. That is what Garvey wanted. That is what every African industrialist who built on their own soil has been building toward from their side. ACE is building toward it from this side.

***Garvey's vision was not departure. It was sovereignty. ACE is sovereignty. Built here, connected everywhere, owing no apology to anyone.***

The colors on this document are his colors. The red of the blood that was shed. The green of the land that was promised and taken. The gold of what is being built. The black of the people it is built for. Marcus Garvey raised that flag in 1920. ACE raises it again in 2026, not as a symbol of what might have been, but as the standard of what is being built right now, on this soil, for these people, by these hands.

**THE FUTURE IS OURS.**

**LET'S BUILD IT.**



**Léandre Poplus**

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